



COMMONWEALTH OF AUSTRALIA

SENATE

Hansard

TUESDAY, 24 MARCH 2026

CORRECTIONS

This is a **PROOF ISSUE**. Senators may suggest corrections to their own speeches within 15 non-sitting days by contacting the Hansard office

BY AUTHORITY OF THE SENATE

PROOF

**FORTY-EIGHTH PARLIAMENT
FIRST SESSION**

Governor-General

Her Excellency the Hon. Samantha Joy Mostyn AC

Senate Office Holders

President—Senator the Hon. Sue Lines

Deputy President and Chair of Committees—Senator Slade Brockman

Temporary Chairs of Committees—Senators Raff Ciccone, the Hon. Richard Colbeck,
Dorinda Cox, Varun Ghosh, Karen Grogan, Steph Hodgins-May, Maria Kovacic,
Deborah O'Neill, Matt O'Sullivan, Helen Polley, Paul Scarr, Dave Sharma,
Marielle Smith and Glenn Sterle

Leader of the Government in the Senate—Senator the Hon. Penny Wong

Deputy Leader of the Government in the Senate—Senator the Hon. Don Farrell

Leader of the Opposition in the Senate—Senator the Hon. Michaelia Cash

Deputy Leader of the Opposition in the Senate—Senator the Hon. Anne Ruston

Manager of Government Business in the Senate—Senator the Hon. Katy Gallagher

Deputy Manager of Government Business in the Senate—Senator the Hon. Anthony Chisholm

Manager of Opposition Business in the Senate—Senator the Hon. Jonathon Duniam

Deputy Manager of Opposition Business in the Senate—Senator Matt O'Sullivan

Senate Party Leaders and Whips

Leader of the Labor Party in the Senate—Senator the Hon. Penny Wong

Deputy Leader of the Labor Party in the Senate—Senator the Hon. Don Farrell

Leader of the Liberal Party in the Senate—Senator the Hon. Michaelia Cash

Deputy Leader of the Liberal Party in the Senate—Senator the Hon. Anne Ruston

Leader of the Nationals in the Senate—Senator the Hon. Bridget McKenzie

Deputy Leader of the Nationals in the Senate—Senator Susan McDonald

Leader of the Australian Greens—Senator Larissa Waters

Chief Government Whip—Senator Tony Sheldon

Deputy Government Whips—Senators Karen Grogan and Lisa Darmanin

Chief Opposition Whip—Senator Wendy Askew

Deputy Opposition Whips—Senators Leah Blyth and Jessica Collins

The Nationals Whip—Senator Ross Cadell

Australian Greens Whip—Senator Nick McKim

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Members of the Senate

Senator	State or Territory	Term expires	Party
Allman-Payne, Penny Jane	Qld	30.6.2028	AG
Ananda-Rajah, Michelle	Vic.	30.6.2031	ALP
Antic, Alexander Charles (Alex)	SA	30.6.2031	LP
Askew, Wendy	Tas.	30.6.2028	LP
Ayres, Hon. Timothy (Tim)	NSW	30.6.2031	ALP
Babet, Ralph Didier	Vic.	30.6.2028	UAP
Bell, Sean Fredrick ⁽⁶⁾	NSW	30.6.2031	ON
Blyth, Leah ⁽⁴⁾	SA	30.6.2028	LP
Bragg, Andrew James	NSW	30.6.2031	LP
Brockman, William Edward (Slade)	WA	30.6.2031	LP
Brown, Hon. Carol Louise	Tas.	30.6.2031	ALP
Cadell, Ross Philip	NSW	30.6.2028	NATS
Canavan, Hon. Matthew James	Qld	30.6.2028	NATS
Cash, Hon. Michaelia Clare	WA	30.6.2028	LP
Chandler, Claire	Tas.	30.6.2031	LP
Chisholm, Hon. Anthony David	Qld	30.6.2028	ALP
Ciccone, Raffaele (Raff)	Vic.	30.6.2031	ALP
Colbeck, Hon. Richard Mansell	Tas.	30.6.2031	LP
Collins, Jessica	NSW	30.6.2031	LP
Cox, Dorinda	WA	30.6.2028	ALP
Darmanin, Lisa ⁽³⁾	Vic.	30.6.2028	ALP
Dolega, Josh ⁽⁵⁾	Tas.	30.6.2028	ALP
Dowling, Richard	Tas.	30.6.2031	ALP
Duniam, Hon. Jonathon Roy	Tas.	30.6.2028	LP
Farrell, Hon. Donald Edward (Don)	SA	30.6.2028	ALP
Faruqi, Mehreen	NSW	30.6.2031	AG
Gallagher, Hon. Katherine Ruth (Katy)	ACT		ALP
Ghosh, Varun	WA	30.6.2031	ALP
Green, Hon. Nita Louise	Qld	30.6.2031	ALP
Grogan, Karen Ann	SA	30.6.2031	ALP
Hanson, Pauline Lee	Qld	30.6.2028	ON
Hanson-Young, Sarah Coral	SA	30.6.2031	AG
Henderson, Hon. Sarah Moya	Vic.	30.6.2028	LP
Hodgins-May, Steph	Vic.	30.6.2031	AG
Hume, Hon. Jane	Vic.	30.6.2031	LP
Kovacic, Maria ⁽¹⁾	NSW	30.6.2028	LP
Lambie, Jacqui	Tas.	30.6.2031	JLN
Liddle, Kerrynne Jeanette	SA	30.6.2028	LP
Lines, Hon. Susan (Sue)	WA	30.6.2028	ALP
McAllister, Hon. Jennifer Ryll (Jenny)	NSW	30.6.2028	ALP
McCarthy, Hon. Malarndirri	NT		ALP
McDonald, Susan Eileen	Qld	30.6.2031	LNP
McGrath, Hon. James Anthony	Qld	30.6.2028	LNP
McKenzie, Hon. Bridget Grace	Vic.	30.6.2028	NATS
McKim, Nicholas James (Nick)	Tas.	30.6.2031	AG
McLachlan, Andrew Lockhart, CSC	SA	30.6.2028	LP
Mulholland, Corinne Maree	Qld	30.6.2031	ALP
Nampijinpa Price, Jacinta Suzette	NT		CLP
O'Neill, Deborah Mary	NSW	30.6.2028	ALP
O'Sullivan, Matthew Anthony (Matt)	WA	30.6.2031	LP
Paterson, James William	Vic.	30.6.2031	LP

Senator	State or Territory	Term expires	Party
Payman, Fatima	WA	30.6.2028	AV
Pocock, Barbara	SA	30.6.2028	AG
Pocock, David Willmer	ACT		IND
Polley, Helen	Tas.	30.6.2028	ALP
Roberts, Malcolm Ieuan	Qld	30.6.2031	ON
Ruston, Hon. Anne Sowerby	SA	30.6.2031	LP
Scarr, Paul Martin	Qld	30.6.2031	LP
Sharma, Devanand Noel (Dave) ⁽²⁾	NSW	30.6.2028	LP
Sheldon, Anthony Vincent (Tony)	NSW	30.6.2031	ALP
Shoebridge, David Martin	NSW	30.6.2028	AG
Smith, Dean Anthony	WA	30.6.2028	LP
Smith, Marielle Feuerherdt	SA	30.6.2031	ALP
Steele-John, Jordon Alexander	WA	30.6.2031	AG
Sterle, Glenn	WA	30.6.2028	ALP
Stewart, Jana Naretha Anne	Vic.	30.6.2028	ALP
Thorpe, Lidia Alma	Vic.	30.6.2028	IND
Tyrrell, Tammy Marie	Tas.	30.6.2028	IND
Walker, Charlotte Grace	SA	30.6.2031	ALP
Walsh, Hon. Jess Cecille	Vic.	30.6.2031	ALP
Waters, Larissa Joy	Qld	30.6.2031	AG
Watt, Hon. Murray Patrick	Qld	30.6.2028	ALP
Whish-Wilson, Peter Stuart	Tas.	30.6.2028	AG
Whiteaker, Ellie	WA	30.6.2031	ALP
Whitten, Tyron	WA	30.6.2031	ON
Wong, Hon. Penny	SA	30.6.2028	ALP

Pursuant to section 42 of the Commonwealth Electoral Act 1918, the terms of service of the following senators representing the Australian Capital Territory and the Northern Territory expire at the close of the day immediately before the polling day for the next general election of members of the House of Representatives

Territory	Senator	Party	Senator	Party
Australian Capital Territory	Gallagher, KR	ALP	Pocock, DW	IND
Northern Territory	McCarthy, M	ALP	Nampijinpa Price, JS	CLP

⁽¹⁾ Chosen by the Parliament of New South Wales to fill a casual vacancy (vice J. Molan), pursuant to section 15 of the Constitution

⁽²⁾ Chosen by the Parliament of New South Wales to fill a casual vacancy (vice M. Payne), pursuant to section 15 of the Constitution

⁽³⁾ Chosen by the Parliament of Victoria to fill a casual vacancy (vice L. White), pursuant to section 15 of the Constitution

⁽⁴⁾ Chosen by the Parliament of South Australia to fill a casual vacancy (vice S. Birmingham), pursuant to section 15 of the Constitution

⁽⁵⁾ Chosen by the Parliament of Tasmania to fill a casual vacancy (vice A. Urquhart) pursuant to section 15 of the Constitution.

⁽⁶⁾ Chosen by the Parliament of New South Wales to fill a casual vacancy (vice W. Stacey), pursuant to section 15 of the Constitution

PARTY ABBREVIATIONS

AG—Australian Greens; ALP—Australian Labor Party;

AV—Australia's Voice; CLP—Country Liberal Party; IND—Independent;

JLN—Jacqui Lambie Network; LNP—Liberal National Party of Queensland;

LP—Liberal Party of Australia; NATS—The Nationals;

ON—One Nation; UAP—United Australia Party

Heads of Parliamentary Departments

Clerk of the Senate—R Pye

Clerk of the House of Representatives—C Surtees

Secretary, Department of Parliamentary Services—J Hinchcliffe

Parliamentary Budget Officer—S Reinhardt

ALBANESE MINISTRY

TITLE	MINISTER
Prime Minister	The Hon. Anthony Albanese MP
Minister for the Public Service	Senator the Hon. Katy Gallagher
Minister for Women (Vice-President of the Executive Council) (Manager of Government Business in the Senate)	Senator the Hon. Katy Gallagher
Minister for Indigenous Australians	Senator the Hon. Malarndirri McCarthy
<i>Assistant Minister to the Prime Minister</i>	<i>The Hon. Patrick Gorman MP</i>
<i>Assistant Minister for the Public Service</i>	<i>The Hon. Patrick Gorman MP</i>
<i>Assistant Minister for Women</i>	<i>The Hon. Rebecca White MP</i>
<i>Cabinet Secretary</i>	<i>The Hon. Dr Andrew Charlton MP</i>
Minister for Defence (Deputy Prime Minister)	The Hon. Richard Marles MP
Minister for Defence Industry	The Hon. Pat Conroy MP
Minister for Veterans' Affairs	The Hon. Matt Keogh MP
Minister for Defence Personnel	The Hon. Matt Keogh MP
<i>Assistant Minister for Defence</i>	<i>The Hon. Peter Khalil MP</i>
Minister for Foreign Affairs (Leader of the Government in the Senate)	Senator the Hon. Penny Wong
Minister for Trade and Tourism (Deputy Leader of the Government in the Senate)	Senator the Hon. Don Farrell
Minister for Pacific Island Affairs	The Hon. Pat Conroy MP
Minister for International Development	The Hon. Dr Anne Aly MP
<i>Assistant Minister for Foreign Affairs and Trade</i>	<i>The Hon. Matt Thistlethwaite MP</i>
<i>Assistant Minister for Tourism</i>	<i>Senator the Hon. Nita Green</i>
<i>Assistant Minister for Pacific Island Affairs</i>	<i>Senator the Hon. Nita Green</i>
Treasurer	The Hon. Dr Jim Chalmers MP
Minister for Housing	The Hon. Clare O'Neil MP
Minister for Homelessness	The Hon. Clare O'Neil MP
Minister for Cities	The Hon. Clare O'Neil MP
Minister for Small Business	The Hon. Dr Anne Aly MP
Assistant Treasurer	The Hon. Dr Daniel Mulino MP
Minister for Financial Services	The Hon. Dr Daniel Mulino MP
<i>Assistant Minister for Productivity, Competition, Charities and Treasury</i>	<i>The Hon. Dr Andrew Leigh MP</i>

TITLE	MINISTER
Minister for Finance	Senator the Hon. Katy Gallagher
Minister for Government Services	Senator the Hon. Katy Gallagher
Special Minister of State	Senator the Hon. Don Farrell
Minister for Home Affairs	The Hon. Tony Burke MP
Minister for Immigration and Citizenship	The Hon. Tony Burke MP
Minister for Cyber Security (Leader of the House)	The Hon. Tony Burke MP
Minister for Multicultural Affairs	The Hon. Dr Anne Aly MP
Minister for Emergency Management	The Hon. Kristy McBain MP
<i>Assistant Minister for Immigration</i>	<i>The Hon. Matt Thistlethwaite MP</i>
<i>Assistant Minister for Emergency Management</i>	<i>The Hon. Josh Wilson MP</i>
<i>Assistant Minister for Citizenship, Customs and Multicultural Affairs</i>	<i>The Hon. Julian Hill MP</i>
Minister for Health and Ageing	The Hon. Mark Butler MP
Minister for Disability and the National Disability Insurance Scheme (Deputy Leader of the House)	The Hon. Mark Butler MP
Minister for the National Disability Insurance Scheme	Senator the Hon. Jenny McAllister
Minister for Aged Care and Seniors	The Hon. Sam Rae MP
<i>Assistant Minister for Mental Health and Suicide Prevention</i>	<i>The Hon. Emma McBride MP</i>
<i>Assistant Minister for Rural and Regional Health</i>	<i>The Hon. Emma McBride MP</i>
<i>Assistant Minister for Health and Aged Care</i>	<i>The Hon. Rebecca White MP</i>
<i>Assistant Minister for Indigenous Health</i>	<i>The Hon. Rebecca White MP</i>
Minister for Climate Change and Energy	The Hon. Chris Bowen MP
Minister for the Environment and Water	Senator the Hon. Murray Watt
<i>Assistant Minister for Climate Change and Energy</i>	<i>The Hon. Josh Wilson MP</i>
Minister for Infrastructure, Transport, Regional Development and Local Government	The Hon. Catherine King MP
Minister for Northern Australia	The Hon. Madeleine King MP
Minister for Communications	The Hon. Anika Wells MP
Minister for Sport	The Hon. Anika Wells MP
Minister for the Arts	The Hon. Tony Burke MP
Minister for Regional Development, Local Government and Territories	The Hon. Kristy McBain MP
<i>Assistant Minister for Regional Development</i>	<i>Senator the Hon. Anthony Chisholm</i>
<i>Assistant Minister for Northern Australia</i>	<i>Senator the Hon. Nita Green</i>

TITLE	MINISTER
Minister for Employment and Workplace Relations	The Hon. Amanda Rishworth MP
Minister for Skills and Training	The Hon. Andrew Giles MP
<i>Assistant Minister for Employment and Workplace Relations</i>	<i>The Hon. Patrick Gorman MP</i>
Minister for Education	The Hon. Jason Clare MP
Minister for Early Childhood Education	Senator the Hon. Dr Jess Walsh
Minister for Youth	Senator the Hon. Dr Jess Walsh
<i>Assistant Minister for International Education</i>	<i>The Hon. Julian Hill MP</i>
Attorney-General	The Hon. Michelle Rowland MP
Minister for Social Services	The Hon. Tanya Plibersek MP
<i>Assistant Minister for Social Services</i>	<i>The Hon. Ged Kearney MP</i>
<i>Assistant Minister for the Prevention of Family Violence</i>	<i>The Hon. Ged Kearney MP</i>
Minister for Agriculture, Fisheries and Forestry	The Hon. Julie Collins MP
<i>Assistant Minister for Agriculture, Fisheries and Forestry</i>	<i>Senator the Hon. Anthony Chisholm</i>
Minister for Resources	The Hon. Madeleine King MP
Minister for Industry and Innovation	Senator the Hon. Tim Ayres
Minister for Science	Senator the Hon. Tim Ayres
<i>Assistant Minister for Resources</i>	<i>Senator the Hon. Anthony Chisholm</i>
<i>Assistant Minister for Science, Technology and the Digital Economy</i>	<i>The Hon. Dr Andrew Charlton MP</i>
Each box represents a portfolio. As a general rule, there is one department in each portfolio. However, there can be two departments in one portfolio. Cabinet Ministers are shown in bold type. <i>Assistant Ministers</i> in italics are designated as Parliamentary Secretaries under the <i>Ministers of State Act 1952</i> .	

SHADOW MINISTRY

TITLE	MINISTER
Leader of the Opposition	The Hon. Angus Taylor MP
Shadow Minister for the Public Service	Senator Claire Chandler
Shadow Minister for Women	Melissa McIntosh MP
Shadow Minister for Indigenous Australians	Julian Leeser MP
<i>Shadow Assistant Minister for Women</i>	<i>Senator Maria Kovacic</i>
<i>Shadow Assistant Minister to the Leader of the Opposition</i>	<i>Simon Kennedy MP</i>
<i>(Co-Chair of the Coalition Policy Development Committee)</i>	
<i>Shadow Cabinet Secretary</i>	<i>Zoe McKenzie MP</i>
<i>(Co-Chair of the Coalition Policy Development Committee)</i>	
Shadow Minister for Trade, Investment and Tourism	Senator the Hon. Matthew Canavan
(Leader of the Nationals)	
Shadow Minister for Foreign Affairs	Ted O'Brien MP
Shadow Minister for Tourism	The Hon. David Littleproud MP
<i>Shadow Assistant Minister for International Development and the Indo-Pacific</i>	<i>Senator Dave Sharma</i>
Shadow Minister for Employment and Industrial Relations	Senator the Hon. Jane Hume
(Deputy Leader of the Opposition)	
Shadow Minister for Skills and Trading	Senator Jacinta Nampijinpa Price
<i>Shadow Assistant Minister for Employment and Industrial Relations</i>	<i>Zoe McKenzie MP</i>
Shadow Attorney-General	Senator the Hon. Michaelia Cash
(Leader of the Opposition in the Senate)	
Shadow Minister for Health and Aged Care	Senator the Hon. Anne Ruston
(Deputy Leader of the Opposition in the Senate)	
Shadow Minister for the National Disability Insurance Scheme	Melissa McIntosh MP
Shadow Minister for Sport	Angie Bell MP
Shadow Minister for Regional Health	Dr Anne Webster MP
<i>Shadow Assistant Minister for Health and Aged Care</i>	<i>Senator Kerryne Liddle</i>
<i>Shadow Assistant Minister for Mental Health</i>	<i>Henry Pike MP</i>
<i>Shadow Assistant Minister for Disability and the National Disability Insurance Scheme</i>	
Shadow Treasurer	The Hon. Tim Wilson MP
Shadow Minister for Productivity and Deregulation	Senator the Hon. Jane Hume
Shadow Minister for Small Business	Senator Jacinta Nampijinpa Price
Shadow Minister for Housing and Homelessness	Senator Andrew Bragg
Shadow Assistant Treasurer	The Hon. Kevin Hogan MP
Shadow Minister for Financial Services	
(Deputy Manager of Opposition Business in the House)	
Shadow Minister for the Digital Economy	Aaron Violi MP
<i>Shadow Assistant Minister for Housing</i>	<i>Cameron Caldwell MP</i>
<i>Shadow Assistant Minister for Productivity and Deregulation</i>	<i>Senator Maria Kovacic</i>
<i>Shadow Assistant Minister to the Shadow Treasurer</i>	<i>Senator Dean Smith</i>
<i>Shadow Assistant Minister for the Cost of Living</i>	
Shadow Minister for Industry and Sovereign Capability	The Hon. Andrew Hastie MP
(Deputy Leader in the House of Representatives)	
Shadow Minister for Energy and Emissions Reduction	The Hon. Dan Tehan MP
(Manager of Opposition Business in the House)	
Shadow Minister for Resources and Northern Australia	Senator Susan McDonald
Shadow Minister for Science, Technology and Innovation	Aaron Violi MP
<i>Shadow Assistant Minister for Energy Security and Affordability</i>	<i>Garth Hamilton MP</i>
<i>Shadow Assistant Minister for Resources</i>	<i>Jamie Chaffey MP</i>

TITLE	MINISTER
<i>Shadow Assistant Minister for Manufacturing and Sovereign Capability</i>	<i>Andrew Willcox MP</i>
Shadow Minister for Home Affairs and Immigration (Manager of Opposition Business in the Senate)	Senator the Hon. Jonathon Duniam
Shadow Minister for Emergency Management	The Hon. David Littleproud MP
Shadow Minister for Cyber Security	Aaron Violi MP
<i>Shadow Assistant Minister for Citizenship and Multicultural Affairs</i>	<i>Senator Dave Sharma</i>
Shadow Minister for Defence	Senator James Paterson
Shadow Minister for Veterans' Affairs	The Hon. Michael McCormack MP
Shadow Minister for Defence Industry	Phillip Thompson OAM MP
Shadow Minister for Defence Personnel	
<i>Shadow Assistant Minister for Defence Infrastructure</i>	<i>Senator Leah Blyth</i>
Shadow Minister for Finance	Senator Claire Chandler
Shadow Minister for Government Services	
Shadow Minister for Productivity and Deregulation	Senator the Hon. Jane Hume
Shadow Special Minister of State	Senator the Hon. James McGrath
Shadow Minister for Scrutiny of Government Waste and Accountability	Tony Pasin MP
<i>Shadow Assistant Minister for Productivity and Deregulation</i>	<i>Senator Maria Kovacic</i>
<i>Shadow Assistant Minister for Finance</i>	<i>Simon Kennedy MP</i>
<i>Shadow Assistant Minister Electoral Matters</i>	<i>Ben Small MP</i>
Shadow Minister for Agriculture, Fisheries and Forestry (Deputy Leader of the Nationals) (Leader of the Nationals in the House)	The Hon. Darren Chester MP
Shadow Minister for Environment	Senator Andrew Bragg
Shadow Minister for Water	The Hon. Michael McCormack MP
Shadow Minister Assisting for Fisheries and Forestry	Tony Pasin MP
<i>Shadow Assistant Minister for Agriculture</i>	<i>Sam Birrell MP</i>
Shadow Minister for Infrastructure and Transport	Senator the Hon. Bridget McKenzie
Shadow Minister for Regional Development, Local Government and Territories (Leader of the Nationals in the Senate)	
Shadow Minister for Urban Infrastructure and Cities	Senator the Hon. James McGrath
Shadow Minister for Brisbane 2032 Olympic and Paralympic Games	
<i>Shadow Assistant Minister for Regional Development, Local Government and Territories</i>	<i>Jamie Chaffey MP</i>
<i>Shadow Assistant Minister for Infrastructure</i>	<i>Ben Small MP</i>
Shadow Minister for Education	Julian Leeser MP
Shadow Minister for Choice in Childcare and Early Learning (Deputy Manager of Opposition Business in the Senate)	Senator Matt O'Sullivan
Shadow Minister for Youth	Angie Bell MP
<i>Shadow Assistant Minister for Regional Education</i>	<i>Sam Birrell MP</i>
Shadow Minister for Families and Social Services	Melissa McIntosh MP
Shadow Minister for Child Protection and the Prevention of Family Violence	Senator Matt O'Sullivan
Shadow Minister for Communications and Digital Safety	Senator the Hon. Sarah Henderson
Shadow Minister for Arts	Angie Bell MP
Shadow Minister for Regional Communications	Dr Anne Webster MP

Each box represents a portfolio. **Shadow cabinet ministers are shown in bold type.**

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Tuesday, 24 March 2026

The PRESIDENT (Senator the Hon. Sue Lines) took the chair at 13:00, made an acknowledgement of country and read prayers.

DOCUMENTS

Tabling

The Clerk: I table documents pursuant to statute and a return to order as listed on the Dynamic Red.

Full details of the documents are recorded in the Journals of the Senate.

COMMITTEES

Meeting

The Clerk: Proposals to meet have been lodged as follows:

Corporations and Financial Services—Joint Statutory Committee—private meeting otherwise than in accordance with standing order 33(1) and a private briefing on Thursday, 26 March 2026, from 9 am.

Economics Legislation and References Committees—private meetings otherwise than in accordance with standing order 33(1) on Thursday, 26 March 2026, at 12.15 pm.

Legal and Constitutional Affairs Legislation and References Committees—private meetings otherwise than in accordance with standing order 33(1) on Wednesday, 25 March and Wednesday, 1 April 2026, from 10 am.

The PRESIDENT (13:01): If there is no objection, the meetings are authorised.

BILLS

Commonwealth Entities Legislation Amendment Bill 2026

Second Reading

Consideration resumed of the motion:

That this bill be now read a second time.

Senator ROBERTS (Queensland) (13:01): Four years of cost overruns, four years of secret government, four years of slackness, four years of another managed decline of Australia. There has been misappropriation of money and they've done nothing—just covered it up. Transparency was the promise; cover-up is the actuality. Why? Now, as the solution, we see the Labor Party bringing in potential abuse of ministerial powers with an opportunity, if the Commonwealth Entities Legislation Amendment Bill 2026 is passed, to have possible control over the department heads, commissioners and others in senior positions without transparency or accountability. The performance standard under this legislation is not a discretionary instrument with specific grounds for dismissal against standard criteria—that is, KPIs. That's not the case. With this bill, it's purely at the discretion of the minister.

We already have a Public Service that's been highly politicised. We are now entrenching that and giving the public servants more to fear from ministers if they don't do what they're told. Under the 'uniparty' ministers, department heads no longer give frank and fearless independent advice. That hasn't been the case for decades because department heads and senior public servants are now part of the political process. They're enmeshed in the process. They cannot give frank and fearless advice. Do you want any examples? Have a look at the energy systems in this country, where they're destroying the best electricity grid in the world and making it second rate, taking us from the lowest electricity prices in the world to now the highest in the world.

The legislation—I think this appears four times in the legislation—says, 'The minister may give a direction in writing.' It does not say the minister may give a direction that must be in writing. Lawyers, as we know, have lots of incentives to argue about a word such as 'may'. At best, this is sloppy. It's just not good enough. If a minister suspends a senior public servant, they're suspended on full pay, which may be extended to 12 months suspension. The minister doesn't have to give specific reasons; they just need to say it's in the department's best interests—that's it. It's 12 months paid suspension because it's in the department's best interests. This means that the minister can hold a threat over Public Service heads, giving them control over department heads, complete control, creating a poor system that destroys accountability and transparency—two words that are vital for effective governance. But in this Labor government, under Anthony Albanese, accountability is hidden. It's not possible, and transparency is non-existent.

If governments want to be good governments, they should want transparency and accountability, because it makes them stronger. I know with Senator Pauline Hanson we are all held accountable and we have to be transparent, because we want to be, but if we weren't she would make sure we are. The same can't be said about the Albanese

Labor government. So I am in two minds about this bill. It has severe shortcomings due to sloppiness. I think that's all I need to say.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:06): Thank you for the contributions to this bill. I will just step through briefly the reasons that the government is bringing this bill forward. Hopefully, Senator Roberts, that will put you in one mind, but hopefully we will get the support of the chamber either way. The Albanese government is committed to ensuring integrity, honesty and accountability in government. The community expects public officials, especially those who are the subject of statutory appointments at senior levels, to perform their duties with the highest level of integrity.

The Commonwealth Entities Legislation Amendment Bill 2026 will ensure that, where statutory office holders engage in behaviour that breaches the APS Code of Conduct or amounts to discrimination, bullying, harassment or corruption in their workplace, they can be removed from office. The bill also ensures that statutory office holders are held accountable for their performance, with unsatisfactory performance being appropriately addressed. These are standards expected of most working Australians in their workplaces, and they should apply to statutory office holders too.

The Albanese government remains committed to the principles of regulatory independence, and the bill is sensitive to the independence of decision-making by statutory authorities. To this end, the amendments in this bill are designed not to fetter the independence or discretion of office holders but to ensure that they are accountable for their performance and conduct in the workplace. The bill will strengthen appointment safeguards for a range of statutory office holders, and the government will continue its focus on returning integrity, honesty and accountability to government, ensuring that we better reflect community expectations. Through these ongoing efforts, the government will continue to ensure that the Commonwealth is a model employer of the same standard that we expect of other employers.

The DEPUTY PRESIDENT: The question is that the bill be read a second time.

The Senate divided. [13:12]

(The Deputy President—Senator Brockman)

Ayes.....36
Noes.....25
Majority.....11

AYES

Allman-Payne, P. J.
Chisholm, A. D.
Darmanin, L.
Faruqi, M.
Grogan, K. (Teller)
McAllister, J. R.
O'Neill, D. M.
Pocock, D. W.
Shoebridge, D. M.
Sterle, G.
Walker, C.
Watt, M. P.

Ananda-Rajah, M.
Ciccione, R.
Dolega, J.
Ghosh, V.
Hanson-Young, S. C.
McKim, N. J.
Payman, F.
Polley, H.
Smith, M. F.
Stewart, J. N. A.
Walsh, J. C.
Whish-Wilson, P. S.

Brown, C. L.
Cox, D.
Dowling, R.
Green, N. L.
Hodgins-May, S.
Mulholland, C.
Pocock, B.
Sheldon, A. V.
Steele-John, J. A.
Tyrrell, T. M.
Waters, L. J.
Whiteaker, E.

NOES

Antic, A.
Bell, S.
Brockman, W. E.
Cash, M. C.
Collins, J.
Kovacic, M.
Nampijinpa Price, J. S.
Roberts, M. I.
Whitten, T.

Askew, W.
Blyth, L.
Cadell, R. P.
Chandler, C.
Duniam, J. R.
Liddle, K. J. (Teller)
O'Sullivan, M. A.
Sharma, D. N.

Babet, R. D.
Bragg, A. J.
Canavan, M. J.
Colbeck, R. M.
Hume, J.
McDonald, S. E.
Paterson, J. W.
Smith, D. A.

PAIRS

Ayres, T.
Farrell, D. E.
Gallagher, K. R.
Lines, S.
McCarthy, M.
Wong, P.

Ruston, A.
Scarr, P. M.
McLachlan, A. L.
McGrath, J. A.
Henderson, S. M.
McKenzie, B. G.

Question agreed to.

Bill read a second time.

In Committee

Bill—by leave—taken as a whole.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:15): As I stated in my second reading debate contribution on this bill last night, the coalition, three weeks ago now, had actually requested the government send this to the appropriate committee for scrutiny. While the government is selling it to the Australian people as merely modernisation, in my speech, and even in the speech that Senator Roberts has just given, I have assured the Australian people it is absolutely not that.

Unfortunately, this is a transfer of power directly from the parliament, where you have transparency, all the way over to the executive, where you have none. I would have thought for a government that likes to stand up and tell the Australian people just how committed to transparency it is, it would have actually agreed to this bill being subject to a committee inquiry. It didn't. Ironically, three weeks later, we are now here. And because we were unable to have a committee inquiry, I will now have to pursue it through the committee process.

In the first instance, Minister, is it correct that under the bill the responsible minister may issue written performance standards to certain statutory office holders, and that those standards may then form the basis for a finding of unsatisfactory performance leading to termination?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:17): That is correct. I understand you have a series of questions about the bill. You were offered a briefing on the bill in February. You decided not to take that up, so we are happy to answer your questions here in the committee process. It is a bill that deals with four agencies and makes changes to ensure that the standards that Australians expect in their workplaces are aligned with some of the workplaces here in the Commonwealth.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:17): Is it correct that those performance standards that you have just confirmed in relation to my first question are expressly excluded from the definition of a legislative instrument?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:18): Yes, that is correct.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:18): Is it correct that, because those standards are not legislative instruments, they are not subject to disallowance by the parliament?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:18): Yes. If the standard is not a legislative instrument, it will not be disallowable by the parliament. I can seek some more advice about the process of making those standards public for you.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:18): The bill that we currently have before us contains no requirement for the standards that I've just referred to, and the fact that they are not legislative instruments means they are unable to be disallowed by the parliament. Is it correct that the bill contains no requirement for those standards to be tabled in either the House or the Senate?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:19): That is correct. There is nothing in this bill in particular that requires the standards to be tabled. As I said in my contribution and in my previous responses to you, these standards in this bill are about modernising the appointments framework to reflect community and workplace expectations for Commonwealth officials. We want to make sure that, if there is any unacceptable conduct, those officials are held to account.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:19): With all due respect, Minister, it's one thing to say a bill is all about modernisation and expectations; it's another thing to hide those expectations from the Australian public, who deserve to know exactly what those standards are, particularly given the nature of the agencies that we are referring to. So far, we have established that the minister can issue performance standards to certain statutory office holders and that those performance standards may then form the basis for a finding of unsatisfactory performance leading to termination. It sounds very simple, but what we have also now established is that this bill deliberately excludes those performance standards from the definition of a legislative instrument. That therefore means that, if they are not legislative instruments, the parliament doesn't see them and doesn't have an opportunity to therefore disallow them. We also now know that the minister writes these performance standards, and they don't go anywhere near the two houses of parliament. There's no requirement for that. Minister, I now also ask: is it also correct that the bill contains no requirement for these standards to be published?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:21): Thanks, Senator Cash. I was seeking to understand—that's a different question than the previous one in terms of tabling in parliament. There's nothing in the bill that requires them to be published. I can seek advice for you. Of course, the parliament, particularly the Senate, has a number of scrutiny mechanisms available to it to seek information and to put information on the public record.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:21): I hate to disappoint you, but the first scrutiny available to the chamber was actually the committee process which was denied to us. I've just asked you a series of questions, and, in relation to each one of those questions, the answer was that there is absolutely no transparency whatsoever in relation to these performance standards, but, seeing as you have just advised the committee that apparently there is a way that we can get hold of the information, can you please take the committee through how we can actually get hold of the information as per your last answer?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:22): Senator Cash, I referred to the Senate's usual processes in requesting information. You are fully aware of those. You've been here for a long time. I'm not going to elaborate on those. As I've said, this bill is about making sure that the community expectation of public officials to perform their duties with the highest integrity, particularly those who operate at the highest level in heading up statutory authorities—that they are held to that highest level of account. This bill ensures that arrangements for statutory office holders set in the legislation underpinning these entities, which has not been updated in many years and so have limited provisions of an accountability where conduct or performance is unacceptable—it ensures that those measures are updated.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:22): No-one disputes what you are saying. What we are interrogating is why the government is yet again indulging in a culture of secrecy. Let's now see what we have established. In relation to your last response, Minister, with all due respect, if you are referring to the Senate process of an order for the production of documents, I suggest that, perhaps, you look at the government's record in relation to providing the Senate with the information that it requires for the benefit of the Australian public. I can assure you right now that we'll put in the order for the production of documents, and do you know what we'll get back? A blank sheet of paper. That is hardly transparency.

In summary, in relation to the performance standards in this bill, we have a combined effect of these provisions that a minister may set secret non-disallowable performance benchmarks, assess an officeholder's performance against those benchmarks and terminate the officeholder on that basis, and the bad news for the Australian parliament and ultimately the Australian people is that the parliament will never ever see those standards or, alternatively, have a mechanism to review them.

Minister, can you advise the committee why the government has chosen a culture of secrecy and a handing of the ability of the parliament—normally, these are set out in legislation. In other departments, the parliament and the Australian public, and, indeed, the person affected can clearly see in legislation what those performance standards are. This bill is a fundamental deviation from that. It is indulging in a culture of secrecy—not just to the parliament, but also to the Australian people. They have no idea what is going on. On what basis did the government decide to ensure that there was a culture of secrecy in relation to these standards—not make them a legislative instrument, not make them disallowable and not make them publishable in either house of parliament?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:25): I reject that categorisation. I may well ask why the opposition is choosing a culture of opposition for opposition's sake—opposition to sensible reforms that seek to ensure there is integrity, honesty and accountability in core Commonwealth government entities, and, in doing so, ensure that, as in the APS Code of Conduct, things like discrimination, bullying and harassment, and corruption and

those types of behaviours, are unacceptable and not allowed in these four Commonwealth entities that we seek to modernise today. That's what we are seeking to do, as government. You characterise it in a different way. You're choosing to oppose this bill. We won't agree on the purpose. You seem to misconstrue the purpose—perhaps because it's not understood that it's against a backdrop of other work that we've been doing to reform the Public Service. I think your question says more about your approach than ours.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:26): That was possibly the most bizarre answer I have ever had in the Australian Senate. Seriously, have you listened to the answers that you have given to me in response to my questions? You say that you want to hold certain officeholders accountable under certain standards. How do we know that's true? The parliament's never going to see them. The Australian public are never going to see them. You could have nothing in those standards, and we would not know. That is the whole point of these questions. You are once again hiding from both the parliament and the Australian people what you are doing. So can you identify the specific criterion that distinguishes these four entities from comparable statutory bodies, such as ASIC, the ACCC, APRA, the Information Commissioner or the Australian Human Rights Commission and its commissioners?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:27): I can answer that question. In terms of the specific agencies or officeholders, the Department of Foreign Affairs and Trade and the Attorney-General's Department, when examining the statutory officeholders within their portfolios—this bill presents an appropriate legislative vehicle to progress that work through parliament. However, there are portfolio-specific nuances. For example, amendments to the Parliamentary Counsel Act do not include suspension provisions, because this is not a feature for statutory officeholders within the Attorney-General's portfolio.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:28): Again, that wasn't an answer to my question, but I'm assuming that I'm going to ask questions and you are just going to read out the response that is provided to you. Again, though, let's see what we've established. You have a termination power exercisable against secret, non-disallowable, ministerially-set standards. So, basically, where we get to is: termination, at pleasure, by a minister. This is an incredibly dangerous path to go down, for the Australian people. It is one thing to set termination standards in legislation, and have the parliament and, quite frankly, others able to review them. This is a fundamental deviation from this, to the point whereby we are never ever going to know what is actually in those standards, because the Senate, the House of Representatives and the Australian public are never ever going to see them. So tell me, Minister: can the performance standards—the secret performance standards, which we are never going to see—be amended or replaced during an officeholder's term?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:29): No.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:29): So, once they're set, sorry, they're set?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:29): I've already answered the question.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:29): I'm just asking for clarification. Is there a provision in the bill that allows the performance standards to be amended or replaced during an office holder's term?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:30): Thank you, Senator Cash, for the clarification. I appreciate that. There's nothing in the bill that prevents that from happening.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:30): There's nothing that prevents that from happening. So are you now saying they can be or replaced during an office holder's term?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:30): Senator Cash, I apologise. I sought clarification on your question because you reframed it. It can be amended during the term.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:30): What safeguards exist in the bill to prevent performance standards being set or amended retrospectively or shifted midterm to engineer a finding of unsatisfactory performance?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:30): If I can provide more information, I will. But what I'll draw

you to is that there would be, if there was a finding of misconduct or unsatisfactory performance, procedural fairness processes that would apply. This bill doesn't exclude those processes. If I can provide more advice, I will.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:31): Unfortunately, that wasn't the question I asked. The question I asked was what safeguards exist in the bill to prevent performance standards being set or amended retrospectively or shifted midterm to engineer a finding of unsatisfactory performance? You have now given evidence to the Senate that there is nothing in this bill that stops the performance standards, the secret performance standards, that the Australian public and the houses of parliament are never going to see. You've got all that on the record. That's what the bill is all about: taking away the transparency and ensuring that the minister holds all the power. What safeguards are in the bill to prevent the performance standards being set or amended retrospectively or shifted midterm to engineer a finding of unsatisfactory performance?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:32): That's the same question. I've already answered the question, Senator Cash.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:32): You haven't, but that's fine. I accept we won't be getting an answer. You've been at pains several times to date to say that there's nothing to see here, that it's a very simple bill and that it's merely a modernisation process. On that basis, will the government commit to tabling all performance standards issued under this bill within five sitting days?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:33): That is not something that the government is planning on doing. I have stepped you through what this bill does and how it strengthens our appointment safeguards. I understand you have a different view on the bill, but I'm perplexed as to why this modernisation of four agencies to make sure that there is more adherence with the APS Code of Conduct is controversial. We're certainly happy to answer your questions, but my characterisation of modernisation is correct.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:33): So just to confirm, then, in relation to this bill, which you call modernisation—I'm glad we're on broadcast, because the Australian people need to clearly understand what the Albanese Labor government means when it talks about modernisation. It's not an update. An update is just that. We all have a bit of a look at it, then say, 'Yes, we like it,' or, 'No, we don't like it,' and then we change it and make it better et cetera. The Albanese government's form of modernisation that is going to be passed through the parliament—I understand the Australian Greens are supporting this—is to ensure that in relation to these four entities we are taking away from the parliament the right to consider and clearly and transparently review these performance standards, and, as we've now heard from the minister, we will never see them.

The minister can say what she likes when it comes to what's going to be in them. We will never know. Despite the fact that the minister says there's nothing to see here—let's be very, very clear. I have just asked, on behalf of the Australian people, 'Will the government commit to tabling all performance standards issued under this bill within five days of issue so that we can see them?' Let us be clear what the minister has said. The answer is no. They will remain secret. And you wonder why some of us are not supporting this particular piece of legislation! We don't support things that we can't see.

How does the bill define unsatisfactory performance for the purposes of the termination provisions?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:35): I will just run you through the bill because the bill does set out what standards for unsatisfactory performance of statutory office holders are impacted. The bill introduces a mechanism impacting the CEOs of Austrade and ACIAR that will allow the relevant minister to determine a performance standard in writing that the relevant statutory office holder will be expected to adhere to. Unsatisfactory performance may be judged against that standard. The bill has been intentionally devised to ensure that the judgement rests with the relevant person responsible for the termination. This also addresses a concern that executive accountability would be weakened where the standard is set externally or inflexibly in legislation. It allows the standards to be adapted to suit government and portfolio priorities as they progress.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:36): Is there a definition in the definitions section of the bill of unsatisfactory performance?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:37): There are several agencies that are dealt with, and we might need to go through each one separately because there are some separate definitions. You will probably have to refer me to which agency you're discussing. I note that the Director of Safeguards at ASNO is not subject to unsatisfactory

performance standards. So perhaps you could direct your question to the particular agency, and I can get an answer for you.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:37): In relation to each of these agencies, what is the definition of unsatisfactory performance? You have just basically stated that the Senate there isn't one. The ministers themselves are responsible for drafting this. If that is so, will the standards be made public?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:37): I have already answered the question about the standards and how they will be dealt with. What I would say to you is that the bill deals with—

Senator Cash: There are no standards.

Senator GREEN: What I can say is that, with regard to particular agencies that are dealt with, there are definitions around misconduct and serious misconduct in the bill. Unsatisfactory performance, as I referred to for the first agency, Austrade, will be relative to the requirements of the role.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:38): What does 'relative to the requirement of the role' mean? Can you point to it in black and white in the legislation anywhere? Is there a definition section that says, 'Unsatisfactory performance means', and will the public ever get to see that?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:39): Thanks, Senator Cash. Clearly we are getting into the territory of you asking questions that you know the answers to because you've read the bill. The bill doesn't contain that definition. You want me to say that on record. We have explained to you how those standards will be met, why we are bringing those standards forward and why those statutory office holders should be accountable to them.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:39): Just to be clear, again, there is no definition of unsatisfactory performance in the legislation that we are debating. It's all up to the minister, and the standards will not be made public. Has the Attorney-General's Department provided advice on whether the termination or suspension provisions are consistent with the principle in *Barratt v Howard* 1999—that statutory office holders are not removable at pleasure absent clear legislative authority?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:39): Senator Cash, as you would be aware from many Senate estimates hearings, we don't comment on legal advice that may have been provided to the government.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:40): I'm not asking for a comment on the legal advice. I'm merely asking if you can take me through the case of *Barratt v Howard* please and how it applies to this situation, because it is very important.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:40): Senator Cash, I did answer your question. Your question is very specific to that case. You're a legal scholar yourself. I'm sure you can read that decision. If I can provide you any additional advice, I will, but I'm not going to step you through a publicly available decision in the law.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:41): The good news is this: you don't know what the case of *Barratt v Howard* is, but it's actually directly applicable to this legislation. And it is not an appropriate response for a minister of the Crown to not be able to state whether the Attorney-General's Department, who is responsible for this bill, has or has not given advice in relation to this. I'm not interested in the advice itself. I know we cannot get that. I appreciate that. But the fact that you are unable to even go anywhere near this federal case when it is on point is yet again another reason why this bill should have been subject to the appropriate level of scrutiny from the Legal and Constitutional Affairs Legislation Committee. Now, it raises the question: is it even compliant with the law? That is the point of the case of *Barratt v Howard*.

If the bill does not contain a statutory definition of 'unsatisfactory performance', is it correct—just so I can confirm in my own mind here—that the content of that term is effectively determined by the minister through the performance standards?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:42): Yes, that is correct.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:42): Are those going to be made public then?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:42): No, the government is not required to make those standards public, and that's not our intention. As I have stepped out, the standards are made in relation to each agency or

statutory office holder, because each statutory office holder would have different obligations or different requirements for what 'unsatisfactory performance' would mean.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:43): Again, we're delving more into the secrecy. I don't know what we've discovered here yet. There's nothing in this bill yet that I've had a proper answer to. I don't even know what we're reviewing at this moment, because everything has been done at the whim of a minister. It is a very dangerous transfer of power from the parliament to an executive that has no obligation at all under this piece of obligation to let the public know what is going on. Is there any requirement in the bill for the minister to give reasons for a termination decision?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:44): In regard to the reasons of termination, there's no requirement in the bill. What I would say is it's not unusual for unsatisfactory performance to be a reason for termination, and that's why we've strengthened that, particularly in regard to the Austrade CEO role.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:44): I'm not quite sure how you're strengthening it when nobody in Australia knows what's going on other than the minister. So take me through the procedural fairness obligations that apply in relation to each of the statutory office holders before a termination or, in one case, a suspension decision is made under the bill.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:45): Can you just repeat the first part of the question.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:45): Could you take me through what the procedural fairness obligations are before a termination decision is made or, in one case, a suspension decision is made in relation to each of the statutory office holders.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:45): Thank you, Senator Cash, for that clarification. As I said previously, the bill does not exclude procedural fairness safeguards, and, accordingly, all procedural fairness obligations will apply automatically to the relevant decisions. The bill does not provide for merits review of suspension or termination decisions, which is consistent with Commonwealth statutes. This is because decisions to suspend, appoint or terminate statutory office holders relate to decisions concerning performance of specified functions that require particular expertise.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:45): Is there any requirement in the bill to notify the parliament when one of these statutory office holders is terminated under these provisions?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:46): Again, Senator Cash, there's no requirement in the bill itself, although it would be, I think, particularly unusual for a government not to inform the public of a termination of a statutory office holder—certainly because that statutory officeholder would need to be replaced, and that would be a normal process of government.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:46): How does the termination framework in this bill compare with the protections that exist for other Commonwealth statutory office holders, such as members of the AAT, ASIC commissioners or the Inspector-General of Intelligence and Security?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:47): Appointment and termination provisions are different for numerous Commonwealth entities. You will note in this bill that some of the entities have different provisions we're bringing forward. That reflects the unique nature of some of the roles. You referred, I think, to the AAT—or the ART, as it's now referred to. The provisions do align. That was a very recent introduction—well, not that recent, but the most recent in nature. So there is an alignment there. I couldn't step you through every single Commonwealth entity in the entire Public Service, but, to give you a comparison with ART, I'm advised that there is an alignment of those entities. Again, we're dealing with different provisions for each entity because of the nuanced nature of some of the entities that we're dealing with.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:48): That's just made it—for the benefit of the Australian public—a whole lot worse because the ART is a \$1 billion creation of the Labor government, and what you have now just said is that you actually moved from transparency in relation to the AAT and performance standards to now align with a process and culture of secrecy. So I have to say that alarms me now more than anything.

If I could now just turn to the suspension powers in the bill, what is the threshold that must be met before a minister may exercise the suspension power under the bill?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:49): Senator Cash, as you are aware—I think your question relates to the foreign affairs and trade entities because, under the bill, only suspension provisions are there for those entities. So I'll just address those particular entities. The suspension power is being introduced to enable the relevant minister to suspend the relevant statutory office holder when it is deemed to be in the interests of the agency. The suspension power will be available for the statutory office positions of the CEO of Austrade, the CEO of ACIAR—and I'm sure there's a jazzier way to say 'ACIAR'—and the Director of Safeguards. This is part of a broader effort to ensure that any misconduct can be promptly addressed to ensure integrity and accountability. This will aid in maintaining a safe working environment and protect the public's confidence in the relevant entities' operations.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:50): That wasn't the question that I asked, so I'm going to ask the question again: what threshold must be met before a minister may exercise the suspension power in this bill?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:50): I did answer your question. I referred to the interests of the agency, and that is the threshold that the minister needs to be convinced of. It is to ensure that the best interests of the agency are considered and that that threshold is met before a suspension is considered.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:50): That makes almost no sense at all. What does 'the best interests of the agency' mean? Is the Australian public ever going to understand what factors are actually taken into account, or is it solely at the discretion of the minister of the day to determine what is in the best interests of the relevant agency?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:51): As I said, some of the factors that would be taken into account would be maintaining a safe working environment and protecting the public's confidence. I'm sure you can understand that, if there were an allegation of bullying or, particularly, sexual harassment or something that would not be in line with the APS code of conduct, in the interests of the agency, a suspension would be considered. It is a power that gives the minister the ability to suspend the statutory office holder, initially only for three months, if it is in the interest of that entity, as I said. Perhaps to pre-empt future questions, for longer suspensions, appropriate safeguards must be in place and link to formal processes that may be underway.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:52): Is there a maximum duration for a suspension under the bill? You've said 'three months'. But is there a maximum duration that the suspension can be in play for?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:52): Under the bill, the maximum extension would be for up to 12 months.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:52): And what procedural fairness obligations apply before a suspension is imposed?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:52): As I said for the previous question, this bill doesn't remove normal procedural fairness processes. They would be the ones that apply for any suspension consideration.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:53): Given that you're removing transparency, which you say the bill doesn't remove, is there therefore a section in black and white that actually refers to the procedural fairness obligations?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:53): This bill seeks to amend the legislation relating to four separate entities. There's no specific stepping out of procedural fairness processes. They would be the normal procedural fairness processes that would apply through any administrative process through the Commonwealth.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:53): Is it correct that the bill requires public notification by way of gazettal when the Director of Safeguards at ASNO is suspended?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:54): Again, we're getting into this territory of Senator Cash asking questions about what's in the bill, which she has read. There is no requirement for that to be gazetted, as you've requested.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:54): I'm a little confused. I'm asking questions about a bill that I've read, yes. That's exactly right, and so far in relation to each of my questions

all you've confirmed is a culture of secrecy. That is why I'm asking the questions. That is what a committee stage in the Senate is all about, or it was about until you decided to bypass most of them. I just need to understand this now. Are you saying there is no requirement, no public notification by way of gazette, when the Director of Safeguards at ASNO is suspended?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:55): You're asking the same questions, and I've said no.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:55): So there's none. Okay. That's fine. Can you then take me through—is there any public notification requirement in the bill for the suspension of the CEO of ACIAR, Austrade or the parliamentary counsel?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:55): As you're aware, there's no suspension requirement for OPC, the Office of Parliamentary Counsel. Apologies, I think there was an initial entity that you asked about. Could you repeat that first part of the question?

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:56): Perhaps the easier way to do it is to ask: are there any public notification requirements by way of gazette in the bill when someone is suspended?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:56): No.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:56): No? There's none. If I could just turn now to the Office of Parliamentary Counsel and the directions power that is now provided in this bill, what type of matters may be the subject of a general direction issued by the Attorney-General to the Office of Parliamentary Counsel under the bill?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:57): The intention of including a ministerial directions power in the OPC act is to allow the Attorney-General to direct OPC to ensure that drafting resources are being directed to the highest legislative priorities of the government and to enhance delivery of the government's legislative priorities. Any direction issued will be of a general nature and will be required to be issued to OPC in writing. It is expected that any direction relating to allocation of drafting resources to legislative priorities will be informed by decisions of the Parliamentary Business Committee of Cabinet.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:57): Can I take you to part 3(10)(a) and (b) which says:

(10) If the Minister:

- (a) suspends the appointment of the Director under subsection (1); or
- (b) extends a period of suspension under subsection (4);

the Minister must publish notice of the suspension or extension.

You've just given evidence that there is no requirement to do this.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:58): Which entity are you referring to?

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:58): Part 3, Director of Safeguards, division 1 suspension of employment, Nuclear Non-Proliferation (Safeguards) Act 1987.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:58): My answer previously—and I appreciate we are going back and forth quite quickly—was in relation to OPC. There's no suspension provision that's been included for the Office of Parliamentary Counsel. If your question relates to the director from part 3, I can seek advice about that.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (13:59): My exact question was: is it correct that the bill requires public notification by way of gazette when the Director of Safeguards at ASNO is suspended? I don't know how I mentioned Office of Parliamentary Counsel. I'm reading it word for word from my list of questions.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (13:59): To clarify, I think we were talking about two agencies at the same time. We have set the record straight on the Office of Parliamentary Counsel. The reference that you make is a reference in the bill to making the suspension public; my answer was about it being gazetted. The bill doesn't set out how the suspension would be made public.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:00): But it does need to be made public. Can I go back to the question that followed, because, based on the answer, we've now changed the answer to ASNO. Is it correct that no equivalent public notification requirement exists for the suspension of the CEO of ACIAR and the CEO of Austrade?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:00): The requirement to make public the suspension for the director relates to the regulatory environment or the regulatory community that it relates to. That doesn't exist for the CEO of Austrade or ACIAR.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:01): That's the policy rationale behind it? Okay. I will go back to the general directions. Is there an exhaustive definition of what constitutes a general direction under the bill, or is the power an open-ended power in relation to the ability of the minister or the Attorney-General to issue a general direction to the Office of Parliamentary Counsel?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:01): In regard to the Office of Parliamentary Counsel—just because we are jumping around a little bit, I'm just confirming that that question is about the Office of Parliamentary Counsel and the direction that would be issued—as I said, it would be of a general nature. It does ensure that the Office of Parliamentary Counsel would not be required to comply with a direction to the extent that it relates to the First Parliamentary Counsel's performance or exercise of their powers under the Public Service Act and the Public Governance, Performance and Accountability Act. That safeguard ensures that any directions would be consistent with the First Parliamentary Counsel's statutory responsibilities as OPC's accountable authority and agency head.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:02): Is this the first time that there has been a legislative power for the Attorney-General to issue a general direction to the Office of Parliamentary Counsel under the bill?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:03): Yes, Senator Cash, this would be a new provision.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:03): Can you confirm, then: in terms of the general nature, is there anything in black and white that says, 'These are the parameters for the minister'? It's very dangerous, this power. This is the Office of Parliamentary Counsel. They are actually an independent body. So is there anywhere we can look to in this legislation that says to the minister, 'It's a very serious power; you are now directing an independent body, so you can only give a general direction'? Is it an open-ended power? Is there anywhere that sets out the exact criteria that the minister has to look at?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:04): As I've said previously, Senator Cash, and as you would be aware, under new section 3A, subsection (1), the minister may give direction to the Office of Parliamentary Counsel about the performance of its functions, but a direction under subsection (1) must be of a general nature only.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:04): When courts seek to interpret legislation, they look to a number of sources, as you know. One of those sources is obviously what we're talking about now. At this point in time, we have not given the courts any further guidance in relation to what a general direction is. I'm happy to accept if a general direction is an open-ended direction at the discretion of the minister. I'll accept that as the answer. I'm not going to agree with it. I think it's an incredibly dangerous path to walk down, given that this is a new section. This is the first time the Attorney-General has been, in black and white, given the legislated ability to provide a direction. But it's not good enough to say to the Senate, 'Well, it says a general direction.' What is a general direction? Are there any parameters at all surrounding what a general direction is? How will the Attorney-General know if they have indeed overstepped the mark?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:05): As related to my previous answer, Senator Cash, as I've said, the direction must be of a general nature. If you read section 3A, you will note that the direction must relate to the performance of OPC's functions as outlined in section 3 of the OPC act, so the general direction relates to those functions. These functions cover drafting proposed laws, amendments and subordinate legislation, as well as publishing current and proposed laws. So the general direction would relate to those functions as outlined in the OPC act.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:06): Can a general direction then address the internal processes or methodologies used in drafting legislation?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:06): As I've said, the direction must be of a general nature only.

I think we all have a lot of respect for the Office of Parliamentary Counsel, and the word 'only' is very specific here in this legislation. It ensures that the general direction must only relate to the performance of OPC's functions as outlined in the act. As I've said to you, that means that the direction can only relate to drafting proposed laws, amendments and subordinate legislation, as well as publishing current and proposed laws. A direction of a general nature could not be specific to, for example, a type of technology that might need to be used. What we have sought to do is to ensure that, as I said in a previous answer, the OPC will not be required to comply with the direction to the extent that it relates to the First Parliamentary Counsel's performance and exercise of powers under the acts that they are required to comply with.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:07): How many directions is the minister able to give to the Office of Parliamentary Counsel?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:08): The power is not constrained to one particular direction.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:08): Is it correct that the directions issued under this power are not legislative instruments?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:08): Yes.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:08): Is it correct that there is no requirement in the bill for these directions to be tabled in either house of parliament?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:08): There's no requirement that the ministerial directions be tabled in parliament.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:08): Will the minister be in any way, shape or form ever advising the parliament or the Australian public that they have issued only—to quote you—a general direction to the independent Office of Parliamentary Counsel?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:09): The legislation does contemplate this scenario. The OPC will receive the direction in writing, and the Attorney-General will have discretion to publish or give notice of any direction in any manner the Attorney-General considers appropriate. For example, the Attorney-General may decide to table a direction in parliament or to require, for example, OPC to publish the direction on its website.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:09): You referred to the discretion of the Attorney-General. Does that also mean that the Attorney-General has the discretion to not have this published?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:09): The legislation says the Attorney-General 'may publish' the notice.'

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:10): Again, can I just confirm that the discretion you have referred to also means that, yes, they may decide to but, within this bill, there is no requirement for the Attorney-General to have this published? They don't have to. You mentioned the word 'discretion' in relation to the Attorney-General. So there is no requirement in the bill that actually says, 'Within five days, you have to advise the parliament and the people of Australia that the Attorney-General has indeed issued a general direction to the Office of Parliamentary Counsel'?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:10): I answered that question; I think it's been repeated there. For further clarification, it is appropriate that there is no blanket obligation to publish a direction, as there may be circumstances in which a direction relates to confidential matters.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:11): Does the direction have to be in writing?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:11): Yes.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:11): Given the government is so big on transparency and they're just general directions—as you've said, they're only general directions—will the government commit to publishing all directions issued to the OPC and tabling them in the parliament within five days of issue?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:11): The government will commit to complying with this legislation, if passed by the Senate, which allows the minister to publish those notices at the discretion of the Attorney-General.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:11): Well, I'm going to take a wild guess here that we're never going to see one of these directions. When were the Office of Parliamentary Counsel first consulted on these provisions?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:12): I do know that there was consultation undertaken with key Commonwealth stakeholders on the development of the framework, including the Department of Foreign Affairs and Trade, the Australian Public Service Commission, the Department of Finance and the Department of the Prime Minister and Cabinet. Affected entities, including the Office of Parliamentary Counsel, were also consulted.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:12): When you say the Office of Parliamentary Counsel were also consulted, when were they consulted, and were they consulted specifically in relation to the introduction—and you've said it's a new law—of a ministerial directions power?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:13): All affected entities were consulted. That was my answer to you. They were consulted on the bill—all of what is in the bill. We're in a particularly strange situation—I think you would agree, Senator Cash—where the nature of the Office of Parliamentary Counsel means they would have actually seen this legislation in its draft form because of the nature of the work that they do. But there was consultation with all of the agencies affected about the provisions in the bill.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:13): This will be going for a little while, so can you undertake to find out on what dates the Office of Parliamentary Counsel were consulted? In particular, I want to know—it's one thing to be responsible for drafting legislation. That means nothing. That doesn't mean you've been consulted on it. Were they consulted, and did they indeed support the introduction of a ministerial directions power?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:14): I've answered the question in regard to consultation. I can undertake to find out whether there's a date available to us for you.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:14): Is there any provision in the bill that expressly prohibits a general direction from addressing the prioritisation, scheduling or sequencing of drafting work?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:14): As I've said, it's a general direction and relates to the functions of the Office of Parliamentary Counsel. That includes the drafting of legislation.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:14): Just to confirm then, there's nothing in the bill that expressly prohibits a general direction from addressing the prioritisation, scheduling or sequencing of drafting work so that the Attorney-General actually can therefore issue a general direction in relation to what they should prioritise, what they should schedule and what they should sequence by way of their drafting work?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:15): Just to clarify, the First Parliamentary Counsel is responsible for prioritising the legislative work of the Office of Parliamentary Counsel, so that's why the direction is of a general nature, and the question you're asking in relation to prioritisation of legislation would be a matter for the First Parliamentary Counsel.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:15): Can I confirm then that there is no ability, therefore, for the minister to issue a general direction in relation to or to the First Parliamentary Counsel regarding the prioritising, scheduling or sequencing of drafting work and that will solely sit with the First Parliamentary Counsel as to how they will prioritise work?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:16): Again, the direction would have to be general in nature only, and the Attorney-General would only be able to give a direction of general nature. That's what I've said to number of your questions, and it relates to the one you've just asked me.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:16): We are no further down the path in relation to understanding what a general direction is and what it can actually do and who needs to follow it. Can a general direction require OPC to adopt particular drafting conventions, standard clauses or template provisions?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:17): No. That's a matter for the First Parliamentary Counsel.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:17): Can a general direction require OPC to report to the Attorney-General on its workload, including the volume and subject matter of work?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:17): This ministerial direction that we are discussing, which is part of this legislation, again, would be of a general nature only, but, of course, the Attorney-General could, from time to time, request that information outside of a ministerial direction.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:18): Can I have you confirm for me, in relation to the role of the OPC, whether they provide confidential drafting services to non-government senators and members.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:18): The Department of the Senate and the Department of the House of Representatives provide drafting for, as you referred to, non-government senators and House of Representatives members. That is separate to the function of the Office of Parliamentary Counsel, and there are separately funded staff. What may happen, from time to time, as you would be aware as a former attorney-general, is that the OPC may second parliamentary counsel officers or drafters into the Department of Senate and the Department of the House of Representatives to perform those functions.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:19): If they are seconded, is the Attorney-General able to issue a ministerial direction to them?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:19): No. The direction is to the Office of Parliamentary Counsel. As you would know, if Office of Parliamentary Counsel staff are seconded, they would be at the direction of the Department of Senate and the Department of the House of Representatives.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:20): Can I now turn to ASNO and, in particular, the independence of this particular body. Does the government accept that independence of the Director of Safeguards is critical to Australia's compliance with its international nuclear safeguards obligations, including under the Treaty on the Non-Proliferation of Nuclear Weapons and Australia's safeguard agreements with the IAEA?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:20): Effective independence is a requirement.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:20): Is that the policy rationale behind why the bill does not include unsatisfactory performance as a grounds for termination of the Director of Safeguards?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:21): That is correct.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:21): Given you've agreed that that is the policy rationale behind the noninclusion of unsatisfactory performance as a grounds for termination of this particular director, does the government therefore accept that the exercise of a suspension power, which can strip the director of their functions and sideline the regulator's leadership, could in practice achieve the same outcome as a termination—namely, the removal of an independent regulator from their role. The evidence that you've previously given in relation to a suspension is that it could be for up to 12 months.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:21): Of course, suspension and termination are two different things. The suspension power, as we've stepped through previously, is required to ensure that, if there is a risk to the integrity of the entity or to the workplace—a particular hypothetical example would be where there are allegations of sexual misconduct and so forth. That suspension would be required. Of course, in that circumstance, there would be a director acting in the role, and, as we've stepped through before, that suspension would be publicly notified.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:23): Is this the first time that a suspension power in relation to this particular director has been put into legislation?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:23): Yes.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:23): Given the independence of this particular agency and also the international obligations in relation to it, credibility is of the utmost importance in relation to the Director of Safeguards. Did the government consult with the IAEA or any of Australia's defence partners et cetera regarding the introduction of a ministerial suspension power over the Director of Safeguards?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:23): To be clear, the Director of Safeguards does require a high level of independence, given their responsibility for the regulation of nuclear nonproliferation in Australia. There is no introduction of termination on the grounds of unsatisfactory performance for the director so as to avoid any suggestion of interference in the regulator's independence. The government recognises that this solution best serves the commitment to ensure that there is accountability and integrity and delivery but also the independence of the agency.

You asked me whether there was consultation. As I mentioned before, there was consultation with the Public Service and with ASNO. There was no specific consultation with the international agency that you mentioned, but the specific agency was consulted.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:25): Given the admissions in relation to the importance of independence for the Director of Safeguards, with the international credibility issues in particular, what safeguards exist in the bill to prevent suspension—which your evidence is you can actually be suspended for up to 12 months—being used to undermine ASNO's operational independence at a time when Australia's nuclear safeguards credibility is directly relevant to the AUKUS partnership?

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:25): Senator, I've stepped you through the safeguards within the bill, which does not introduce grounds for unsatisfactory performance for termination. In regard to suspension, as I have mentioned, it is in relation to ensuring that there is a safe workplace—an incredibly important thing for an agency of this nature. We did consult with ASNO in relation to the provisions in this bill. Again, we are very committed to the independence of this agency and its importance. We're also committed to the accountability and integrity of people who hold high office in this country, and that includes the director.

Senator CASH (Western Australia—Leader of the Opposition in the Senate) (14:26): I have to say that everything we have learned in the committee stage completely justifies the reason that the coalition will not be supporting this bill. It is one thing to support sound governance and appropriate accountability, but I have to say that accountability on behalf of the Australian people must always be accompanied by transparency, and this bill does nothing more and nothing less than increase executive power.

It's very dangerous when a government that hates transparency takes things away from the parliament and gives it to a minister without appropriate oversight. Unfortunately, this bill does nothing more and nothing less than expand executive influence. It limits guaranteed parliamentary visibility in key areas, and it does so, sadly, as I said, without being given the level of scrutiny that it should have been given. In the interest of time—we're about to hit a hard marker—as I said, I'm very glad that we had this Q&A, because it's totally justified that this is nothing more and nothing less than a ministerial grab for power.

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:27): Senator Cash, the OPC was consulted on 23 December.

Bill agreed to.

Bill reported without amendment; report adopted.

Third Reading

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:29): I move:

That this bill be now read a third time.

The PRESIDENT: The question is that the bill be read a third time.

The Senate divided. [14:33]

(The President—Senator Lines)

Ayes.....36
 Noes.....25
 Majority.....11

AYES

Allman-Payne, P. J.
 Chisholm, A. D.
 Darmanin, L.
 Faruqi, M.
 Grogan, K. (Teller)
 Lines, S.
 Mulholland, C.
 Pocock, B.
 Sheldon, A. V.
 Steele-John, J. A.
 Tyrrell, T. M.
 Watt, M. P.

Ananda-Rajah, M.
 Ciccone, R.
 Dolega, J.
 Ghosh, V.
 Hanson-Young, S. C.
 McAllister, J. R.
 O'Neill, D. M.
 Pocock, D. W.
 Shoebridge, D. M.
 Sterle, G.
 Walker, C.
 Whish-Wilson, P. S.

Brown, C. L.
 Cox, D.
 Dowling, R.
 Green, N. L.
 Hodgins-May, S.
 McKim, N. J.
 Payman, F.
 Polley, H.
 Smith, M. F.
 Stewart, J. N. A.
 Waters, L. J.
 Whiteaker, E.

NOES

Askew, W.
 Blyth, L.
 Cadell, R. P.
 Chandler, C.
 Hanson, P. L.
 McKenzie, B. G.
 Paterson, J. W.
 Scarr, P. M.
 Whitten, T.

Babet, R. D.
 Bragg, A. J.
 Canavan, M. J.
 Collins, J. (Teller)
 Henderson, S. M.
 McLachlan, A. L.
 Roberts, M. I.
 Sharma, D. N.

Bell, S.
 Brockman, W. E.
 Cash, M. C.
 Duniam, J. R.
 McDonald, S. E.
 O'Sullivan, M. A.
 Ruston, A.
 Smith, D. A.

PAIRS

Ayres, T.
 Farrell, D. E.
 Gallagher, K. R.
 Lambie, J.
 McCarthy, M.
 Walsh, J. C.
 Wong, P.

Colbeck, R. M.
 McGrath, J. A.
 Liddle, K. J.
 Antic, A.
 Nampijinpa Price, J. S.
 Kovacic, M.
 Hume, J.

Question agreed to.

Bill read a third time.

The PRESIDENT (14:35): We will now move to two-minute statements.

STATEMENTS BY SENATORS

Miners' Promise

Senator McDONALD (Queensland—Deputy Leader of the Nationals in the Senate) (14:35): Is there a time that is more important for Australians to look after each other than at a time of tragedy and loss in your family? Between February 2022 and February 2026, Australia's mining resources sector has recorded 26 fatalities, and so far this year five Australians have lost their life in the mining resources sector: Jeff Palmer, from Queensland; Steve McDonald, from Queensland; Ashley Schultz, from Queensland; Matthew Middlebrook, from the Northern Territory; and Simon Mukwarami, from Western Australia.

It is the organisation Miners' Promise who have come to the aid of these families, who have provided a complete wraparound for the families of these men who have left behind children, wives, partners. These are the people who, at their time of need, have been supported by Miners' Promise. It is this devastating time when families and loved ones are left to grapple with the idea of never seeing their loved ones again. There's the unprecedented volume of decisions, funeral planning, phone calls and emails and the broadcasting of their loss all over social media—and that's when Miners' Promise stands up.

For 15 years Miners' Promise has been providing compassionate care, essential liaison and advocacy, trauma informed emotional support, grief counselling and, most importantly, the practical assistance that supports these mining families who have been affected by workplace death, suicide, life-changing injuries and sudden crisis events. Unlike traditional employee assistance programs, Miners' Promise works through what it describes as a companion model of care, supporting families for as long as they need it. I am a proud patron of Miners' Promise, and I request everybody look to see how they can support this organisation.

Albanese Government

Senator GREEN (Queensland—Assistant Minister for Tourism, Assistant Minister for Pacific Island Affairs and Assistant Minister for Northern Australia) (14:37): Thank you, Senator McDonald, for that representation, which is so important to regional Queensland.

Last week I went home—I'm sure everyone can agree it was great to get out of Canberra—to Queensland. I travelled across North and Far North Queensland. I was proud to open two Medicare urgent care clinics, one in Mackay and one in Cairns. I joined the member for Leichhardt, Matt Smith, in welcoming a new 100 per cent bulk-billing clinic to Far North Queensland. I spoke to Andy in Townsville who's saving money—he's now actually in credit with Ergon—after installing a battery at his home late last year thanks to the government's rebate. And in Mackay, I met with a local pharmacist who spoke about the real impact that cheaper medicines is having on his patients, particularly the \$7.70 script for concession cardholders, and how that's making a real difference, particularly for people on fixed incomes.

All of these measures, whether it's cheaper batteries or cheaper medicines or more bulk-billing or more urgent care clinics, are squarely focused on cost-of-living relief for everyday Australians. We know there is a stark difference in this place when it comes to cost-of-living relief. The Liberals and the Nationals have opposed every single cost-of-living measure that we have brought into this parliament. They went to the last election promising that, if they were elected, not only would they rollback this relief they would raise taxes and they would cut frontline services. We now know that they would have a willing partner in One Nation because One Nation voted against same job, same pay, the three-day childcare guarantee, affordable housing—the list goes on. A vote for One Nation is a vote for the Liberal and National parties to cut cost-of-living relief for everyday Australians. *(Time expired)*

Gas Industry: Taxation

Senator WATERS (Queensland—Leader of the Australian Greens) (14:40): Last week, I wrote to the Prime Minister to offer the Greens' support for a minimum 25 per cent gas export tax. With the Greens in the Senate, there are the numbers to pass a gas export tax. The majority of Australians want it, so where is it?

Gas corporations are making eye-watering wartime profits while ordinary people are paying the price of this illegal war. A 25 per cent tax on gas exports would generate around \$17 billion annually. That's \$17 billion in revenue that could be used to deliver urgent cost-of-living relief, like making public transport free for the duration of the fuel crisis, which would help people in the cities and free up fuel for farmers in the regions. Labor must prioritise people over corporate profits, and we would support them to do that by passing a gas tax this sitting fortnight.

While Trump and Netanyahu unleash chaos across the Middle East, fossil fuel companies are making massive profits. Our government needs to stand up to the big corporations and their obscene profiteering and their price gouging off people's pain and of destruction. Instead, the government is flagging a crackdown on electric vehicles in a fuel crisis! Why on Earth are the Treasurer and energy minister looking at ways to slow down the transition from imported oil? Why deter the cleanest and cheapest cars to run available to Australian motorists right now? We should be looking at ways to incentivise EV uptake and make them cheaper so that people can afford one, not making them more expensive in a fuel crisis.

If this illegal war has taught us anything, it's that we need our own reliable fuel sources, and the most reliable source is clean alternative fuels and renewable energy. The sun and the wind are not going through the Strait of Hormuz. We need renewable energy independence.

Defence Industry

Senator BLYTH (South Australia—Deputy Opposition Whip in the Senate) (14:42): I recently visited two key Defence sites in Western Australia. Australian industry is key to supporting our nation's naval capabilities, sovereign defence and mining infrastructure. Civmec's Henderson facility is the state's largest manufacturing hub, and it's the only integrated steel shipyard—one of just two in Australia, the other being in the government owned Osborne Naval Shipyard in my home state of South Australia. Civmec's facilities include automated welding systems, blast and paint, and an assembly hall capable of hosting four frigates simultaneously. It's the largest ship consolidation

hall in the Southern Hemisphere. Labor has committed the Australian taxpayer to investing \$12 billion over 20 years to transform Henderson into a world-class shipbuilding and submarine hub.

I'd like to see Australia become the shipbuilding nation for the globe, but capability is not just about facilities; it's about whether the inputs needed to sustain capability are secure, competitive and reliable. Across defence industry, we remain heavily reliant on overseas supply chains for critical components and materials. Those inputs are often moving through long and very complex and increasingly contested global routes.

In a country that exports vast quantities of raw materials, we are sending resources offshore only to buy them back in processed form to support our own defence and manufacturing assets, because it is too expensive to process those materials here, with high power prices and rigid IR settings. Sovereign capability means more than assembling assets locally. It means having full control over the chain of materials, processing, manufacturing and sustainment.

Ramadan

Senator DARMANIN (Victoria—Deputy Government Whip in the Senate) (14:44): The holy month of Ramadan concluded last week, but I wanted to acknowledge my thanks to the local community. I had the privilege of being invited into the home of Zak, Fisun, Mirza, Shavaal and her friend Palma for iftar. Thank you for so generously opening your home for my husband, Luke, and I to share food and have meaningful conversations. It was deeply special. It reminded me of the values that I was raised with. My dad always instilled in me the importance of welcoming others in and making space for people to feel they belong, and, importantly, around the good food of our family's heritage. Today, as it happens, it's my dad's birthday, so it feels especially meaningful to reflect on that and to say: happy birthday, Vincenzo!

I also want to acknowledge Ahmet and the Australian Intercultural Society in celebrating the heritage and culture of Australian Muslims and bringing us together. The work that you do to create connection and to stand against Islamophobia is so important. Unquestionably, this has been a challenging time for our diverse communities particularly as we mark Harmony Week and the International Day to Combat Islamophobia. For me, these are not just days on the calendar; they are days that ask something of us. They ask something of all of us. They remind us of the work that we can all do in fighting racism and that it is not someone else's problem. Let us all think about what this means for all of us in here as leaders—to show leadership. Let us all lead. Let us all act to stamp out racism in our communities wherever we see it and wherever we find it and to build trust, respect and community. Diversity is our strength, and those who've brought their cultures here from other countries have enriched all of us in ways that we should all be really proud of.

Gambling Advertising

Senator DAVID POCOCK (Australian Capital Territory—Independent ACT Whip) (14:46): Today marks 1,000 days since the landmark Murphy report was tabled in the parliament. I want to start with a personal reflection. Over the last six months to a year, I've been at a number of events, weddings and birthdays where young men have asked if they could have a quick chat to me in private and they've opened up about their struggle with gambling—their losses, the shame that they have felt with an addiction that they don't feel like they can talk about publicly, what that's doing to them and then how damn hard it is to actually deal with it when they're getting bombarded with ads. I come away with sadness and anger—anger that we as a parliament have failed on this. The Albanese government has failed Australians when it comes to banning gambling advertising. A thousand days ago, you were given the blueprint—a bipartisan-backed report saying, 'This is what we need to do.' Yet we have a prime minister who won't even meet with young women like Kate, who found her brother's body after he committed suicide. He won't meet with her. He's doing the bidding of Peter V'landys and the gambling industry. It is shameful. It is totally shameful. All the things we were warned about in the Murphy report are now happening. The gambling companies are branching out. They're targeting women, and it's thanks to the research at Deakin University that we now know that they are targeting young Australian women, saying: 'This is about empowerment. You can gamble too. Gambling's normal. We should all be able to gamble.' This has to end. The Prime Minister needs to actually stand up and act.

Lunar New Year

Senator BRAGG (New South Wales) (14:48): One of the great things we're able to do in these roles is engage deeply across our communities. On 27 February, I was able to meet with members of the Chinese Australian community at the Haymarket Chamber of Commerce. The Haymarket Chamber of Commerce does an annual new year function. This year, the Year of the Fire Horse, there was a magnificent banquet dinner. I've often said when I'm able to visit with members of the Chinese Australian community that they are the hardest working and least complaining of all the great diasporas across the Australian community—although I'm sure there may be some competition and that may be somewhat controversial. Nonetheless, I stand by my position that they are extremely hardworking, loyal and patriotic Australians who are generally very industrious. So it was a magnificent feast as

always, and we were able to come together with all members of parliament from across the spectrum. I was able to be there with the opposition leader, Angus Taylor. I'd say that this is one of the best events that is held around Chinese New Year in Sydney because it's central. It's in the centrepiece of the cultural enclave, if you like, of Chinese Australia in Sydney, down there in Haymarket. I want to acknowledge Vincent Lim, who does a great job each year in hosting the banquet; of course, the Chinese Australian Forum, which has supported the dinner; and my old friend Simon Chan, who was former president of the Chinese Australian Forum and has now gone on to bigger and better things.

Workplace Relations: Kentucky Fried Chicken

Senator O'NEILL (New South Wales) (14:50): I know it's a little past lunchtime, but I want to talk about KFC, and I don't mean the old version of 'Finger lickin' good' KFC. I mean the current version of the employer—perhaps not of choice but of necessity—for many young Australians who've been working at that cultural institution that's now nearly 70 years old in our country. Young people have gone there to do their best days of work and, sadly, have been taken for granted.

In Australia, fair work is not a slogan. It's a standard that we have to defend. In every franchise, in every suburb and in every state, KFC should have fulfilled their proper responsibilities, particularly when they have so many young workers. Last week, we saw an important monumental outcome in holding employers like KFC to account. The large multinational has agreed to pay almost \$29 million to thousands of current and former staff who were not provided breaks during shifts. This matters. It really matters. If they are your conditions at law in this country, there is no set of rules that allows a greedy employer to exploit young people. Just imagine the conversation going on. 'No, you're not entitled to your break.' That, on occasion, is one thing, but, when it becomes an institutionalised practice of a business, it is totally shameful.

The admission that has led to this agreement to pay \$29 million for the unprovided breaks during shifts would never have been achieved without the tireless work of the SDA union, under the leadership of Gerard Dwyer, standing up for young workers against employers who think they have an entitlement to skirt the laws of the country. This class action not just is a win for workers but shows the power of collective action, and so often that is undermined by people who are sitting on the other side of this chamber.

Discrimination

Senator STEELE-JOHN (Western Australia) (14:52): A new survey by the Australian HR Institute shows that disability discrimination in hiring practices is alive and well in 2026. Over 600 business leaders and senior HR decision-makers were surveyed. The findings revealed that 16 per cent would not hire someone who reported being neurodivergent. Nineteen per cent would not hire somebody with a disability. Twenty-eight per cent would not hire someone with a chronic illness. Thirty-two per cent admitted they would not hire someone with a history of mental illness.

When people disclose information about their health or their disability in a hiring process, it is usually because they have been asked to disclose. They are answering in good faith. These questions are often framed as support and as inclusion, but the reality is often something very different. For too many employers, these questions aren't about making sure that work is accessible; they're about deciding who not to hire. That gap between what is said and what is done is where discrimination lies, and this is why we hear so many disabled people say that they are increasingly choosing not to disclose their access needs.

We hear a lot about diversity and inclusion in workplace values, but, behind closed doors, the old stereotypes persist. It is why we need stronger accountability—a stronger Disability Discrimination Act—and that is what is being called for by the Disability Discrimination Commissioner. It is a call the Greens have long supported and echo today because, without legislative change, this discrimination will continue.

Housing

Senator PAYMAN (Western Australia—Australia's Voice Whip) (14:54): I want to speak to a disconnect in this country that Australians are feeling in their bones. At a time when families are cutting back on groceries, delaying rent and choosing between fuel and food, we learned that the Governor of the Reserve Bank, Michele Bullock, has purchased a \$2 million beachside property, settling on the very same day that interest rates were raised yet again. Now let that sink in.

In my home state of Western Australia, the median house price has now reached a million dollars. For many, the dream of homeownership isn't just slipping away; it's already gone. Young people are locked out. Families are stretched to breaking point. And what do they get in return? Higher interest rates; higher repayments; higher stress. We're told this is necessary—that Australians must tighten their belts; that unemployment may need to rise—but for whom? It certainly isn't the people at the top who are feeling the pressure. While households are doing everything

they can to stay afloat, fuel prices are rising, supply shortages are driving up costs and the cost-of-living crisis deepens. Yet the burden continues to fall on everyday Australians. This isn't about one property purchase; it reflects the systemic wealth inequality and the disconnect between those making the decisions and those living with the consequences.

If the minister for property investors, Clare O'Neil, is serious about fixing the housing crisis, then she needs to shift her focus from protecting billionaires to helping first home buyers. She should look at closing investor tax loopholes like negative gearing and the capital gains tax discount—

The ACTING DEPUTY PRESIDENT (Senator Sharma): Senator Payman, we have a point of order here from Senator McAllister. Senator McAllister, your point of order?

Senator McAllister: The point of order is on the courtesies that we extended people in the other place. Ministers should be referred to by their correct title.

The ACTING DEPUTY PRESIDENT: Yes, that's correct, Senator McAllister. Senator Payman, if you can please keep that in mind as you continue your remarks—

Senator PAYMAN: while increasing the supply of social and affordable housing. Australians deserve better. They deserve leadership that understands their reality and gives them a real shot at homeownership.

Fuel

Senator McKENZIE (Victoria—Leader of the Nationals in the Senate) (14:56): As a matter of urgency, the Albanese government needs to immediately consider the nation's biofuels industry as a practical means of mitigating fuel shocks and a buffer for Australia's fuel security. The Albanese government has delayed action on biofuels for years, with various consultations held by the transport minister, Minister King, failing to result in the development of a national biofuels or low-carbon liquid-fuel strategy.

The federal government needs to put this on the agenda of their next National Cabinet. We already have two states, New South Wales and Queensland, who have ethanol mandates in place. It is absolutely this moment in time when we should be actually sourcing cleaner fuels, increasing them in our fuel supply chain, rather than relying on the government's relaxation of sulphur levels in fuel supply, letting dirtier fuels into our supply chain.

For more than 25 years, biofuels have contributed to Australia's fuel use in petrol and diesel cars, and industry has benefited. So I am calling on Chris Bowen to take the lead and take this to National Cabinet. The blame game on this fuel crisis between states and territories and the federal government needs to stop.

The Labor Party appointed a fuel tsar. Sorry, Minister Bowen; you actually are in control at this time. Ms Harris is a climate warrior. She's currently reviewing the Water Act. She has no expertise in logistics. During another similar crisis, of COVID, the former government appointed a logistics expert, Lieutenant General Frewen. That's what we need right now: to make sure that the fuel gets to where it's needed. Go to nofuelhere.com.au.

Competition and Consumer (Industry Codes—Cash Acceptance) Regulations 2025

Senator ROBERTS (Queensland) (14:58): One Nation has submitted a motion to disallow Labor's Competition and Consumer (Industry Codes—Cash Acceptance) Regulations 2025. These regulations are dishonestly promoted as mandating cash; yet, in a display of rank deceit, these regulations allow every business in the country to not accept cash, unless they're a supermarket or a petrol station, for amounts under \$500, and then only from 7 am to 9 pm—outside that, to not take cash. There's a further exemption for rural towns without a bank or ATM, which, these days, is most towns. Businesses do not have to take cash.

In the last parliament, the Liberals and Labor tried to ban cash, and were defeated when One Nation and Labor's ethnic branches were opposed. Labor is now trying to sneak in a cash ban through regulation. Chinese and Vietnamese give cash during Lunar New Year. Greeks pin cash gifts to wedding dresses. Labor is wiping out all these beautiful customs—gone! Not only is cash cultural for many Australians; a quarter of our people are digitally excluded, yet the Canberra bubble never understands. When the internet goes down, that figure is 100 per cent excluded from cash. Without cash what are people to do in an internet outage? Is the uniparty of the Liberals, Labor and Nationals beholden to the banks because it accepts huge donations from banks? In 2022-23, Westpac donated \$193,000; the Commonwealth Bank, \$174,000; ANZ, \$91,000; and NAB, \$138,000.

The PRESIDENT: Thank you, Senator Roberts. The time for two-minute statements has finished, and we'll move to question time.

MINISTRY

Temporary Arrangements

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:00): by leave—I advise changes to ministerial arrangements. Senator Gallagher will be absent from question

time today for personal reasons. In her absence, ministers will represent portfolios in question time in accordance with the letter I've circulated to the President, party leaders and independent senators.

QUESTIONS WITHOUT NOTICE

Fuel

Senator CHANDLER (Tasmania) (15:00): My question is to the Minister representing the Minister for Climate Change and Energy, Senator Ayres. Yesterday, Minister Bowen was asked how many service stations in Australia have run out of fuel, and he could not provide a national figure. If the Albanese government is in control of this crisis, why can't you tell Australians how many service stations across the country have run dry?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:01): I'm sure, if you'd buttonholed Minister Bowen on the way in here, he would have told you that we have precisely those figures available. This government has been completely transparent with the Australian people about what is happening. If the question was 'what are they?' then I would have been delighted to answer. Instead, I have a minute and a half to explain what figures we have. If Senator Chandler wants to ask what they are, I'm sure I'd be delighted to support her question with an answer.

It is true, at a national level, both because of the minimum stockholding which did not exist when we came to government and because of the fact that this government has released 20 per cent of the stockholding, that not all of the work has been done, particularly in regional Australia, particularly in some petrol stations like, for example, in New South Wales, where there are 164 petrol stations with no diesel. Overwhelmingly—

An opposition senator interjecting—

Senator AYRES: Well, it's seven per cent. Those petrol stations will be overwhelmingly in regional Australia, and that is where farmers are currently, for example, undertaking winter planting. That is why the 20 per cent additional has been released. It is in order to free up some stockholding, particularly for those independent retailers who have struggled to get hold of that supply in the environment that we're in.

The PRESIDENT: Senator Chandler, first supplementary?

Senator CHANDLER (Tasmania) (15:03): Given what the minister alluded to in his response, what is the national total of how many service stations across this country have run dry?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:03): I'll start in Tasmania, if that assists you, Senator Chandler. In Tasmania, 0.4 per cent—that is, one petrol station—is without diesel. That is a problem; one is a problem. In Tasmania, six petrol stations—that is, two per cent of Tasmanian petrol stations—are without unleaded petrol. Nationally—

Senator O'Sullivan: Give us nationally.

Senator AYRES: I have 60 seconds. Pace yourself, Senator O'Sullivan. At a national level, nine per cent of petrol stations are with one or more grade unavailable—that is, they may have diesel but not have unleaded petrol, or they may have unleaded petrol but not have diesel. That is nine per cent, and what that emphasises is that the government's approach, which I'm sure I'll be happy— *(Time expired)*

The PRESIDENT: Senator Chandler, second supplementary?

Senator CHANDLER (Tasmania) (15:04): Minister, why couldn't you or Minister Bowen provide this information to Australians yesterday?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:04): What the government has done here is provide it on a weekly basis. The minimum stockholding legislation that is in place requires a quarterly update, but, because of the situation that we're in—a weekly update. The purpose of the weekly update is so that Australians understand what there is in terms of the minimum stockholding that is at hand. The message that we are trying to send to the Australian people is not a complacency message—

Senator Nampijinpa Price interjecting—

Senator AYRES: I couldn't be more directly answering—

The PRESIDENT: Senator Chandler?

Senator Chandler: President, it was a very narrowly worded—

The PRESIDENT: Why are you on your feet?

Senator Chandler: Apologies, President. The point of order is on relevance. It was a very narrowly worded supplementary question. I merely want to know why this information wasn't provided yesterday.

The PRESIDENT: I'm aware of the question, Senator Chandler. The minister's being relevant to the question.

Senator AYRES: It's the message that we're sending, which Australians are listening to, about not purchasing more than is required. The feedback that we're getting from petrol stations is that people are overwhelmingly following that advice, because there is confidence that, while this is not a straightforward proposition and requires effort— *(Time expired)*

Trade with European Union

Senator O'NEILL (New South Wales) (15:06): My question is to the Minister for Trade and Tourism, Senator Farrell. I'm sure that I'm joined by everyone in congratulating you on your leadership in that very important portfolio. The European Union is the second-largest economy in the world, with a population of 450 million, boasting a GDP of approximately \$31 trillion as of 2025. Today, the Albanese Labor government announced a free trade agreement with the European Union, which marks the culmination of eight years of complex negotiations. What will this deal with the European Union deliver for Australia and, in particular, for Australian workers?

Senator FARRELL (South Australia—Minister for Trade and Tourism, Special Minister of State and Deputy Leader of the Government in the Senate) (15:06): Thank you, Senator O'Neill. I know you realise the benefits of this new agreement for your great state of New South Wales. I'm pleased to say that yesterday afternoon, on a visit with Maros Sefcovic, we reached agreement on the FTA with the European Union.

Honourable senators interjecting—

The PRESIDENT: Order across the chamber, but in particular on my left!

Senator FARRELL: This is a historic achievement. It's a deal that delivers for Australian farmers, Australian miners, Australian manufacturers, winemakers, service suppliers and many, many more. This government does not do deals just for—

Senator McKenzie: It was a bad deal then; it's a bad deal now.

The PRESIDENT: Senator McKenzie, I've called the chamber to order, and your constant interjecting is disorderly and disrespectful to me and this chamber.

Senator FARRELL: We only do deals when they are in our national interest—outcomes that deliver for all Australians. This is a once-in-a-generation trade agreement with the world's largest economy. It opens access to a market of 27 countries and 450 million consumers, which is a huge opportunity for our world-class producers, farmers, winemakers, businesses and exporters. Lower tariffs on imports from the EU, including what's on the shelf at supermarkets, will create more choices at lower prices and provide some further, welcome relief to those Aussies who are doing it tough right now.

This deal also shows the Albanese government's commitment to a rules based system at a time of global uncertainty. A trade agreement with the EU means that our network of free trade agreements covers almost 90 per cent of the globe. Australia is a trading nation, and we've always been a trading nation. One in four Australian jobs relates to trade. Labor is always delivering for Australian workers, and this historic deal is yet another example of the Albanese government's commitment to growing the Australian economy and ensuring everyone— *(Time expired)*

The PRESIDENT: Senator O'Neill, first supplementary?

Senator O'NEILL (New South Wales) (15:09): Thank you very much for that comprehensive answer, Minister Farrell. The European Union was, until today, Australia's largest trading partner without a free trade agreement. By securing this deal, the Albanese Labor government has made Australia's economy more resilient and our exports more diverse.

Senator Canavan interjecting—

Senator Watt interjecting—

The PRESIDENT: Order! Senator Watt and Senator Canavan, if you want to carry on a discussion, may I invite you to leave the chamber? Senator O'Neill, please continue.

Senator O'NEILL: By securing this deal, the Albanese Labor government has made Australia's economy—

Senator McKenzie: Has sold us down the river—down the Danube.

The PRESIDENT: Order!

Senator O'NEILL: By securing this deal, the Albanese Labor government—

The PRESIDENT: I'm sorry, Senator O'Neill. Senator Wong?

Senator Wong: I would request that Senator O'Neill be able to commence that question again. She was interrupted multiple times by members of the opposition, and I'm sure Senator Farrell would appreciate the full question being provided.

Honourable senators interjecting—

The PRESIDENT: Order! Senator O'Neill, just do the last couple of sentences.

Senator O'NEILL: By securing this deal, the Albanese Labor government has made Australia's economy more resilient and our exports more diverse. How will this trade agreement with the European Union deliver real economic benefits to Australian farmers and miners?

Senator FARRELL (South Australia—Minister for Trade and Tourism, Special Minister of State and Deputy Leader of the Government in the Senate) (15:11): I thank Senator O'Neill for her first supplementary question. This deal delivers for all Australians. It delivers for cattle farmers in Western Australia and the Territory, dairy farmers in Victoria and Tasmania, sugar growers in Queensland, rice growers in New South Wales and winemakers in South Australia. Australians can keep using words like 'parmesan' and 'prosecco' and 'kransky'. Tariffs are removed on dairy and rice. There is 700 per cent more beef access to the European market, 430—

Opposition senators interjecting—

The PRESIDENT: Minister Farrell, I'm sorry. Order! Senator Henderson, I'm not quite sure why you're on your feet, but I called order, so sit down, please.

Senator Watt: You need to count to three!

The PRESIDENT: Order! I can barely hear Minister Farrell—and he is quite close to me—because of the disorder coming from the left. Minister Farrell, please continue.

Senator FARRELL: Wine producers will save nearly \$37 million by not paying tariffs.

Senator Watt: Hear, hear!

Senator FARRELL: Yes, they're good people, winemakers, too. Australian producers of onions, potatoes, carrots, nuts, honey, olive oil, wheat, barley and seafood will benefit by tariff elimination. It's a win for the miners and hardworking Aussies in the resource sector, especially critical minerals.

The PRESIDENT: Senator O'Neill, second supplementary?

Senator O'NEILL (New South Wales) (15:12): The Albanese Labor government is opening valuable new export opportunities and creating more secure, well-paying local jobs through trade. What are the other, broader benefits of this deal with the European Union, including how it will support businesses, strengthen industries and lower costs for Australian consumers?

Senator FARRELL (South Australia—Minister for Trade and Tourism, Special Minister of State and Deputy Leader of the Government in the Senate) (15:13): I thank Senator O'Neill for her second supplementary question. This deal means more choices for consumers and lower prices at the check-out. It means cheaper auto parts, machinery and equipment. The elimination of EU tariffs on critical minerals makes resources exports more competitive. The FTA will help bring more EU investment into Australia. We've made a binding commitment to implement obligations under the Paris Agreement on climate change. This deal recognises the interests of Australia's First Nations people, including for art and intellectual property, and it does more to protect labour rights than any other agreement Australia has ever entered into. It's clear that this is a progressive, once-in-a-generation trade deal that will deliver for all Australians.

Fuel Security

Senator HENDERSON (Victoria) (15:13): My question is to the Minister representing the Minister for Climate Change and Energy, Senator Ayres. Yesterday, you said that you would find the information if you can about exactly what date the government became aware of the six shipments of vital fuel supplies being cancelled. It having been a further 24 hours, can you now tell us when the government became aware?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:14): I should say as well that I'm advised by the minister's office in relation to that nine per cent figure that I used yesterday that the figure today is eight per cent, in relation to Senator Chandler's question. Since the beginning of the crisis in the Middle East, the Minister for Climate Change and Energy has been in daily contact with relevant fuel companies, and they've been sharing with government commercial-in-confidence information, and, in turn, the government has been sharing what it knows with those companies. Over the last couple of weeks, companies have been telling the minister and the government that they've locked in supply until mid-April. What the government won't do is tweet out or release commercial-in-confidence information on a daily basis.

On Saturday, the minister spoke to industry representatives and asked his department to confirm the ships that have been cancelled. In a way that does not breach commercial-in-confidence, the minister provided the information in an aggregate way on Sunday's interview. The opposition could be, in this case—

Senator Henderson: A point of order on direct relevance. My question was when the government became aware of the six cancelled ships.

The PRESIDENT: I'm aware of your question, Senator Henderson, and the minister is being directly relevant to your question.

Senator AYRES: As I've indicated, the information that we've provided is information that we believe is in the public interest in a way that doesn't breach the commercial-in-confidence obligations that the minister has in those discussions. And, as I've indicated, there are two ways that a party of opposition can conduct itself when there's a set of national challenges. One is to hector and to conduct a sort of hyperventilation and—

Senator Paterson interjecting—

Senator AYRES: I think maybe the real grievance politics, Senator Paterson— *(Time expired)*

The PRESIDENT: Senator Henderson, first supplementary?

Senator HENDERSON (Victoria) (15:16): Minister, this is not a matter of something being commercial in confidence; this is in the national interest. Yesterday, when asked whether any further fuel shipments had been contracted, you again said you would try to get that further information. It's been 24 hours. I, again, ask about when you learnt about the six cancelled shipments and whether any further shipments have been contracted. I, again, stress that this is a matter of national interest.

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:17): Senator, I'd just refer you to my previous answer. As I said yesterday, if there's more information that we can provide about when information was provided—I did say, in my previous answer, that, on Saturday, the minister spoke to industry representatives and asked his department to confirm the ships that have been cancelled. But I do say there are two ways of conducting yourself as an opposition when there is a challenge. You can, as Senator Cash says, ask questions. You can provide positive solutions, or you can just continue to degenerate in the way that you have. You can continue to hyperventilate and you can continue to run a negative, carping and partisan campaign, or you can front up in the national interest. There's a first time for everything, I suppose. *(Time expired)*

The PRESIDENT: Senator Henderson, second supplementary?

Senator HENDERSON (Victoria) (15:18): Minister, you have just declined to tell this Senate whether any other shipments have been contracted to replace those that have been cancelled. I would put to you that that is a national disgrace. On the basis that you are refusing to provide that information, please explain to Australians why they are not entitled to that information and, on that basis, how many more days supply Australia currently has.

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:19): Senator, that is—

The PRESIDENT: Senator O'Neill?

Senator O'Neill: There was an imputation of motive that was embedded in that question.

The PRESIDENT: Is there a point of order?

Senator O'Neill: The point of order is that the senator should withdraw imputation of motive.

The PRESIDENT: Senator O'Neill, I did not hear what was said. I don't know which senator you're referring to. I will seek advice from the clerk, but I'm not sure what I can do here. Senator Henderson?

Senator Henderson: On the point of order—I was asking a question about reiterating the importance of the national interest. The minister is the responsible minister in the Senate.

The PRESIDENT: Senator O'Neill thinks an imputation was made. I didn't hear it. The clerk didn't hear it. I am going to invite Senator Henderson, in the interests of the chamber—not on a point of order but in the interests of the chamber—if she thinks she said something—

Senator McKenzie interjecting—

The PRESIDENT: Excuse me, Senator McKenzie! I believe that I'm speaking. My role in this chamber is to make sure debate is respectful, and it's always challenging at question time. I'm not asking for a withdrawal. I'm simply asking that, in the interests of the chamber, if Senator Henderson thinks anything she said was untoward, she withdraw.

Senator Henderson: I'm very happy to rephrase the question to assist the chamber.

The PRESIDENT: No. I've asked you to withdraw.

Senator Henderson: You said that you didn't hear what I said.

The PRESIDENT: Senator Henderson, you are not in a debate with me. I'm well aware of what the question is. Senator O'Neill stood and suggested there was an imputation. I've simply said that, if you believe there was an

imputation, in the interests of the chamber, you can withdraw it. But it is up to you. I don't need the question repeated. If you want to withdraw, you can. If you don't want to, I will call the minister.

Senator AYRES: What I can report is that, in terms of petrol, on 3 March there were 36 days; on 10 March, prior to the minimum stockholding obligation release, there were 37 days; and on 17 March, the most recent figures I have, there are 38 days. That's in relation to unleaded petrol. In relation to jet fuel, there were 29 days on 3 March, 29 days on 10 March—that was prior to the MSO release—and 30 days on 17 March. In relation to diesel, there were 32 days on 3 March, 30 on 10 March and 30 on 17 March. In addition to that, the minister made a fresh announcement today about changing standards in relation to diesel that will free up more diesel in the system. If I get an opportunity to answer another question on this topic, I'll be delighted to help. *(Time expired)*

Middle East

Senator SHOEBRIDGE (New South Wales) (15:22): My question is to the Minister for Foreign Affairs, Minister Wong. Minister, your government was one of the first in the world to support Donald Trump and Benjamin Netanyahu's war in the Middle East. Now that the awful consequences are becoming real for Australians, I have a simple question for you: do you still support this war?

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:23): One of the things that I think it might be useful to remind Senator Shoebridge and the Greens political party of is the actions of the Iranian regime, including the brutal massacring of its own people; the actions of the Iranian regime, including directing attacks on Australians here on Australian soil; the actions of the Iranian regime in sponsoring its proxies, including Hamas and Hezbollah; and the actions of the Iranian regime in sponsoring terrorism around the world. What we made very clear is our support for actions which were designed to prevent Iran from continuing to be a threat to peace and security internationally. I appreciate that you don't agree with that, Senator Shoebridge, but that is the basis of our position. We also made it very clear that we were not proposing to engage in strikes on Iran. I know that's a fact that the Greens political party seek to gloss over—

Senator Shoebridge: I have a point of order. My point of order is direct relevance. My question was simple, and the minister refuses to address it. Do you still support the war? Direct relevance.

The PRESIDENT: Senator Shoebridge, the minister is being relevant to your question. I'll invite the minister to continue.

Senator WONG: What we know is that you seek to generate—

Senator Shoebridge: Answers.

Senator WONG: No, your outrage machine, actually. What you want is an outrage machine to campaign with. It doesn't suit you to talk about the thousands of people the regime has killed. It doesn't suit you to confirm that Australia has said we are only engaging in defensive action. It doesn't suit you to remember that there are tens of thousands of Australians that we are defending as a consequence of the deployment of ADF personnel in the Middle East. You just want to yell at me because these are inconvenient facts.

The PRESIDENT: Resume your seat, please, Minister Wong. Senator Green?

Senator Green: Interjections are disorderly. I cannot hear what the minister is saying.

The PRESIDENT: I have asked for order. I called you, Senator Shoebridge, and I called you, Senator Allman-Payne. I expect there to be silence.

Senator WONG: Senator Shoebridge doesn't like the answers because— *(Time expired)*

The PRESIDENT: Senator Shoebridge, first supplementary?

Senator SHOEBRIDGE (New South Wales) (15:26): Minister, as part of this war, the Israeli government have said they want to turn southern Lebanon into another Gaza. There are hundreds of thousands of Lebanese Australians who are watching their loved ones be displaced and their country be destroyed. Will you oppose this latest Israeli invasion of Lebanon?

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:26): If I can just finish my previous answer—

Senator Shoebridge: No.

Senator WONG: Actually, it's not up to you, Senator Shoebridge. I know you like to tell everyone what to do in this place.

Senator Shoebridge: I have a point of order, which is that the minister is required to be relevant to the question she's been asked. She can't choose her own adventure. The relevance is to the question the minister has just been asked.

The PRESIDENT: Senator Shoebridge, to be fair, the interjections started the minute the minister stood. She has not begun to address the question. I will invite Minister Wong to continue.

Senator WONG: I will get to that, if I could finish my answer without interruption. I give you a commitment I will get to the response on that.

Senator Allman-Payne: You're just making it up!

The PRESIDENT: Senator Allman-Payne, I indicated to you yesterday that I will name you. I've had to call you and call you and call you. You are being absolutely disrespectful to me and this chamber, and I will name you if you won't be quiet. Minister Wong, please continue.

Senator WONG: The point I was making is that Senator Shoebridge and the Greens political party don't like the answer because the facts don't suit the Greens' outrage machine. They don't suit your outrage machine. The fact that they happen to be the truth is an inconvenient fact for you.

In relation to Lebanon, I have been very clear that we are gravely concerned about the expansion of the conflict into Lebanon. We are deeply concerned about the loss of life and the displacement of more than a million citizens, including over 200,000 children. We have announced a further \$5 million in humanitarian assistance to support civilians in Lebanon. We have said a major Israeli ground offensive will only exacerbate the worsening—

Senator Shoebridge interjecting—

Senator WONG: I'm answering your question. *(Time expired)*

The PRESIDENT: Senator Shoebridge, a second supplementary?

Senator SHOEBRIDGE (New South Wales) (15:28): Minister, every day this war and chaos continues, the lives of people here in Australia and across the world get worse. Why is Australia not urgently joining with other middle powers to help end this illegal war by refusing to support any part of US war fighting? Withdraw support from this illegal war from the US and Israel.

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:29): Senator, what I was going to say, which you interrupted and which was a direct response to your question, was that a major Israeli ground offensive into Lebanon will only exacerbate the worsening humanitarian situation in the country. I've said that on multiple occasions, and that is Australia's position.

Senator Shoebridge: I have a point of order.

The PRESIDENT: The minister's finished her response, Senator Shoebridge. Senator Shoebridge, resume your seat, please. Senator Shoebridge, the minister has concluded her answer.

Senator Shoebridge: She refused to even address the question—didn't even pretend—

The PRESIDENT: Senator Shoebridge, come to order or I will name you! You are being disrespectful.

International Relations: Australia and the European Union

Senator DOLEGA (Tasmania) (15:30): My question is to the Minister for Foreign Affairs, Senator Wong. We're seeing a global landscape defined by increasing economic and geostrategic instability. How is the Albanese Labor government deepening our relationship with the European Union to secure Australia's interests now and into the future?

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:30): Thank you to Senator Dolega. Earlier today, I joined the Prime Minister and colleagues in welcoming the President of the European Commission, Ursula von der Leyen. Her visit marks a defining moment in the bilateral relationship between Australia and the European Union.

In addition to the landmark free trade agreement Minister Farrell has outlined—and congratulations to Minister Farrell on his outstanding negotiations—I can indicate we have also announced the signing of a new security and defence partnership, and I want to thank my good friend European Union High Representative for Foreign Affairs and Security Policy Kaja Kallas for our work together on this agreement. Through this partnership, Australia and the European Union will work to build our capacity and resilience to manage complex security threats and deepen cooperation to combat online radicalisation and to counter terrorism financing. We will also establish a new space security dialogue. This partnership underlines our shared commitment to strengthening cooperation and to keeping people safe. It underlines our support for global peace and security, including reaffirming our steadfast support for Ukraine in the face of Russia's illegal full-scale invasion. Alongside the free trade agreement and the strategic defence partnership—which do matter to the country, Senator McKenzie—we are also commencing negotiations on association to Horizon Europe for 2027. Critical technologies are an economic asset and a strategic asset in the modern world, and these new agreements reflect Australia's commitment to work with the European Union and

other partners to make this country more secure, to grow Australia's prosperity and to deliver for Australians in a less predictable world.

The PRESIDENT: Senator Dolega, first supplementary?

Senator DOLEGA (Tasmania) (15:32): Thanks, Minister, for that comprehensive answer. What is the significance of the three announcements today, and why is it important to partner with the EU across both economic and security domains?

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:32): Thank you to Senator Dolega for that question. It's a very important point, and that's why the three initiatives announced today—the free trade agreement, the security and defence partnership, and our intention to join Horizon Europe, the world's largest research and innovation fund—are each individually important but, more importantly, as a package, they are greater than the sum of their parts. There is a multiplier effect, because deeper trade, research, and innovation integration and closer security ties turbocharge our relationship with Europe. Driving this cooperation in emerging and critical technologies will also enable greater productivity and innovation and strengthen Australia's national security. As I said earlier, critical technologies are both an economic and a strategic asset. This is what we are doing to secure Australia's place in the world today and into the future.

The PRESIDENT: Senator Dolega, second supplementary?

Senator DOLEGA (Tasmania) (15:33): It's never been more important to work together with traditional and new partners to safeguard against future uncertainty. How does Australia's partnering more closely with the EU and middle powers help deliver on our national interest?

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:33): Since we came to office, we have been working to make Australia more secure in a world that is much less predictable, and at the heart of that effort is strengthening and diversifying our relationships—what I've described as 'amplified middle-power diplomacy'. In these uncertain times, we work to shape a world where no country dominates and no country is dominated. We are pursuing new alignments to better secure our collective security and prosperity, as we have seen this month with Europe and with Canada. Our deepening partnership with the European Union across economics, security, defence, research and innovation demonstrates to Australians, to our region and to the world that, when we can all work together, we all benefit. The coalition might be focused on internal matters about who they should be swapping preferences with and how they outflank One Nation, but Labor and this government are delivering for Australians in a less predictable world.

The PRESIDENT: I advise the chamber that Senator Lambie has given her question to Senator Payman.

Workplace Relations

Senator PAYMAN (Western Australia—Australia's Voice Whip) (15:35): My question is to the Minister representing the Minister for Employment and Workplace Relations, Senator Watt. Last year, it became a criminal offence to intentionally underpay workers. A review of these laws began in December and is expected to be completed in June. In the 15 months since wage theft was criminalised, a section of the Fair Work Ombudsman with a team of 16.7 full-time-equivalent workers has been investigating allegations of wage theft. This team was allocated \$49 million over four years, but it was revealed at estimates hearings in February that this team has not referred a single matter to the Federal Police or Commonwealth DPP. Minister, is it still the case that not one referral has been made?

Senator WATT (Queensland—Minister for the Environment and Water) (15:35): Thanks, Senator Payman, for the question. I will attempt to come back to you as soon as I can with any specific information on the number of referrals to the police that have occurred, but what I would point out is that it took a federal Labor government to make wage theft a crime. We have known for many—as long as anyone could remember, quite rightly, employees who stole from their employer could be subject to criminal sanction, but what was the case until this Labor government came along was that employers who deliberately stole wages from their employees could not be subject to criminal penalties as they should have been. That was unfair. It was double standards and different standards between employers and employees, so the Albanese Labor government are very proud of the fact that we did change the law to make sure that employers who deliberately steal the wages of their employees can be subject to criminal punishments.

It's also worth remembering that, when we did that—when we passed those laws—they were not supported by all members of this chamber. What I remember is that members of the Liberal Party, members of the National Party and—wait for it!—the so-called battlers' party One Nation voted against laws to make it a criminal offence for employers to steal wages from their employees. Senator Bell might be smirking up there because, understandably, he wasn't a senator for New South Wales—is it? Is it New South Wales he's a senator for, or is it Queensland? A senator of New South Wales, sorry! I forget which state you're from. Senator Bell may not have been here, but we

remember that One Nation voted with the Liberals and Nationals, as they almost always do, to punish workers rather than to stand up for them, and you will never get that from a Labor government.

The PRESIDENT: Senator Payman, first supplementary?

Senator PAYMAN (Western Australia—Australia's Voice Whip) (15:37): Minister, between 2020 and 2025, \$1.76 billion worth of wages stolen from workers was paid back. In tertiary education, as well as sectors like retail and hospitality, wage theft remains rife. Workers in these sectors are often casually employed and have limited job security. Besides criminalising wage theft, what else is the government doing to ensure that these workers are being paid what they have earned?

Senator WATT (Queensland—Minister for the Environment and Water) (15:38): What this Labor government is doing is putting in place the most worker- and union-friendly laws that Australia has ever seen, because we proudly stand on the side of workers and their rights in the workplace—something you will never get from the Liberal Party, the National Party or the One Nation party, who will always take the side of employers. Senator Cash has come into this chamber and said that they proudly stand on the side of employers, and we know that's what One Nation do, as well as the National Party. We make no apologies whatsoever for passing laws that protect the rights of workers. Senator Payman is correct to say that there are some sectors of our economy where we do see shocking rates of wage theft and other forms of exploitation, in particular hospitality and retail. That's why we changed the law. I've already said that I'll come back to the senator with any information that I can about referrals. But our laws are completely focused on restoring the balance in the workplace relations system and making sure that workers get a fair go. (*Time expired*)

The PRESIDENT: Senator Payman, second supplementary?

Senator PAYMAN (Western Australia—Australia's Voice Whip) (15:39): Minister, workers and taxpayers are paying millions of dollars to fund an office of 16 full-time workers who've not referred a single case, as we know it, since Senate estimates in February. That's not a single case of wage theft to police, while workers are losing millions more in wage theft that goes unpunished. Minister, was criminalising wage theft a performative reform, given it is costing workers more than it has returned to them?

Senator WATT (Queensland—Minister for the Environment and Water) (15:40): Senator Payman, with the greatest of respect, I'm not sure you want to talk about performative acts in this chamber. What this government is serious about is action to support working Australians. Again, that's why we've not only passed laws to tackle and criminalise wage theft by employers but also actively supported increases to the minimum wage for the lowest-paid Australians, something the former government never did. It's why we've introduced the same job, same pay laws, something that, again, One Nation opposed, along with their friends in the Liberal and National parties. This government, a Labor government, will always proudly stand up for the rights of working Australians, and that will never change.

Gambling Advertising

Senator DAVID POCOCK (Australian Capital Territory—Independent ACT Whip) (15:40): My question is to the Minister representing the Prime Minister, Minister Wong. Today is a thousand days since Peta Murphy handed your government her landmark review recommending that your government phase in a ban of gambling ads over three years. She did something rare in this place: she brought together members of that committee to make a unanimous recommendation. She brought together Labor, Liberals, Nationals and an Independent. That's hard to do. I understand that the Prime Minister's department has a response ready to go, but it's being held back by the Prime Minister. Why doesn't the Prime Minister want to respond to the Murphy report?

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:41): First, I would say that I think we all know how important Peta Murphy's work was and, as a consequence of that report, a lot of action has been taken. You made a number of assertions in your question. I don't agree with them, and I think they're, frankly, unnecessarily personal. But what I would say to you is we do recognise this is a real issue. It is the case, objectively, that we've taken more action than any government since Federation to tackle online gambling harms, and we will continue to act. Until action was taken by the government, for example, betting firms and poker machine companies were able to claim millions of dollars a year in research and development expenses. The government is fixing that. This builds on significant action we have already taken. I know the Prime Minister and other ministers continue to engage across the community on this issue, which is important.

The PRESIDENT: Senator Pocock, first supplementary?

Senator DAVID POCOCK (Australian Capital Territory—Independent ACT Whip) (15:43): It's a long list of achievements. Much of that work was started under the coalition. Not a single recommendation of the Murphy report has been implemented. The thing we keep hearing, as a crossbench, is that it's the Prime Minister who's holding this up. I'm wondering what the Prime Minister's response is that the normalisation of gambling has been

happening under the Albanese Labor government's watch. None of the things you've mentioned stop gambling advertising.

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:43): My advice—and I know you've been much more focused on this than—

Senator Henderson: Than the government!

Senator WONG: No, than I have. We do have an international crisis at the moment. And before that—

An honourable senator interjecting—

Senator WONG: No, I'm just saying I personally have not been as engaged as you, but I don't know that your assertions are correct. Suggesting that the government has not done anything—I don't think that is correct at all. Action the government has taken includes banning the use of credit cards for online wagering, establishing mandatory custom ID preverification for online wagering, implementing monthly win/loss statements, strengthening classification of video games that contain gambling-like content and launching the National Self-exclusion Register.

Senator Henderson: But that's not gambling advertising.

Senator WONG: Senator Henderson, could I answer his question rather than yours?

Senator Watt: You've already had a question. You could've asked about this.

Senator WONG: You've had a question. It didn't go well.

The PRESIDENT: Order on my left! Senator Pocock, second supplementary?

Senator DAVID POCOCK (Australian Capital Territory—Independent ACT Whip) (15:44): Minister, I'm asking about the Murphy report. Not a single one of those things was mentioned as a recommendation in the Murphy report. Recent research by Deakin University shows that children themselves are asking the Prime Minister to ban gambling ads, the young Australians who come and watch us. Here's a quote from a 12-year-old boy in New South Wales: 'He's supposed to be responsible for having a good country, but we're making a bad country because of gambling.' Do the voices of children matter to the Prime Minister, and will we see the banning of gambling advertising this term?

Senator WONG (South Australia—Minister for Foreign Affairs and Leader of the Government in the Senate) (15:45): Again, I find the way you're personalising this uncomfortable. I think the Prime Minister has demonstrated—it might be good in a social media grab, but I think the Prime Minister has demonstrated—

Honourable senators interjecting—

The PRESIDENT: Order on my left! Order!

Senator WONG: It is a serious topic, which is why I think the way the question was framed was unfortunate.

Senator McKenzie: It's like blaming Australian motorists.

Senator WONG: Does anybody want me to answer the question, or are you just going to interject? At the moment, I've got Senator McKenzie, Senator Shoebridge—

Honourable senators interjecting—

Senator WONG: I'm trying to answer your question, Senator Pocock.

The PRESIDENT: Order across the chamber!

Senator WONG: Okay, I give up. I can't even get the answer out. I'll talk to you later.

Fuel

Senator BELL (New South Wales—One Nation Whip) (15:46): My question is to the Minister representing the Minister for Climate Change and Energy, Senator Ayres. Experts are now warning that Labor's fuel failure is choking supply and driving up the price of essential building materials like PVC pipes, the pipes that go into every new home and every stretch of basic infrastructure. Industry is experiencing widespread price rises of up to 35 per cent. Labor's failures are blowing out the cost and timing of building critical new homes Australians desperately need, piling more pressure onto Labor's cost-of-living crisis. With Australians already smashed by rising rents, rising mortgages and rising prices, what is the government doing to stop its fuel failure driving up the costs of essential PVC pipes so that the bowsers running dry under Labor today don't become Bunnings shelves running dry tomorrow?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:47): I suppose what I object to from the senator from Queensland is that implicit in that question—and it's gone with some of the questions that have come from over here—is that there are challenges in terms of fuel that are because

the government in Iran has blockaded the Strait of Hormuz. There are—and we will come to these questions—challenges in price terms but not immediate shortages in terms of PVC piping. That is an opportunity for Australians to pull together, not to blame the government to seek a partisan opportunity in terms of how we respond to a set of national challenges.

This government, whether it's in terms of petrol or diesel or PVC or urea or fertiliser supplies more broadly, has acted in a way that no previous government has to secure in terms of fuel supplies a minimum stockholding obligation that is larger than it has been for 15 years, because the government that was run by this lot over here that you vote with every day of the week in your own peculiar uniparty failed to act. In fact, what they did, worse than that, was close down four out of six refineries. Mr Taylor said, 'I kept the last two open,' the day before yesterday. 'I kept the last two open.' The only thing he was missing was time. If he got five more minutes, he would have closed those down too.

The PRESIDENT: Senator Bell, first supplementary?

Senator BELL (New South Wales—One Nation Whip) (15:49): One Nation has called for urgent cost-of-living relief for families and businesses in the form of a GST exemption on building materials—

Honourable senators interjecting—

The PRESIDENT: Senator Bell, I'm very sorry. There are interjections across the chamber. I need—

Senator Henderson interjecting—

The PRESIDENT: Senator Henderson, you were one of the people I was referring to. There needs to be quiet so I can hear the question.

Senator BELL: Minister, will the government back this practical, measured response, to reduce the cost of building goods by 10 per cent and give relief to Australians struggling with crippling housing and construction costs caused by the Labor government's fuel and energy failures?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:49): Well! The idea!

It is certainly true that, as to what we're seeing, particularly in the construction industry, particularly around PVC piping—I know this not only from the information that my department provides to me, but from the phone calls that I get from friends across the building industry in regional New South Wales, who, of course, are getting notices that say that prices are going up—prices are going up. There are no immediate shortages, but prices are going up. And that is a problem for people in the construction industry.

What is not true is to put those price rises at the feet of anyone but the murderous dictatorship in Iran. That is unpatriotic. That is un-Australian. That is dishonest. That is disingenuous. That is very, very unhelpful, if our job is to pull together for Australians— *(Time expired)*

The PRESIDENT: Senator Bell, second supplementary?

Senator BELL (New South Wales—One Nation Whip) (15:51): Minister, Australia is at the mercy of fragile supply chains, with no fuel at more than 50 petrol stations in New South Wales today and shortages and soaring prices for essential building supplies, like PVC pipes. And that situation is getting worse. What will it take for Labor to admit that its net zero obsession has helped drive Australia into this mess? When will the government put Australia's energy security first and scrap net zero before even more damage is done to the economy and to our nation's cost of living?

The PRESIDENT: Senator Bell, that is quite a tenuous link, but I will invite the minister to answer the question.

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:51): I'll give it a go. That is evidence of a disordered mind, that question.

The PRESIDENT: Senator Ayres—

Senator AYRES: That is what that is.

The PRESIDENT: Senator Ayres—

Senator AYRES: I withdraw.

The PRESIDENT: Thank you.

Senator AYRES: Honestly! Making a connection between our energy security approach and the fact that Australia imports products from around the world—including being dependent for our petrol fleet on imported petrol, because, Senator, we don't have crude oil reserves in Australia that are economic. We used to have six petrol refineries—six fuel refineries. We now have two. We now have two, because Mr Taylor didn't get around to closing the last two. And you and your mates here have done more to damage Australian industrial capability than anybody

else in Australian history. More manufacturing jobs departed Australia under this lot than at any time in Australian history, and Senator Canavan has got more to be ashamed of, in terms of manufacturing jobs— (*Time expired*)

Research and Development: Horizon Europe

Senator ANANDA-RAJAH (Victoria) (15:53): Science is the solution. My question is to the Minister for Science, Senator Ayres. The Albanese Labor government is backing a modern research and development system to meet Australia's big collective challenges. To this end, today the government announced that it will enter formal negotiations to associate with the Horizon Europe research scheme. What is Horizon Europe, and what benefits will this association provide for Australian scientists and researchers?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:53): In addition to having the President of the European Commission visit us in parliament today, it is indeed Science Meets Parliament week, when our leading scientists come to parliament to connect with politicians. It is very fitting and I'm very proud that today we announced that we would enter treaty-level talks to associate with Horizon Europe. That is the largest pool of research and innovation funds in the world. It has a current budget of A\$155 billion. That means that Australian scientists, universities and research organisations can mount joint research efforts and apply for grants that are very substantial, in partner, trusted, economies where we have much in common in security terms, in energy terms and in technology terms, for agricultural purposes, artificial intelligence, quantum science—all of these areas where Australia has an excellent reputation in our universities and in our science institutions. This gives us access. This gives our researchers access to more funds, to more collaboration and to more colleagues to be able to advance Australia's interests. Our universities and our research institutions do remarkable things, whether it's in agriculture, mining, defence or food security. In all of these areas, it's Australian researchers and Australian scientists. This is just one more way the Australian government is backing that effort and giving them an opportunity to collaborate, as I said, with trusted partners in a way that advances the national interest.

The PRESIDENT: Senator Ananda-Rajah, first supplementary?

Senator ANANDA-RAJAH (Victoria) (15:55): Australia's science and research system is critical to delivering a future made in Australia. What contribution do Australian scientists and researchers make to national resilience and productivity growth?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:55): This is part of a series of announcements that were made today—the fine work that Senator Farrell has led in trade diversification with our partners in the European Union, the announcements in relation to defence partnerships that Senator Wong was answering questions about and this, in terms of our research and development capacity. These are all resilience measures that are about diversifying our economy, strengthening our research and science capability and strengthening our national security.

Recently I released the *Ambitious Australia: strategic examination of research and development* report, which was led by Robyn Denholm and a series of other notable Australians. That makes it clear what the private and public challenge is for Australia's research and development sector and what it is that we need to do to meet the big collective challenges that Australia faces.

The PRESIDENT: Senator Ananda-Rajah, second supplementary?

Senator ANANDA-RAJAH (Victoria) (15:56): Scientists and researchers work hard for the benefit of all Australians. How does the Albanese Labor government recognise the contribution Australian scientists make? Why has the government chosen this approach?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:57): One of the observation that that report that I just referred to makes is that there is \$15 billion being spent across the Australian system in 160 research and development programs across government this financial year. We need to make sure that that effort is directed in the national interest. We need to make sure that it aligns with our national science priorities. We support science. We unequivocally support our research institutions and our scientists.

There are alternative approaches that are all about misrepresenting and diminishing science, scientists and empirical knowledge. I saw that last year Senator Canavan had a breaking Twitter update where he posted a screenshot that claimed that the CSIRO had shown coal to be the cheapest form of power. The only issue was that he'd cropped the CSIRO graphic to dishonestly convey— (*Time expired*)

Sovereign Capability

Senator KOVACIC (New South Wales) (15:58): My question is to the Minister for Industry and Innovation, Senator Ayres. There have been media reports that Australia's largest ammonia plant, the Yara Pilbara facility near Karratha, will be offline for up to two months. In addition, the *Australian* has reported that a second ammonia manufacturer in Kooragang, in New South Wales, is now also offline. Given these operations are critical suppliers

of product used in the agriculture and mining sectors and noting this is occurring while fertiliser and ammonia supplies through the Strait of Hormuz have been halted, what steps have you taken as industry minister to ensure that these facilities get back online as soon as possible?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (15:59): Australia imports around 65 per cent of its urea based fertilisers from the Middle East. So we are to a very large extent import dependent. Local ammonia capacity matters. It is not all in Australia for the purpose of fertiliser; ammonia has other industrial and, particularly, mining explosive applications.

In terms of the approach that we're taking to those questions, besides watching what is happening in terms of shipments closely and working with suppliers to see if there are additional supplies that can be brought onstream, of course we are working with importers, producers, farmers, the National Farmers' Federation and Fertilizer Australia to coordinate our actions. There are a series of practical actions that we are, of course, considering to work with producers and with the production sector—the people who make these products—to try and make sure that we're doing what we can to support this activity.

I'd just make the point that, in terms of the Dyno Nobel facility near Mount Isa, which is closely related to and in a symbiotic relationship with the copper smelter—

Senator Ruston: Ooh, symbiotic!

Senator AYRES: Symbiotic, Senator Ruston—that is, they use each other's products and rely upon each other. The federal government's intervention in Mount Isa means that that facility has been purchased and will continue to run. We're watching that very closely too. But that is in the national interest because of the federal government's intervention.

The PRESIDENT: Senator Kovacic, first supplementary?

Senator KOVACIC (New South Wales) (16:01): Minister, what contingencies, if any, are currently in place to manage potential shortages or supply chain disruptions arising from these outages?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (16:01): Well, there is no immediate national shortage of fertilisers—no immediate national shortage. But planting season—

The PRESIDENT: Senator Kovacic, I haven't called you. Minister Ayres, please resume your seat. Senator Kovacic?

Senator Kovacic: On relevance, and for clarification, I didn't say that there were shortages. I asked what was in place to manage potential shortages.

The PRESIDENT: Sure. I think that's a debating point, but the minister—and I'm not quite sure—

Honourable senators interjecting—

The PRESIDENT: Thank you! Order! Minister, please continue.

Senator AYRES: I was nine seconds in and just pointing out that there's no immediate national shortage of fertilisers. But winter planting is commencing and, in some parts of the economy, harvesting is happening at the same time. We do rely upon imports. I met, together with Ministers Bowen and Collins, with the National Farmers' Federation and fertiliser industry representatives just last week. That was the second meeting that we'd had. We are continuing to work through making sure that we are contributing what we can here to secure supplies of fertiliser for Australian farmers who need it.

The PRESIDENT: Senator Kovacic, second supplementary?

Senator KOVACIC (New South Wales) (16:02): Minister, yesterday in question time, Minister Wong told the Senate that the majority of fertiliser required is already on the water or in the country, yet the National Farmers' Federation president has warned that, if in-crop urea requirements cannot be met after May, the winter crop in Australia could be halved. Can you guarantee the supply of fertiliser and ammonium nitrate for farmers and miners?

Senator AYRES (New South Wales—Minister for Industry and Innovation and Minister for Science) (16:03): What I can guarantee is that not just the government but also industry, in cooperation with the government, are using their networks to engage with alternative suppliers, including with producers in South-East Asia. The Department of Agriculture, Fisheries and Forestry and my department are engaged in that work. We're working on allowing sector coordination to make sure that fertiliser gets to where it is needed, and the government is getting the latest information on what farmers and the agriculture sector need and making sure that we're communicating in a transparent way not just with the producers but with the farming sector itself. The government's coordinator-general is meeting state and territory counterparts today, and her team is making sure that the approach that we are taking at the Commonwealth level is linked up with each of the states and territories, for all of the reasons that you just set out.

Senator Wong: I ask that further questions be placed on the *Notice Paper*.

MOTIONS

Transport Infrastructure

Senator DAVID POCOCK (Australian Capital Territory—Independent ACT Whip) (16:04): I seek leave to move a motion relating to public transport and active travel, as circulated.

Leave not granted.

Senator DAVID POCOCK: Pursuant to contingent notice of motion standing in my name, I move:

That so much of standing orders be suspended as would prevent me moving a motion relating to provide for the consideration of a matter, namely a motion to give precedence to a motion relating to public transport and active travel.

This motion is urgent because millions of Australians across the country are suffering the effects of fuel prices going through the roof as a result of the crisis in the Middle East. It is urgent because for many it's a grinding calculation of whether they can actually afford to fill the tank this week. It is urgent because we are facing fuel shortages in the regions and we are seeing farmers worrying that they are not going to get their winter crops in.

We have to do more as a country, and as communities across this country, to ensure that we provide public transport and better active travel infrastructure so that people who are able can leave their cars at home, can get public transport, can jump on their bike, can cycle off the road and arrive safely at work. It's obviously not for everyone, but there is a big chunk of the population in metropolitan areas who can and will use public transport if it is cheaper. And so there is an opportunity here for us to actually act, to do something that will make a difference. It will make a difference to the lives of people if they can have a 50c, or potentially free, fare to travel to work. And it will make a difference to the farmers that this frees up fuel for, farmers who need the diesel right now and into the future.

We have heard a lot from the government that the challenges that we're seeing across the country are a demand-side issue because Australians are buying more fuel than they need, are filling up jerry cans, and farmers, really concerned about what the next few months may hold, ordering more diesel than they usually do. If that is the case then we need demand-side solutions, and this is clearly one of them. It is one that is incredibly popular. So many Australians would like to catch public transport if it were cheaper. So many Australians would like to actually ride to work. Here in Canberra we have far too much cycling infrastructure that simply just ends suddenly. You're cycling along, feeling great, and then you're spat onto a road where people in cars are doing 60 kilometres or 80 kilometres an hour, and that is not conducive to people cycling to work. People want this. We have an opportunity; we have a time that actually calls for this kind of leadership, and I urge the federal government to step up here.

Earlier today I stood with Senator Waters and with colleagues from the legislative assembly here in the ACT—former Attorney-General Shane Rattenbury, Thomas Emerson MLA and Independent for Kurrajong, Fiona Carrick MLA—representing their communities and urging the Territory and federal government to work together. This is a practical, meaningful thing that we could be doing. We could be doing it now, working together, both levels of government, to fund or subsidise cheaper public transport and to see the kind of emergency actions that we've seen in other times of crisis. We could see pop-up bike lanes or pop-up bus lanes to ensure that people aren't sitting in traffic when instead they could be getting from Woden to Civic.

I thank Senate colleagues Senator McKenzie and Senator Waters for their assistance with this, and I urge the government that this is an opportunity for all. We're here, wanting to work with you and really push you on this to deliver for Australians in cities and to deliver for Australians in the regions. We have to look after farmers in this country.

Senator WATERS (Queensland—Leader of the Australian Greens) (16:09): I'm very proud, on behalf of the Greens, to be co-sponsoring this motion which calls on the federal government to fund public transport nationally while this fuel crisis is underway. This is the government that was the first to support this illegal war, and now ordinary people across the world, including here in Australia at the bowser, are bearing the pain. The least the federal government could do would be to make public transport free to ease that cost-of-living pressure on Australians. That would also help free up much-needed fuel for farmers and for families in regional Australia. I'm so pleased that our calls to make public transport free and support for them are growing. It just makes sense. People are being smashed by cost-of-living pressures. First it was the housing crisis, then it was the rising cost of groceries, and now it's the cost of fuel.

We called for the federal government to make public transport free ahead of National Cabinet last week. I wrote to the Prime Minister last week and offered the Greens' support in this chamber to pass a 25 per cent gas export tax which would raise the revenue to fund things like free public transport for Australians, who are desperate for cost-of-living relief. With the numbers here in the Senate, with the Greens, the government can pass progressive reform.

It could be putting a minimum 25 per cent gas tax on those greedy gas corporations who are loving this war, whose profit margins are loving this war and who are laughing all the way to the bank while everyone else is genuinely suffering. I wrote suggesting that we could get that done this fortnight and offering the Greens' support to do just that. So where is the action on this? You have the numbers to do it. Where is your courage? Where is your spine? We're still trying to find it, or, rather, you're still trying to find it.

I was pleased that the Rail, Tram and Bus Union today backed in those calls, joining the Victorian Farmers Federation, who have likewise seen the good sense of making public transport free both as a cost-of-living measure and as a way of helping the fuel shortages in the regions. This is a commonsense call, and it's being backed by people at the pump and right across the spectrum. In the middle of a fuel crisis, this is a no-brainer. People are spending hundreds every week on transport, and this could save them serious dollars. It could also make sure that those regional servos are not, in fact, running out of petrol and diesel, as we hear in continued and increasingly disturbing reports. Free public transport is an immediate, straightforward way to give Australians cost-of-living relief. We've got the some of the most expensive public transport in the world. Let's make it easier and cheaper for people to leave their cars at home and to get on the bus or the train. Let's free up that fuel for use in the regions, where, sadly, they don't have public transport that's any good. We need to fix that as well in the long term.

Free public transport could be funded by that \$17 billion that a gas export tax of a minimum of 25 per cent could bring in. Like I said, we have written to the Prime Minister and could not be clearer. We could get this done this fortnight. What are you here for? People are actually hurting right now because of a war that you backed in, and you've done absolutely nothing about it. We've got a bill that's coming in tomorrow that's not actually going to do what you're saying it's going to do. It's going to make it illegal for petrol companies to lie to you about ripping you off, but it's not going to make it illegal for them to actually rip you off. Again, we see the government doing the—I was about to swear then—inadequate thing rather than actually tackling the real thing.

Pass a gas tax. Make public transport free. It is not that difficult to work for people. Stop working for corporate profits and actually do your job to represent people. Instead of working for people, what we've heard is that the Treasurer is working on ways to cut support for electric vehicles in a fuel crisis. We're hearing that, rather than making EVs more affordable so that more people can have the benefit of them, which also helps the climate, they're moving changes to road user charges and fringe benefits tax. They're going to make the cheapest cars to run in a fuel crisis more expensive for people. Make that make sense! How does that get us off dependence on overseas oil? How does that get us onto clean, renewable energy? We need renewable energy independence. That is where our financial security will come from. That is what will help people at the bowser, and that is what will help nature and the climate. It is not rocket science, people. *(Time expired)*

Senator McKENZIE (Victoria—Leader of the Nationals in the Senate) (16:14): The coalition will be supporting the suspension and the substantive motion because we believe that every lever should be available and used by this government, by National Cabinet and by state and territory governments to assist Australians with this fuel crisis.

For those listening at home, I will read the motion to the chamber. It says that we note the ongoing fuel security crisis as a result of the conflict in the Middle East is seeing volatility in global energy markets and that the significant cost-of-living pressures faced by Australian households are on top of the cost-of-living crisis created by Jim Chalmers and his ministers—prolific spenders that they are—that has seen the highest proportion of government spending across our economy in 40 years. The Reserve Bank governor made very clear last week that this was her prime focus when putting up interest rates for mortgage holders. The federal government needs to cut the spending at the upcoming budget.

This global energy crisis will see transport costs increase across our economy. We've seen our trucking industry concerned with how they will actually distribute goods across the country, from fresh food products to online postage. We've seen Australia Post put up their transport costs, as well. We need to build national fuel resilience, and we need to make sure fuel gets to where it's needed. Currently, it is a capital-F fail from the Labor government on ensuring that fuel is where it's needed.

Because Minister Bowen cannot do his day job—that has been evident over the last three weeks—they've convened National Cabinet, and now there is a blame game going on between state, territory and federal governments about who and how we are going to support Australians and our industries through this global crisis. It is absolutely the purview of state and territory governments to deal with public transport and active transport projects. It is not the job of the federal government to be examining whether or not to provide free public transport or whether or not to invest in active transport options. This is wholly and solely the purview of the state and territory governments. We do call on the federal government to work with state and territory governments around how to support households in this matter.

I would also call on the federal government to work with states and territories on a whole raft of issues, whether it's how to get data about where blockages are in the supply chain; whether it is about following Queensland and New South Wales with the ethanol mandates that they currently have and are not upholding; whether other states should also increase the amount of ethanol in their fuel supply; whether they should look at rationing, because we know that informal rationing is already occurring across the supply chain; whether states should actually take up—

Opposition senators interjecting—

Senator McKENZIE: Sorry, Deputy President, I can't hear myself speak at the moment.

The DEPUTY PRESIDENT: Order in the chamber!

Honourable senators interjecting—

Senator McKENZIE: It is my colleagues. Deputy President, I would ask you to call the chamber to order.

The DEPUTY PRESIDENT: I would ask senators having discussions in the chamber to please keep it down a little.

Senator McKENZIE: The other matters to resolve this crisis in the purview of states and territories are around rationing and actually around GST. They could forgo the GST, particularly when it comes to the trucking industry. That's also another suggestion that's been put forward by the transport industry. There are a lot of things that the federal government could be examining, with states and territories, to provide assistance and relief for communities at this time. Rather than point the finger at Australians for panic buying, they need to actually get on with putting things like biofuels onto the agenda of National Cabinet. So I would respectfully say the coalition will be supporting the suspension and the substantive motion, as the latter puts the responsibility where it needs to be—wholly and solely with state and territory governments.

Senator CHISHOLM (Queensland—Assistant Minister for Regional Development, Assistant Minister for Agriculture, Fisheries and Forestry, Assistant Minister for Resources and Deputy Manager of Government Business in the Senate) (16:19): What a remarkable contribution that was from Senator McKenzie there—absolutely remarkable. She is someone who spent more money on sports rorts than she did on any public infrastructure when it comes to public transport. That's actually her record in government.

The DEPUTY PRESIDENT: Minister, resume your seat. Senator McKenzie.

Senator McKenzie: I raise a point of order on reflection: former president Ryan made a ruling regarding that matter, and I would ask you, Deputy President, to ask the minister to withdraw.

The DEPUTY PRESIDENT: Minister, I would ask you to withdraw that, please.

Senator CHISHOLM: I withdraw, Deputy President, but that's the reality of the situation—that those over there, when they were ministers, spent more money supporting their own electorates when it came to sporting infrastructure than they actually did on public transport.

We're actually used to Senator Pocock and the Greens coming in and performing stunts. We accept that. That's their role. That's what they do. But for the opposition to be supporting this and actually absolving themselves of any responsibility for being a responsible opposition is testament to where they are. We saw the result from South Australia on the weekend, where the Liberal Party went backwards. They have become the electoral bonsai tree: they keep clipping back their branches and getting smaller. That's actually not the way to get into government. If you continue to behave like this—if you continue to perform like this in opposition—the Australian people will see it for exactly what it is. They took a while to actually land on where they would vote on this motion, but it does show you the depths of opposition that they are in.

The government don't engage in stunts. We are actually dealing with the challenges that we're facing, and we're dealing with them in the immediate sense. We're dealing with fuel at the moment, and we have come up with a plan to ensure that we're doing what we can to support Australian people and industry in this regard. What have we, the Albanese government, done in terms of our broad range of actions on fuel? We are empowering the ACCC to protect motorists from unfair price rises, boosting fuel supply by releasing 20 per cent of the baseline minimum stockholding obligation for petrol and diesel, acting to get more fuels into the Australian market by temporarily amending the fuel standards, and working closely with industry and with states and territories to ensure this fuel gets where it's needed most, particularly in regional communities. So that is actually the record of what the federal government have been doing—dealing with the challenge that we face and using every apparatus of government to ensure we're doing what we can to support the Australian community.

But we also understand the long-term view of what we need to do to support infrastructure in this country and public transport in particular. I'm surprised Senator Pocock didn't mention the support that we've put into Canberra light rail: \$343.9 million into stage 2A of Canberra light rail and \$50 million for the planning of stage 2B. We have put in \$5.6 billion for the Metronet in Perth, \$5.1 billion for Sydney Metro to Western Sydney airport, and \$2.2

billion for Suburban Rail Loop, with more to come. One billion dollars has been allocated to extend the rail network in Sydney's south-west. There is \$659 million for the next stage of high-speed rail, along with \$100 million through the Active Transport Fund, which I know, from talking to councils around the country, is very, very popular because they understand how important it is to have those options. And we have provided \$115 million for tranche 1 of the Macquarie Park depot for zero-emissions buses and \$100 million for the Western Sydney Rapid Bus Infrastructure Upgrade.

So we are an actual government that is actually delivering public transport infrastructure by working constructively with councils and states to ensure that we're delivering the things that are going to make a difference. When you look at what the government is actually doing, we're dealing with the immediate challenge that we're facing when it comes to petrol, but we also have that longer term view of the importance of public transport infrastructure in this country and doing what we can to work constructively with councils and state and territory governments around the country. That is the record of this government. It's a proud one, and we won't be lectured to by stunts from Senator Pocock and the Greens or, indeed, the hypocrisy from the opposition when it comes to this matter.

The PRESIDENT: The question is that the suspension motion be agreed to.

The Senate divided. [16:28]

(The President—Senator Lines)

Ayes.....33
Noes.....23
Majority.....10

AYES

Allman-Payne, P. J.
Blyth, L.
Canavan, M. J.
Colbeck, R. M.
Faruqi, M.
Hodgins-May, S.
McKenzie, B. G.
Paterson, J. W.
Pocock, D. W.
Sharma, D. N.
Steele-John, J. A.

Antic, A.
Bragg, A. J.
Cash, M. C.
Collins, J. (Teller)
Hanson-Young, S. C.
Kovacic, M.
McKim, N. J.
Payman, F.
Ruston, A.
Shoebridge, D. M.
Waters, L. J.

Askew, W.
Cadell, R. P.
Chandler, C.
Duniam, J. R.
Henderson, S. M.
McDonald, S. E.
O'Sullivan, M. A.
Pocock, B.
Scarr, P. M.
Smith, D. A.
Whish-Wilson, P. S.

NOES

Ananda-Rajah, M.
Cicccone, R.
Dolega, J.
Green, N. L.
McAllister, J. R.
Polley, H.
Sterle, G.
Walsh, J. C.

Brown, C. L.
Cox, D.
Dowling, R.
Grogan, K.
Mulholland, C.
Sheldon, A. V.
Stewart, J. N. A.
Whiteaker, E.

Chisholm, A. D.
Darmanin, L. (Teller)
Ghosh, V.
Lines, S.
O'Neill, D. M.
Smith, M. F.
Walker, C.

PAIRS

Brockman, W. E.
Hume, J.
Liddle, K. J.
McGrath, J. A.
McLachlan, A. L.
Nampijinpa Price, J. S.

Watt, M. P.
Wong, P.
Gallagher, K. R.
McCarthy, M.
Farrell, D. E.
Ayres, T.

Question agreed to.

Senator DAVID POCOCK (Australian Capital Territory—Independent ACT Whip) (16:32): I move:

That a motion relating to public transport and active travel may be moved immediately, have precedence over all other business and be determined without amendment or debate.

The PRESIDENT: The question is that the motion as moved by Senator David Pocock be agreed to.

The Senate divided. [16:33]

(The President—Senator Lines)

Ayes.....31
Noes.....23
Majority8

AYES

Allman-Payne, P. J.
Cadell, R. P.
Colbeck, R. M.
Faruqi, M.
Hodgins-May, S.
McKenzie, B. G.
O'Sullivan, M. A.
Pocock, B.
Scarr, P. M.
Smith, D. A.
Whish-Wilson, P. S.

Askew, W.
Canavan, M. J.
Collins, J. (Teller)
Hanson-Young, S. C.
Kovacic, M.
McKim, N. J.
Paterson, J. W.
Pocock, D. W.
Sharma, D. N.
Steele-John, J. A.

Blyth, L.
Chandler, C.
Duniam, J. R.
Henderson, S. M.
McDonald, S. E.
McLachlan, A. L.
Payman, F.
Ruston, A.
Shoebridge, D. M.
Waters, L. J.

NOES

Ananda-Rajah, M.
Ciccone, R.
Dolega, J.
Green, N. L.
McAllister, J. R.
Polley, H.
Sterle, G.
Walsh, J. C.

Brown, C. L.
Cox, D.
Dowling, R.
Grogan, K.
Mulholland, C.
Sheldon, A. V.
Stewart, J. N. A.
Whiteaker, E.

Chisholm, A. D.
Darmanin, L. (Teller)
Ghosh, V.
Lines, S.
O'Neill, D. M.
Smith, M. F.
Walker, C.

PAIRS

Bragg, A. J.
Brockman, W. E.
Hume, J.
Liddle, K. J.
McGrath, J. A.
Nampijinpa Price, J. S.

Watt, M. P.
Ayes, T.
Wong, P.
Farrell, D. E.
Gallagher, K. R.
McCarthy, M.

Question agreed to.

Senator DAVID POCOCK (Australian Capital Territory—Independent ACT Whip) (16:36): I, and also on behalf of Senator Waters, move:

That the Senate:

(a) notes:

- (i) the ongoing fuel security crisis as a result of conflict in the Middle East and associated volatility in global energy markets,
- (ii) the significant cost-of-living pressures faced by Australian households, including rising transport costs,
- (iii) the importance of building national fuel resilience and reducing Australia's dependence on imported liquid fuels, including through use of biofuels,
- (iv) the need to ensure fuel is being distributed to areas of need, including to ensure that regional communities and farmers have the fuel they need to produce food and fibre, and
- (v) the environmental and public health benefits of reducing private vehicle use and increasing sustainable transport options; and

(b) calls on the Government to:

(i) work with state and territory governments through National Cabinet to deliver accessible, free or affordable nationwide public transport for the duration of the current fuel security crisis, and

(ii) work with the state and territory governments to significantly increase planning and investment to integrate active transport infrastructure to support walking and cycling projects across Australia.

The PRESIDENT: The question is that the motion as moved by Senator Pocock be agreed to.

The Senate divided. [16:37]

(The President—Senator Lines)

Ayes.....17
Noes.....23
Majority6

AYES

Allman-Payne, P. J.
Faruqi, M.
McDonald, S. E.
McLachlan, A. L.
Pocock, D. W. (Teller)
Waters, L. J.

Cadell, R. P.
Hanson-Young, S. C.
McKenzie, B. G.
Payman, F.
Shoebridge, D. M.
Whish-Wilson, P. S.

Canavan, M. J.
Hodgins-May, S.
McKim, N. J.
Pocock, B.
Steele-John, J. A.

NOES

Ananda-Rajah, M.
Ciccione, R.
Dolega, J.
Green, N. L.
McAllister, J. R.
Polley, H.
Sterle, G.
Walsh, J. C.

Brown, C. L.
Cox, D.
Dowling, R.
Grogan, K.
Mulholland, C.
Sheldon, A. V.
Stewart, J. N. A.
Whiteaker, E.

Chisholm, A. D.
Darmanin, L. (Teller)
Ghosh, V.
Lines, S.
O'Neill, D. M.
Smith, M. F.
Walker, C.

Question negatived.

QUESTIONS WITHOUT NOTICE: TAKE NOTE OF ANSWERS

Answers to Questions

Senator ANTIC (South Australia) (16:39): I move:

That the Senate take note of the answers given by ministers to questions without notice asked by coalition senators today.

I do so against the background of the crippling fuel shortages which we are now experiencing all over the country and which all Australians are growing increasingly concerned about. We heard a lot about it today from those opposite. We heard a lot of deflecting and, I might say, a very different story to what we heard during the last sitting period, which was: 'It's all okay. There's nothing to worry about. We've got more fuel than we know what to do with. Don't you worry'—repeat, repeat, repeat. That message seems to have changed a little bit. We now know that, as of Monday this week, the 22nd, some 166 petrol stations across the nation were out of fuel. We also learnt yesterday, in the other place, about the following shortages in three states: New South Wales had 37 stations out of fuel, Queensland had 47 stations out of diesel and 32 with no regular unleaded, and Victoria had 109 stations without one grade of petrol or the other. So the situation seems to have changed dramatically from the last sitting period, when we were told it was all okay, like that meme with the little girl and the fire in the background, where she is saying, 'Nothing to see here; it's all fine.'

But there is another angle to this. For many years, a small group of us in this building have been warning about Australia falling under the grip of a globalist elite. Now that we're looking down the barrel of food and fuel shortages, it's fair to ask, I think, whether or not we're seeing that play out. In March 2026, we're seeing Australia's vulnerabilities offering what may end up being a provocative case study. As I said, these fuel shortages are hitting hard. The escalating Middle East conflict has clearly disrupted the Strait of Hormuz and spiked global oil prices, and we're seeing shipments to Australia cancelled. Panic buying and logistics strain are now real. Farmers are

warning of grounded machinery during harvest threatening crops, livestock and transport, and that's not to mention the fertiliser shortages.

Food insecurity, prior to all of this, was already rising. Foodbank's 2025 report showed that one in three households were affected, 20 per cent so severely that they were skipping meals as a result of cost-of-living pressures. The question has to be raised: is this coincidence or is it a convergence of issues? Geopolitical shocks expose pre-existing weaknesses in self-sufficiency, and that's not necessarily a conspiracy. Everything this lot don't like around here is a conspiracy. Yet the timing, amid WEF style global coordination calls, fuels speculation that shortages could actually end up justifying more intervention—things like rationing and subsidies—all for sustainable alternatives or dietary shifts. And I'm going to make a little prediction here, because I like my predictions: if shortages end up widening into winter 2026, we're going to start seeing debates over sovereignty versus global alignment. I notice we had, for a variety of reasons, the EU president attend the parliament today, just coincidentally—just because. I know we're talking about trade, but it's funny how it's all happening at once.

Why do I have this gut feeling that I've seen this all before? I feel like I've watched this re-run once or twice. It's starting to sound a little familiar to me. Would it be such a huge surprise if, in the coming months, we started to see—I don't know—work from home mandates, travel restrictions or purchase limits? We're almost expecting to see fuel rations. Would it be such a surprise if, all of a sudden, this was monitored by QR codes and government mandates and apps? Remember, many of us were talking about the day in which people would finally understand what's going on out there when they went to the supermarket and could only buy one steak because they'd already bought one earlier in the week. Here we are in 2026, and who knows? Could this be the great reset?

It's all a bit cynical, though, isn't it? It's probably just a conspiracy theory. Yet we hear that the Yara ammonia plant is off site for two months, and there's a refinery down in Texas at the moment. It's all a bit confusing. Do you know the old joke—these people love their conspiracies when they finally catch up. The old joke used to be: 'What's the difference between a conspiracy theory and reality? Six months.' I think it's about two now, quite frankly. It can't be long before we're going to be 'all in this together'. Remember how we were all in it together, until we didn't do what we were told, then we were all out on our own? Remember that one? Conspiracy theories.

Anyway, in the coming months, I think we're going to see a test as to how this plays out as to crisis management, or whether it is crisis management or we're seeing something very different rolling out, something maybe—hmm, I don't know—a little more transformative. How about that?

Senator DARMANIN (Victoria—Deputy Government Whip in the Senate) (16:44): I wanted to try and take some of the hyperbole out of the debate that we have been having today and really provide assurance to Australians about what's happening, because it is, no doubt, an unfortunate situation. We just need to remember that what started this was that, on 28 February, the US and Israel launched air strikes on Iran, and Iran launched missile strikes in the Middle East. In Australia, the largest component of what we pay at the pump and the supply of our fuel is the global fuel price and the global market. It is obvious but still worth acknowledging that, of course, this is a very difficult and stressful time for Australians. No-one wants to see uncertainty over supply. Unfortunately, however, this international setting continues to make everything unpredictable.

There has been a lot of talk today in the chamber about the supply of fuel and our approach to this. What is absolutely worth noting is the impact of events outside our borders and outside of our control and what those things have on the supply of fuel in this country and how we can build resilience against that. Senator Antic talked a minute ago about what is predictable. What assurance I can provide to people is what we know is predictable. There are two things that are predictable. That those opposite are continuing to create panic around fuel supply in this country—that is predictable. The second thing that is absolutely predictable and that Australians should be really taking notice of is that this government is working every day around the clock to provide steady and sustained assurance for Australians on supply of fuel.

Australia is an island nation, and it is prudent to consider what we would do if the ships were unable to arrive, and we have considered that scenario. I want to talk about what has changed as a result of that. In 2023, this government introduced the minimum stockholding obligation, the MSO. It requires petrol, diesel and jet fuel reserves to be held here in Australia for our security in times of disruption—a bit like this right now. This differs from the International Energy Agency's 90-day requirement, which pertains to emergency oil stocks which can be held both locally and overseas, but, because Australia is an island nation, we need to account for the reliance that we have on freight, which arrives by sea. The government is monitoring shipping data in real time.

Before we introduced the MSO, what we considered our reserves were stored in the United States. That is hardly a source of relief in a crisis. Now, those reserves are held here in Brisbane, and they are in Geelong. By focusing on the fuel which is literally here in Australia, the MSO is a far more practical measure of our domestic fuel security. The MSO is a key measure of our domestic fuel security. It ensures we have a basic level of supply during

disruptions, and we are currently above the minimum stockholding obligations, and we have boosted supply by releasing 20 per cent of the baseline of the MSO for petrol and diesel. That is the fact of what is happening right now.

The government is also working closely with industry and states and territories to ensure that this fuel gets to where it is needed most, particularly in regional communities. Of course, these measures of security do not negate the influence of international events on our fuel. We need to ensure we are resilient to the global shocks, and, in times of instability, a system designed to help us maintain basic supply is not allowing us to continue business as usual. To achieve business as usual amid instability, we need to look at alternate options as well. When we exist in a global supply chain, there will be events outside our control which disrupt that chain and, therefore, disrupt our access to goods within it. Ensuring access to fuel amid those disruptions is part of that parcel.

However, another really important parcel of that work is reducing our reliance on that supply chain. That is just another reason why investing in clean energy is so important for Australians. We've established a \$5 billion net zero fund to help industry decarbonise. We have invested \$1.1 billion to encourage more production of clean fuels right here in Australia, and our \$22.7 billion Future Made in Australia package will help us become a renewable energy superpower. We are continuing to take decisive actions that will help in this immediate, urgent situation, but also well into the future. (*Time expired*)

Senator SHARMA (New South Wales) (16:49): Today we heard some sobering figures from Senator Ayres, who came to the chamber prepared to level with the parliament and with the Australian public about the extent and severity of the fuel shortage in Australia. He confirmed that there are 164 petrol stations in New South Wales where you cannot buy diesel at the moment. He also said that eight per cent of petrol stations nationally have one or more grades unavailable. That means they might not have diesel, or they might not have unleaded. At my count, that's about 500 to 550 petrol stations across Australia that have one or more grades unavailable. If you look at the other figures, you'll see that in New South Wales 154 stations are out of diesel and 51 stations are out of petrol. In Victoria, 101 petrol stations are not selling petrol and 83 are not selling diesel. In Queensland, 32 petrol stations are out of petrol and 47 are out of diesel. By my count alone, there are about 260 petrol stations across New South Wales where you cannot buy diesel.

Just 12 days ago, on 12 March, the energy minister, Chris Bowen, had this to say. He said:

But we do need to have this conversation based on the facts. And the fact of the matter is we have enough diesel in Australia for our needs for the foreseeable future ...

The energy minister, 12 days ago, told the Australian public there was no need to worry, 'no need to panic' because 'we have enough diesel in Australia for our needs for the foreseeable future'. Well, here we are, 12 days later, certainly still within the foreseeable future, and we have 164 petrol stations in New South Wales where you cannot buy diesel, 83 in Victoria, 47 in Queensland and eight per cent nationally.

This has all the makings of a national crisis. Those opposite like to accuse us of asking questions to sow panic, but what they have been engaged in is a form of denialism, a form of fiction, a form of gaslighting—telling people that there's no need to worry and that everything will be fine. But the lived experience of people, especially in rural and regional parts of our country, is that fuel is running short.

I also want to touch on the government's response to an answer to Senator Kovacic's question about urea imports. I think Australians all know and understand intrinsically that the crisis in the Gulf, the war in Iran and the blockage of the Strait of Hormuz are pushing up petrol prices in Australia. What they may not know, though, is that Australia is also highly dependent on the Middle East for imports of urea, which is then used as a precursor for fertiliser. In Australia we get about 65 per cent of our international imports of urea from the Gulf countries—Saudi, the United Arab Emirates, Qatar—and that supply is also significantly interrupted now. What we're seeing are not only higher petrol prices but, increasingly, higher fertiliser prices, which will feed into our supply chains.

If Australia and this government had our inflation under control, if they had government spending under control, we would have some ability to absorb this shock, this exogenous supply-side shock. But we don't. Last week, we had central banks meeting in Frankfurt, in London, in Washington, in Ottawa, in Tokyo. Central banks around the world decided to keep their interest rates on hold because they knew that this shock was coming and that it was going to have a one-off impact on inflation, but all of those countries had inflation back to their target band. In Australia, our inflation has been running at 3.8 per cent annually and is well outside the Reserve Bank's target band, which is why, when the Reserve Bank met last week, they had no choice but to raise interest rates, and it's why the Governor of the Reserve Bank said, when announcing that decision last week, 'inflation was already too high' in Australia before this shock hit.

Now, we have Treasurer Jim Chalmers trying to prepare Australians for inflation with at least a number four in front of it and quite possibly a five in front of it. That means that interest rates are going to have to go up again.

That means the economy will slow. That means Australians will be paying more, not just for their fuel but for their food, for anything that comes by truck, for anything that's transported, for basically everything we consume, and it's because this government has run down our inflation credentials. *(Time expired)*

Senator DOLEGA (Tasmania) (16:54): I rise to take note of answers to coalition questions regarding Australia's fuel supply. The Albanese Labor government does understand that Australians are rightly concerned about not only the fuel supply but also the rising fuel prices. The conflict in Iran is having a real impact on Australian households and the cost of living, and there's no beating around the bush about it—it's tough out there. Our government is looking at every practical measure to shield Australian families and businesses from the worst effects of global instability. We're focused on ensuring farmers in regional communities and essential services continue to have access to the fuel that they rely on and that they need. Across government, we have been working through and planning for the impacts of the crisis and protecting Australians from the worst of this global challenge. As a senator for Tassie, I can say that I'm so grateful for the leadership of Prime Minister Anthony Albanese and our senior ministers, including Minister Wong, Minister Ayres and Minister Bowen, who are steering us through these tough times. On this side of the chamber and under this government, we have ministers that are engaging with stakeholders and with the community, making considered decisions, unlike those opposite, who, when they were in government, would make policy on the run.

Earlier this month, I was at the Wynyard Show. It was an incredible day, the sun was shining, and we had stunning weather, beautiful food and a great community. I had a really good time talking to constituents and assisting them with their inquiries. I did hear from the community that the people really are concerned about fuel prices at the moment. It's really clear not only that people are upset and worried about the fuel prices but also that they understand that there are global factors going on, being the war in Iran. It's important that people know that we also understand the price of fuel, what people are paying at the pump. In North West Tassie, it's around \$2.50 a litre at the moment, and that's up from about \$1.64—in Devonport—just less than four weeks ago. Tasmanians can check the FuelCheck TAS app for the best fuel price around, and they can shop around to get the best deal.

Minister Ayres, today in the chamber during question time, being the warrior for transparency that he is, updated the chamber on the Tasmanian service station situation, and he let the chamber know that there is one service station currently without diesel and six currently without unleaded. We know that these are too many fuel stations that don't have fuel, but it's important that people know the facts and that this information is shared, and it's important that levels of government work together to ensure that the fuel gets to the people.

Australians do want action, and that's why the Albanese government have acted quickly. We've tasked the ACCC with ramping up fuel price monitoring, including weekly reporting on unusual price spikes, investigating anticompetitive conduct and introducing the ability to issue on-the-spot fines. We've been boosting the fuel supply by releasing 20 per cent of the baseload minimum stockholding obligation for petrol and diesel. Last week, the Prime Minister, when he was in Tassie, convened National Cabinet, and he announced that the government would be appointing Ms Anthea Harris as the Fuel Supply Taskforce Coordinator to support coordination across government and sectors. Ms Harris's role will include: leading the taskforce that will be established in the Department of the PM&C; driving coordination between the Commonwealth and states and territories on fuel security and supply chain resilience; providing consistent coordinated updates to the Commonwealth and states and territories on the supply stock outlook as well as domestic fuel distribution; and supporting state and territory governments to get fuel to the regions which they need to.

I wanted to also quickly touch on truckies and support for truckies. The Albanese government is helping Australia's trucking industry manage the impacts of the war in the Middle East and ensuring that truckies and operators are better protected with fuel price rises. Our government is, again, stepping up to help create fairness through the supply chain and manage the impacts of fuel challenges. We will amend the Fair Work Act to allow truckies and road transport businesses to make an emergency application to the Fair Work Commission for a contract chain order to deal with the current spike in fuel prices caused by the conflict in the Middle East. Labor supports truckies. We want them to be safe on the road and to not be left behind or taken advantage of. That's why the minimum order of six months will be changed to as soon as possible—so truckies and operators aren't left wondering. *(Time expired)*.

Senator COLBECK (Tasmania) (17:00): I rise to make my contribution to the motion to take note of answers given by government senators and ministers today to questions from the coalition in question time. I have to say that the last presentation and the presentations by ministers today are the reason that Australians don't have confidence in the government's handling of the fuel situation. Senator Dolega just quoted a fuel price of about \$2.50 in Tasmania at the moment when, in fact, right now, looking at the fuel app, it's \$3.15 in Ulverstone. It is absurd when Labor senators come in here and talk about what's going on in their communities right now and they're that far out.

That goes to the point that I would like to make with respect to the information the minister provided today. When he was asked about which fuel stations don't have fuel and how many there are, he was quoting data from 3 March, 10 March and 17 March. The latest information the minister came into the chamber with today was a week old. Even in the other place yesterday, Minister Bowen had information that was up to date. Yet the minister in this chamber comes in and responds to questions from the opposition, based on questions that we're getting from our constituents, with information that is a week old.

This is symptomatic of the way that this government has operated all the way through this crisis. For two weeks, there wasn't a crisis, there wasn't a problem and there was plenty of fuel. They quoted the volumes of diesel, unleaded fuel and aircraft fuel that were available in the country. They quoted all those numbers. They couldn't tell us where it was and they certainly couldn't tell us what was going on within the supply chains, which were clearly having problems. In regional New South Wales, regional Queensland and Western Australia, there were supply chains that were just drying up.

The fishing sector told us that they had no access to fuel. The only fuel, in some circumstances, was the fuel that they had left in their boats when they came back to shore. And the government couldn't tell us what was going wrong or why. Then, all of a sudden, at the end of the last sitting week, it was: 'Yes, there is a crisis. We'll have a roundtable. We'll put a tsar in place.' But they still can't give us up-to-date data. They should be able to give us up-to-date data, and we know they should be able to give us up-to-date data because, when we were in government, we put in place the systems that would provide it. So why can't the government do that?

They just want to deflect. They want to blame someone else; it was the consumers' fault for trying to buy too much fuel. If you have so little confidence in the way the government's handling the situation, of course you're going to make sure that your personal circumstances are looked after. Of course you're going to do that. Of course, then they try and blame the opposition, the then government from before the 2022 election, for the whole circumstance. Yet, during COVID, we learnt a lot about these supply chain issues and we put in place systems to ensure supply. We legislated for the reserve. We budgeted to build the supply capacity in Australia that the government's now relying on. Yes, we put the fuel reserves in the United States, but it was because there wasn't physical capacity to hold it in Australia. So we did the responsible thing. We secured the reserves we needed until we could build the supply here in the country, which is what we established the process to do. It was the responsible thing.

Then, today, we come to the situation with respect to urea, and what do we get? We get the same answers: 'There's plenty of urea. There's no shortage of stocks.' Does anybody understand why the farming community would not be confident in the answers that the government has been giving us when it's reading off almost exactly the same talking points that we got during question time in the last sitting fortnight—plenty of fuel, no shortage, and availability for the foreseeable future—and, of course, by the end of the sitting week, there was a crisis? The government needs to do better. It needs to be providing up-to-date information to the Australian community so that they can have confidence that the fuel they need is there for them. (*Time expired*)

Question agreed to.

Middle East

Senator SHOEBRIDGE (New South Wales) (17:05): I move:

That the Senate take note of the answer given by the Minister for Foreign Affairs (Senator Wong) to a question without notice I asked today relating to the Middle East.

I rise to take note of what were described in *Hansard* as answers from the Foreign minister. What an extraordinary performance from the government's Foreign minister today—Senator Wong coming in here and refusing to answer the most basic questions. The first question was: given the appalling impacts we're seeing on the ground in the Middle East, but also now the repercussions throughout our economy—people fearful of going to the fuel bowser and people fearful about what's happening to their jobs—why does Labor still continue to support this war? And we couldn't get a coherent answer from the Foreign minister—something about Iran being bad, ignoring the illegality of the war, the reckless expansionism of Donald Trump and the fact that this war is costing people's jobs and livelihoods. We get this endless patter because they refuse—they absolutely refuse—to stand up for Australia's national interest, to stand up to Donald Trump and to say, 'We do not support this war.' Labor's utterly gutless approach to this is surrendering our national interest. You are supporting a war that is destroying jobs, destroying the economy and throwing the world into chaos, and you haven't even got the courage to articulate why.

The second answer from Senator Wong was an extraordinary performance. We asked why this government hasn't come out and opposed Israel's invasion of Lebanon and its threats to turn the southern part of Lebanon into another Gaza, and we get this performance from Senator Wong where she comes out and says, 'I'm very concerned about displacement—very concerned about people losing their homes,' as though it's happening by some kind of natural disaster—as though it were an unnamed flood. I'll tell you why it's happening: because of Israel's illegal war. We

see the complete inability of Senator Wong to even say 'Israel' and to even point out that its government is driving this appalling conflict in Lebanon, driving people from their homes and killing more than a thousand Lebanese. They can't even say the word 'Israel', because they know that will offend Donald Trump, and they dare not do that.

Lastly, we asked why on Earth, with all of the chaos that's been produced from this war, including the dreadful chaos running through the Australian economy—with people feeling anxious about their jobs and anxious about the world and the killing that's happening in the Middle East—the Australian government won't join with other middle powers around the world and actually stop supporting the war and say there'll be no support for US global war-making and that bases here can't be used. Bases in Spain can't be used. Bases in the UK can't be used. Why not call together middle powers to speak for peace? If you want to open the Strait of Hormuz, the only way is peace. We asked why the government won't join with middle powers, and do you know what? Labor's Foreign Minister Wong wouldn't even address the question. Do you know why? Because they're utterly gutless. They are afraid of Donald Trump. They're afraid of standing up to Trump and Netanyahu's illegal war, and they don't even have the courage to articulate why. It's an extraordinary betrayal of Australia's national interest.

Then, for the rest of this question time, it was as if we were living in some alternative reality, some complete fantasy. This government and the other war parties—One Nation and their friends in the coalition—tell us, 'We're going to war in the Middle East to stop an aggressive expansionist power in the Middle East from having access to illegal nuclear weapons programs.' Now, I know it's about as popular as a fart in an elevator, but let's be clear: Israel, which is leading this war with Donald Trump, is an aggressive expansionist power in the Middle East with hundreds of illegal nuclear weapons which it allows no international inspection of. That's the truth, and nobody in this chamber can speak that basic truth about this war—the utter hypocrisy at the very centre of it.

Now, apparently, the new story is that we're all going to go to war and support the US war against Iran to open up the Strait of Hormuz. How on earth did the Strait of Hormuz get shut in the first place? It got shut because of the illegal war from Donald Trump and Benjamin Netanyahu, which the Labor government was the first government in the world to support. And now we're going to continue to support the US war to open up the Strait of Hormuz, which was only shut because of this illegal war in the first place. You couldn't make this stuff up.

Finally, we get this run from One Nation that they're deeply concerned about fuel security. These are the climate deniers who have refused to ever support renewable energy, which would give us energy security right now. The same party whose leader went over and had a party with Donald Trump just before he started this illegal war now complains about their mate's war. They probably got flown there in Gina Rinehart's executive jet. That's who One Nation is—a bunch of bloody hypocrites. (*Time expired*)

Question agreed to.

NOTICES

Presentation

Senator McKenzie to move on the next day of sitting:

That there be laid on the table by the Minister representing the Minister for Infrastructure, Transport, Regional Development and Local Government, by no later than midday on 31 March 2026, all correspondence, including briefing notes, between the Department of Infrastructure, Transport, Regional Development, Communications, Sport and the Arts and the Minister for Infrastructure, Transport, Regional Development and Local Government between 1 June 2025 and 31 March 2026 in relation to the new and redeveloping international ports framework review. (*general business notice of motion no. 448*)

Senator McDonald to move on the next day of sitting:

That there be laid on the table by the Minister for Industry and Innovation and Minister for Science, by no later than 31 March 2026, copies of all ministerial submissions, records of conversation, correspondence, letters, briefing notes, meeting agendas, file notes, meeting invitations, meeting notes, meeting minutes, emails and instant/electronic messages held by the minister and/or the minister's office, the Department of Industry, Science and Resources and any relevant portfolio agencies in relation to shipments of fuel and oil to Australia, including crude oil and refined petroleum products, created, received or modified between 28 February and 23 March 2026. (*general business notice of motion no. 449*)

Senator McDonald to move on the next day of sitting:

That there be laid on the table by the Minister representing the Minister for Climate Change and Energy, by no later than 31 March 2026, copies of all ministerial submissions, records of conversation, correspondence, letters, briefing notes, meeting agendas, file notes, meeting invitations, meeting notes, meeting minutes, emails and instant/electronic messages held by the Minister for Climate Change and Energy and/or the minister's office, the Department of Climate Change, Energy, the Environment and Water and any relevant portfolio agencies in relation to shipments of fuel and oil to Australia, including crude oil and refined petroleum products, created, received or modified between 28 February and 23 March 2026. (*general business notice of motion no. 450*)

Senator David Pocock to move on the next day of sitting:

That—

(a) for the duration of this Parliament, any question directed to a witness appearing before the Community Affairs Legislation and References Committees concerning the provision of sponsored passes for Parliament House be taken to be relevant to the matter before the committee; and

(b) consistent with the procedure to be observed by Senate committees for the protection of witnesses, nothing in paragraph (a) affects the entitlement of a witness to request that evidence be given in private session, or to object to answering any question.

Senator David Pocock to move on the next day of sitting:

That the Senate directs the Legal and Constitutional Affairs Legislation Committee to publish answers to questions on notice relating to sponsored passes for Parliament House asked by Senator David Pocock during the committee's inquiry into the provisions of the Freedom of Information Amendment Bill 2025, unless the witness answering the question requested that the answer be kept confidential. (*general business notice of motion no. 452*)

Senator David Pocock to move on the next day of sitting:

That there be laid on the table by the Minister representing the Prime Minister, by no later 9 am on Wednesday, 1 April 2026:

(a) the government response to the House of Representatives Standing Committee on Social Policy and Legal Affairs report, *You win some, you lose more*; or

(b) any draft response in possession of the Prime Minister, the Department of the Prime Minister and Cabinet or the Prime Minister's office.

Senator Thorpe to move on the next day of sitting:

That there be laid on the table by Minister for the Environment and Water, by no later than 5 pm on 31 March 2026, all documents, correspondence (including electronic correspondence), meeting notes and minutes in relation to funding for the Murujuga United Nations Educational, Scientific and Cultural Organization World Heritage nomination and inscription process in possession of the minister and the Department of Climate Change, Energy, the Environment and Water since 1 January 2024, including but not limited to:

(a) any funding agreements, grants or budget allocations made to the Murujuga Aboriginal Corporation, including budget line items; and

(b) any funding agreements, grants or budget allocations made to Orizontas or Rethink Everything, including budget line items.

Senator Hanson-Young to move on the next day of sitting:

That—

(a) the Senate notes that the government response to the Environment and Communications References Committee report *Algal blooms in South Australia* was due on Wednesday, 11 February 2026, and has still not been provided;

(b) there be laid on the table by the Minister for the Environment and Water, by no later than Friday, 27 March 2026, the outstanding government response to the report; and

(c) if the order in paragraph (b) has not been complied with by the start of proceedings on Monday, 30 March 2026, the Minister for the Environment and Water be required to attend the Senate after question time, to provide an explanation, of no more than 5 minutes, of the failure to comply with the order, and that:

(i) any senator may move to take note of the explanation, and

(ii) any such motion may be debated for no longer than 30 minutes and shall have precedence over all other business until determined, and senators may speak to the motion for not more than 5 minutes each.

Postponement

The Clerk: A postponement notification has been lodged in respect of the following:

General business notice of motion No. 446 standing in the name of Senator McGrath for today, postponed to the next day of sitting.

COMMITTEES

Reporting Date

The Clerk: A committee has lodged an extension notification in respect of the following:

Environment and Communications Legislation Committee—Environment Protection Reform Bill 2025 and related bills [Provisions]—from 24 to 31 March 2026.

BUSINESS

Consideration of Legislation

Senator WALSH (Victoria—Minister for Early Childhood Education and Minister for Youth) (17:11): I move:

That private senators' bills be considered this week as follows: Defence Amendment (Parliamentary Approval of Overseas Service) Bill 2020 on Wednesday 25 March, and Housing Australia Amendment (Accountability) Bill 2025 and Housing Investment Probity Bill 2024 on Thursday 26 March.

Question agreed to.

Leave of Absence

Senator SHELDON (New South Wales—Chief Government Whip in the Senate) (17:12): by leave—I move:

That Senator Gallagher be granted leave of absence for today for personal reasons.

Question agreed to.

REGULATIONS AND DETERMINATIONS

Competition and Consumer (Industry Codes—Cash Acceptance) Regulations 2025

Disallowance

Senator ROBERTS (Queensland) (17:12): I ask that business of the Senate notice of motion No. 1 be taken as a formal motion.

The PRESIDENT: Is there any objection to this motion being taken as formal?

A government senator: Yes.

The PRESIDENT: Formality has been denied.

COMMITTEES

Education and Employment References Committee

Reference

Senator PAYMAN (Western Australia—Australia's Voice Whip) (17:13): I seek to leave amend business of the Senate notice of motion No. 2.

Leave granted.

Senator PAYMAN: I move the motion as amended:

That the following matter be referred to the Education and Employment References Committee for inquiry and report by 18 June 2026:

The extent to which the wage theft framework under the *Fair Work Act 2009*, and the operation of subsection 327A(1), has led to a decrease in the incidence of wage theft in Australia, and any other related matter.

Senator O'SULLIVAN (Western Australia—Deputy Manager of Opposition Business in the Senate) (17:13): I seek leave to make a short statement.

The PRESIDENT: Leave is granted for one minute.

Senator O'SULLIVAN: The coalition will be supporting this motion. While there is a current separate statutory inquiry being conducted, it will not have the capacity to provide the level of public scrutiny or access of a parliamentary process, and the opposition believe that, to guarantee transparency of the review of these provisions, a parliamentary process is necessary. We thank the minister and her office for providing information in relation to this matter.

Senator WALSH (Victoria—Minister for Early Childhood Education and Minister for Youth) (17:14): I seek leave to make a short statement.

The PRESIDENT: Leave is granted for one minute.

Senator WALSH: The government will be opposing this motion. While we support its intent, an independent review of the operation of wage theft provisions is already underway. The two closing loopholes acts require the Minister for Employment and Workplace Relations to cause a review to be conducted of the operation of the amendments made by these acts, including part 14, which sets out protections against wage theft. The closing loopholes review commenced on 15 December 2025, with the final report to be delivered to the minister on or before 15 June 2026. The legislation required the minister to table the report in the house of the parliament within 15 sitting days after the minister received it. Former fair work commissioner Ms Susan Booth has been appointed to conduct the review.

The PRESIDENT: The question is that business of the Senate No. 2 standing in the name of Senator Payman, as amended, be agreed to.

The Senate divided. [17:19]

(The President—Senator Lines)

Ayes.....36
 Noes.....24
 Majority.....12

AYES

Allman-Payne, P. J.
 Babet, R. D.
 Brockman, W. E.
 Chandler, C.
 Duniam, J. R.
 Henderson, S. M.
 Liddle, K. J.
 McKenzie, B. G.
 O'Sullivan, M. A.
 Pocock, B.
 Smith, D. A.
 Waters, L. J.

Antic, A.
 Blyth, L.
 Cadell, R. P.
 Colbeck, R. M.
 Faruqi, M.
 Hodgins-May, S.
 McDonald, S. E.
 McKim, N. J.
 Paterson, J. W.
 Roberts, M. I.
 Steele-John, J. A.
 Wish-Wilson, P. S.

Askew, W. (Teller)
 Bragg, A. J.
 Canavan, M. J.
 Collins, J.
 Hanson-Young, S. C.
 Kovacic, M.
 McGrath, J. A.
 Nampijinpa Price, J. S.
 Payman, F.
 Shoebridge, D. M.
 Tyrrell, T. M.
 Whitten, T.

NOES

Ananda-Rajah, M.
 Ciccone, R.
 Dolega, J.
 Green, N. L.
 McAllister, J. R.
 Pocock, D. W.
 Smith, M. F.
 Walker, C.

Brown, C. L.
 Cox, D.
 Dowling, R.
 Grogan, K.
 Mulholland, C.
 Polley, H.
 Sterle, G.
 Walsh, J. C.

Chisholm, A. D.
 Darmanin, L.
 Ghosh, V.
 Lines, S.
 O'Neill, D. M.
 Sheldon, A. V. (Teller)
 Stewart, J. N. A.
 Whiteaker, E.

PAIRS

Hume, J.
 Lambie, J.
 McLachlan, A. L.
 Ruston, A.
 Scarr, P. M.

Farrell, D. E.
 Watt, M. P.
 Gallagher, K. R.
 McCarthy, M.
 Ayres, T.

Question agreed to.

NOTICES

Postponement

Senator ASKEW (Tasmania—Chief Opposition Whip in the Senate) (17:21): I seek leave to postpone general business of motion No. 421, standing in the name of Senator Cash, until the next sitting day.

Leave granted.

DOCUMENTS

Housing

Order for the Production of Documents

Senator PAYMAN (Western Australia—Australia's Voice Whip) (17:22): I move:

That the Senate—

(a) notes that the Minister representing the Minister for Housing has failed to comply with order for the production of documents no. 315, agreed to on 3 February 2026, relating to the ban on foreign investors buying established homes; and

(b) requires the Minister representing the Minister for Housing to comply with the order by no later than midday on 9 April 2026.

The PRESIDENT: The question is that general business notice of motion No. 405, standing in the name of Senator Payman, be agreed to.

The Senate divided. [17:23]

(The President—Senator Lines)

Ayes.....39
Noes.....23
Majority.....16

AYES

Allman-Payne, P. J.
Babet, R. D.
Bragg, A. J.
Canavan, M. J.
Collins, J.
Hanson-Young, S. C.
Kovacic, M.
McGrath, J. A.
Nampijinpa Price, J. S.
Payman, F.
Roberts, M. I.
Smith, D. A.
Waters, L. J.

Antic, A.
Bell, S.
Brockman, W. E.
Chandler, C.
Duniam, J. R.
Henderson, S. M.
Liddle, K. J.
McKenzie, B. G.
O'Sullivan, M. A.
Pocock, B.
Sharma, D. N.
Steele-John, J. A.
Whish-Wilson, P. S.

Askew, W. (Teller)
Blyth, L.
Cadell, R. P.
Colbeck, R. M.
Faruqi, M.
Hodgins-May, S.
McDonald, S. E.
McKim, N. J.
Paterson, J. W.
Pocock, D. W.
Shoebridge, D. M.
Tyrrell, T. M.
Whitten, T.

NOES

Ananda-Rajah, M.
Cicccone, R.
Dolega, J.
Green, N. L.
McAllister, J. R.
Polley, H.
Sterle, G.
Walsh, J. C.

Brown, C. L.
Cox, D.
Dowling, R.
Grogan, K.
Mulholland, C.
Sheldon, A. V. (Teller)
Stewart, J. N. A.
Whiteaker, E.

Chisholm, A. D.
Darmanin, L.
Ghosh, V.
Lines, S.
O'Neill, D. M.
Smith, M. F.
Walker, C.

PAIRS

Cash, M. C.
Hume, J.
Lambie, J.
McLachlan, A. L.
Ruston, A.
Scarr, P. M.

Wong, P.
Farrell, D. E.
Watt, M. P.
Gallagher, K. R.
McCarthy, M.
Ayres, T.

Question agreed to.

Housing

Order for the Production of Documents

Senator PAYMAN (Western Australia—Australia's Voice Whip) (17:25): I move:

That the Senate—

(a) notes that:

(i) the Minister representing the Treasurer has failed to comply with order for the production of documents no. 316, agreed to on 3 February 2026, relating to the ban on foreign investors buying established homes, and

(ii) in a letter to the Minister representing the Treasurer, the Treasurer advised that more time was needed to comply with the order, but provided no timeline for compliance with the order; and

(b) requires the Minister representing the Treasurer to comply with the order by no later than midday on 9 April 2026.

The PRESIDENT: The question is that general business notice of motion No. 406, standing in the name of Senator Payman, be agreed to.

The Senate divided. [17:26]

(The President—Senator Lines)

Ayes.....40
Noes.....23
Majority.....17

AYES

Allman-Payne, P. J.
Babet, R. D.
Bragg, A. J.
Canavan, M. J.
Collins, J.
Hanson, P. L.
Hodgins-May, S.
McDonald, S. E.
McKim, N. J.
Paterson, J. W.
Pocock, D. W.
Shoebridge, D. M.
Tyrrell, T. M.
Whitten, T.

Antic, A.
Bell, S.
Brockman, W. E.
Chandler, C.
Duniam, J. R.
Hanson-Young, S. C.
Kovacic, M.
McGrath, J. A.
Nampijinpa Price, J. S.
Payman, F.
Roberts, M. I.
Smith, D. A.
Waters, L. J.

Askew, W. (Teller)
Blyth, L.
Cadell, R. P.
Colbeck, R. M.
Faruqi, M.
Henderson, S. M.
Liddle, K. J.
McKenzie, B. G.
O'Sullivan, M. A.
Pocock, B.
Sharma, D. N.
Steele-John, J. A.
Whish-Wilson, P. S.

NOES

Ananda-Rajah, M.
Cicccone, R.
Dolega, J.
Green, N. L.
McAllister, J. R.
Polley, H.
Sterle, G.
Walsh, J. C.

Brown, C. L.
Cox, D.
Dowling, R.
Grogan, K.
Mulholland, C.
Sheldon, A. V. (Teller)
Stewart, J. N. A.
Whiteaker, E.

Chisholm, A. D.
Darmanin, L.
Ghosh, V.
Lines, S.
O'Neill, D. M.
Smith, M. F.
Walker, C.

PAIRS

Cash, M. C.
Hume, J.
Lambie, J.
McLachlan, A. L.
Ruston, A.
Scarr, P. M.

Wong, P.
Farrell, D. E.
Watt, M. P.
Gallagher, K. R.
McCarthy, M.
Ayres, T.

Question agreed to.

Housing Australia Future Fund Order for the Production of Documents

Senator ASKEW (Tasmania—Chief Opposition Whip in the Senate) (17:28): At the request of Senator Bragg, I move:

That there be laid on the table by the Minister representing the Minister for Housing, by no later than 31 March 2026, any documents that relate to:

- (a) the total cost of the Housing Australia Future Fund (HAFF) round 3;
- (b) the total number of dwellings HAFF round 3 will deliver;
- (c) the cost per dwelling of HAFF round 3;
- (d) the key dates for HAFF round 3, including:
 - (i) when HAFF round 3 opened,
 - (ii) when HAFF round 3 did or will close,
 - (iii) how many applications have been received to date as at March 2026, if there is no closing date, and

- (iv) how long it will take to deliver the actual houses/complete the work relating to round 3; and
 (e) applicant numbers for round 3 funding to date.

The PRESIDENT: The question is that general business notice of motion 441 standing in the name of Senator Bragg be agreed to.

The Senate divided. [17:30]

(The President—Senator Lines)

Ayes.....38
 Noes.....23
 Majority.....15

AYES

Allman-Payne, P. J.
 Babet, R. D.
 Bragg, A. J.
 Canavan, M. J.
 Collins, J.
 Hanson-Young, S. C.
 Kovacic, M.
 McGrath, J. A.
 Nampijinpa Price, J. S.
 Payman, F.
 Sharma, D. N.
 Steele-John, J. A.
 Whish-Wilson, P. S.

Antic, A.
 Bell, S.
 Brockman, W. E.
 Chandler, C.
 Faruqi, M.
 Henderson, S. M.
 Liddle, K. J.
 McKenzie, B. G.
 O'Sullivan, M. A.
 Pocock, B.
 Shoebridge, D. M.
 Tyrrell, T. M.
 Whitten, T.

Askew, W. (Teller)
 Blyth, L.
 Cadell, R. P.
 Colbeck, R. M.
 Hanson, P. L.
 Hodgins-May, S.
 McDonald, S. E.
 McKim, N. J.
 Paterson, J. W.
 Roberts, M. I.
 Smith, D. A.
 Waters, L. J.

NOES

Ananda-Rajah, M.
 Ciccone, R.
 Dolega, J.
 Grogan, K.
 Mulholland, C.
 Polley, H.
 Sterle, G.
 Walsh, J. C.

Brown, C. L.
 Cox, D.
 Ghosh, V.
 Lines, S.
 O'Neill, D. M.
 Sheldon, A. V. (Teller)
 Stewart, J. N. A.
 Whiteaker, E.

Chisholm, A. D.
 Darmanin, L.
 Green, N. L.
 McAllister, J. R.
 Pocock, D. W.
 Smith, M. F.
 Walker, C.

PAIRS

Cash, M. C.
 Duniam, J. R.
 Hume, J.
 Lambie, J.
 McLachlan, A. L.
 Ruston, A.
 Scarr, P. M.

Wong, P.
 Dowling, R.
 Farrell, D. E.
 Watt, M. P.
 Gallagher, K. R.
 McCarthy, M.
 Ayres, T.

Question agreed to.

Defence

Order for the Production of Documents

Senator PAYMAN (Western Australia—Australia's Voice Whip) (17:32): I move:

That there be laid on the table by the Minister representing the Minister for Defence by no later than 5 pm on Tuesday, 7 April 2026, copies of all ministerial submissions, records of conversation, letters, briefing notes, meeting agendas, file notes, meeting invitations, meeting notes, meeting minutes, emails and instant/electronic messages created after 1 July 2025 between the Minister for Defence and/or his office, the Department of Defence and the Auditor-General and/or the Australian National Audit Office (ANAO) in relation to any proposals to discontinue the ANAO's annual defence major projects report.

The PRESIDENT: The question is that general business notice of motion 442 standing in the name of Senator Payman be agreed to.

The Senate divided. [17:33]

(The President—Senator Lines)

Ayes.....39
Noes.....22
Majority.....17

AYES

Allman-Payne, P. J.
Babet, R. D.
Bragg, A. J.
Canavan, M. J.
Collins, J.
Hanson-Young, S. C.
Kovacic, M.
McGrath, J. A.
Nampijinpa Price, J. S.
Payman, F.
Roberts, M. I.
Smith, D. A.
Waters, L. J.

Antic, A.
Bell, S.
Brockman, W. E.
Chandler, C.
Faruqi, M.
Henderson, S. M.
Liddle, K. J.
McKenzie, B. G.
O'Sullivan, M. A.
Pocock, B.
Sharma, D. N.
Steele-John, J. A.
Whish-Wilson, P. S.

Askew, W. (Teller)
Blyth, L.
Cadell, R. P.
Colbeck, R. M.
Hanson, P. L.
Hodgins-May, S.
McDonald, S. E.
McKim, N. J.
Paterson, J. W.
Pocock, D. W.
Shoebridge, D. M.
Tyrrell, T. M.
Whitten, T.

NOES

Ananda-Rajah, M.
Ciccone, R.
Dolega, J.
Grogan, K.
Mulholland, C.
Sheldon, A. V. (Teller)
Stewart, J. N. A.
Whiteaker, E.

Brown, C. L.
Cox, D.
Ghosh, V.
Lines, S.
O'Neill, D. M.
Smith, M. F.
Walker, C.

Chisholm, A. D.
Darmanin, L.
Green, N. L.
McAllister, J. R.
Polley, H.
Sterle, G.
Walsh, J. C.

PAIRS

Cash, M. C.
Duniam, J. R.
Hume, J.
Lambie, J.
McLachlan, A. L.
Ruston, A.
Scarr, P. M.

Wong, P.
Dowling, R.
Farrell, D. E.
Watt, M. P.
Gallagher, K. R.
McCarthy, M.
Ayres, T.

Question agreed to.

National Justice Reinvestment Program Order for the Production of Documents

Senator PAYMAN (Western Australia—Australia's Voice Whip) (17:35): At the request of Senator Thorpe, I move:

That there be laid on the table by the Minister representing the Attorney-General, by no later than Thursday, 16 April 2026, documents relating to:

- (a) all funding agreements entered into under the Government's National Justice Reinvestment Program;
- (b) any and all key performance indicators attached to the program; and
- (c) any and all monitoring and evaluation reports of the program.

Question agreed to.

Australian Education Research Organisation**Order for the Production of Documents**

Senator ALLMAN-PAYNE (Queensland) (17:36): I move:

That there be laid on the table by the Minister representing the Minister for Education, by no later than 5 pm on Wednesday, 1 April 2026, the final report of the performance evaluation of the Australian Education Research Organisation conducted by KPMG.

Senator McALLISTER (New South Wales—Minister for the National Disability Insurance Scheme) (17:36): I seek leave to make a short statement.

The PRESIDENT: Leave is granted for one minute.

Senator McALLISTER: The government will not be supporting this motion. The evaluation report it seeks is not owned by the Commonwealth. It is owned by the members of the Australian Education Research Organisation, the state, territory and Commonwealth ministers for education. The government does not ordinarily release these types of documents without the agreement of other jurisdictions.

Question agreed to.

Superannuation**Order for the Production of Documents**

Senator ASKEW (Tasmania—Chief Opposition Whip in the Senate) (17:37): At the request of Senator Bragg, I move:

That the Senate—

(a) notes that:

(i) on Wednesday, 4 March 2026 the Senate agreed to order for the production of documents no. 391, relating to the Australian Securities and Investment Commission Regulatory Guide 97, with a compliance date of midday, Wednesday, 11 March 2026,

(ii) on Wednesday, 11 March 2026 the Minister representing the Treasurer provided an interim response from the Treasurer stating that additional time was required to comply with the order and advising that the order would be responded to as soon as practicable, and

(iii) the order has still not been complied with; and

(b) requires the Minister representing the Treasurer to comply with the order by no later than midday on Thursday, 26 March 2026.

Question agreed to.

COMMITTEES**Legal and Constitutional Affairs References Committee****Reference**

Consideration resumed of the motion:

That the following matters be referred to the Legal and Constitutional Affairs Legislation Committee for inquiry and report by 3 September 2026:

(a) the scale, nature and drivers of waste, fraud and abuse within the National Disability Insurance Scheme (NDIS);

(b) the adequacy of existing safeguards, compliance, auditing, investigative and enforcement mechanisms to detect, prevent and respond to waste, fraud and abuse;

(c) qualifications of workers under the scheme;

(d) the role of National Disability Insurance Agency processes, registered and unregistered providers, intermediaries, participants, nominee arrangements and any other relevant entities or persons in contributing to or preventing waste, fraud and abuse;

(e) the financial impact of waste, fraud and abuse on the sustainability of the NDIS and on taxpayers;

(f) the impact of waste, fraud and abuse on NDIS participants, including the diversion of resources away from Australians with genuine need;

(g) distortionary impacts of increased wages and fees for service under the scheme on the labour market and other industries;

(h) the impact of the scheme on the housing market and construction costs;

(i) the appropriate scope, powers and priorities of a Royal Commission into waste, fraud and abuse within the NDIS;

(j) any legislative, administrative or governance reforms required to strengthen oversight, restore public confidence and protect the integrity of the NDIS; and

(k) any other related matters.

The PRESIDENT (17:38): I understand it suits the convenience of the Senate for the deferred vote to be held now. The question is that the motion moved by Senator Hanson be agreed to.

The Senate divided. [17:39]

(The President—Senator Lines)

Ayes.....28
Noes.....34
Majority6

AYES

Antic, A.
Bell, S.
Brockman, W. E.
Chandler, C.
Hanson, P. L.
Liddle, K. J.
McKenzie, B. G.
Paterson, J. W.
Roberts, M. I.
Whitten, T.

Askew, W. (Teller)
Blyth, L.
Cadell, R. P.
Colbeck, R. M.
Henderson, S. M.
McDonald, S. E.
Nampijinpa Price, J. S.
Payman, F.
Sharma, D. N.

Babet, R. D.
Bragg, A. J.
Canavan, M. J.
Collins, J.
Kovacic, M.
McGrath, J. A.
O'Sullivan, M. A.
Pocock, D. W.
Smith, D. A.

NOES

Allman-Payne, P. J.
Chisholm, A. D.
Darmanin, L.
Ghosh, V.
Hanson-Young, S. C.
McAllister, J. R.
O'Neill, D. M.
Sheldon, A. V. (Teller)
Steele-John, J. A.
Tyrrell, T. M.
Waters, L. J.
Whiteaker, E.

Ananda-Rajah, M.
Ciccone, R.
Dolega, J.
Green, N. L.
Hodgins-May, S.
McKim, N. J.
Pocock, B.
Shoebridge, D. M.
Sterle, G.
Walker, C.
Watt, M. P.

Brown, C. L.
Cox, D.
Faruqi, M.
Grogan, K.
Lines, S.
Mulholland, C.
Polley, H.
Smith, M. F.
Stewart, J. N. A.
Walsh, J. C.
Whish-Wilson, P. S.

PAIRS

Cash, M. C.
Duniam, J. R.
Hume, J.
McLachlan, A. L.
Ruston, A.
Scarr, P. M.

Wong, P.
Dowling, R.
Farrell, D. E.
Gallagher, K. R.
McCarthy, M.
Ayres, T.

Question negated.

MATTERS OF URGENCY

Sovereign Capability

The ACTING DEPUTY PRESIDENT (Senator Sterle) (17:42): Senator O'Sullivan has submitted a proposal, under standing order 75, today, as shown at item 13 on today's Order of Business:

Pursuant to standing order 75, I give notice that today I propose to move "That, in the opinion of the Senate, the following is a matter of urgency:

The Albanese Government's failure to ensure Australia's sovereign capability in the supply of fertiliser, placing Australian agriculture, the resources sector and national food security at serious risk."

Is consideration of the proposal supported?

More than the number of senators required by the standing orders having risen in their places—

The ACTING DEPUTY PRESIDENT: With the concurrence of the Senate, the clerks will set the clock in line with the informal arrangements made by the whips.

Senator O'SULLIVAN (Western Australia—Deputy Manager of Opposition Business in the Senate) (17:43): I move:

That, in the opinion of the Senate, the following is a matter of urgency:

The Albanese Government's failure to ensure Australia's sovereign capability in the supply of fertiliser, placing Australian agriculture, the resources sector and national food security at serious risk.

Just weeks after the US-Israel strikes on Iran, the Albanese government has shown exactly how unprepared it is to deal with this global crisis. This is the reality: the US had been positioning various military assets off the coast of Iran for several weeks leading up to 28 February, yet what preparations were made? Everyone could see it. Everyone could see what was happening, but what preparations were made for a conflict and the potential impact that it might have on the Australian economy, in particular the supply of fuel and fertiliser? Evidently, very little.

This episode further underscores the lack of preparedness by this government in building resilience into Australia's sovereign capability. We learnt over the weekend, in my home state of Western Australia, of the two-month closure of Australia's largest ammonia plant in my home state there in WA. Ammonia is made from natural gas that comes from just across the road at the Karratha Gas Plant. Big pipes go across the road and feed into this very important plant. Out of this plant, ammonia is created. It takes a natural gas and converts it to ammonia and, further down the process, to ammonium nitrate, which is used in the mining industry. It's used to make big rocks little rocks. You blow it up, and then you load it on to the train and sell it overseas to the market that wants it. This is absolutely critical infrastructure.

Through no fault of anyone, there was a power failure at this particular site. They pressed the big red button which made it stop all of a sudden, and it's going to take two months for the repairs to be made and for the plant to be restarted. That means there is a two-month closure of this very important facility, this very important manufacturer of ammonia and ammonium nitrate. Ammonia is used as a precursor, as an ingredient, that goes into the producing of fertilisers, including urea. It's exported to other factories across Australia and indeed across the world. This plant's been closed, and it's going to be closed for two months—very unfortunate timing when you consider the Strait of Hormuz is also closed.

Then today in the *Australian* we read that Orica's Kooragang Island ammonia plant in New South Wales is also facing an outage. Two absolutely vital and critical facilities right at this time. Clearly it's an unusual circumstance that this has occurred right at this time, but it's a very unfortunate circumstance. It's really a double whammy when it comes to our sovereign resilience because we have now limited capacity to produce our own fertiliser and ammonium nitrate which is essential for the resources sector.

The shutdown of Yara Pilbara's plant shows and underlines a very serious problem that we have, which is our capacity to have sovereign manufacturing capability in this country. The fact is that we are so reliant on just a few facilities, and when a crisis comes, resilience is tested. Unfortunately, right now, Australia's resilience is seriously tested. Now, I'm not an alarmist—you know me, Acting Deputy President—but this is serious.

Unfortunately, as it is with fuel, we're not seeing the government step up. I asked a question during question time—well, I helped draft a question that Senator Kovacic asked—and it wasn't satisfactorily answered, frankly, because the minister didn't seem to grasp the seriousness of this issue. It is a serious problem that we've got such concentrated domestic facilities and that Australia doesn't have the capability to deal with our own needs, whether it be fuel or fertiliser and ammonium nitrate. The government needs to step up, and we need to create the right environment and policies to enable these production facilities to exist in this country. Unfortunately, under this government and their policies, it's hard to do. (*Time expired*)

Senator O'NEILL (New South Wales) (17:48): I will contend that Senator O'Sullivan generally isn't an alarmist in nature, but you made a pretty good effort at an impression of alarm there, Senator O'Sullivan.

Senator O'Sullivan: It's a serious problem.

Senator O'NEILL: It is a serious problem that needs to be dealt with, and it's a lucky thing for Australia that it's a stable Labor Albanese government that's in power right now, because the only thing that would be on offer from those opposite is the internecine warfare they've been inflicting on one another. That is not the kind of party that can lead a nation. We need orderly, steady government because this really matters.

Businesses do not look to the parliament for entertainment or cheap shots. They've got capital on the line. They've got their businesses on the line. They need sensible, clear, accurate information, and they need steady, clear pathways to delivering the essential things that Australia needs. That is what our government is focusing on. I didn't come into politics for entertainment value; I came into politics because I believe that this is a great country and it is

served well by great governments of the Labor tradition that take our role in this country very, very seriously. That is why I am proud to stand here today to try and get some facts on the record.

Australia today is absolutely navigating a world that looks very different from the one that many of us grew up in. In fact, it's very different to the world that we knew even five years ago. It's a world marked by uncertainty, conflict and economic pressure that reaches right into household budgets. It's in that environment that governments that are responsible, as our government is, take responsibility not to inflame fear but to provide stability, security and practical support where it's required.

The facts with regard to the fertiliser industry are important to put on the record for anybody who's listening across this great country. We know how vital this is for rural and regional Australians, who are looking at supply chains and the global upheaval of the moment and wondering exactly what this means for their businesses and how it will impact them. I want to be very clear that the government is very closely monitoring the impact on fuel and broader supply chains, including plastics and fertiliser. Not only are we monitoring this but we are working carefully and closely with industry to stay ahead of emerging risks. That work is being done not on the floor of the chamber in alarmism but in practical, serious consideration—off to the side, the proper work of government.

With particular regard to fertiliser and the matter of urea, Australia is not facing an immediate shortage. However, market conditions are tightening and pressure is likely to increase from early to mid-April as planting activity picks up. We know that, you know that, and that's why we are working to establish more stable supply lines and working with people in our region—not just from the Middle East, where we are exposed to that market at an extraordinarily high level. That has been our historical practice, but, as I said, this is a world in incredible flux.

To support farmers to plan with confidence, the government is working closely with the industry bodies that represent you as our farmers—as the growers of produce for this country. We need to maintain visibility of supply and consider the practical options that are necessary to stretch available nitrogen supplies and improve access wherever possible. On plastics and petrochemicals, the current state, as I speak to you today, is that there are currently no widespread shortages. But we all know—everybody's reading the news—that global supply conditions are tightening due to what's often called a force majeure event in Asia.

We are entering this period from a relatively strong market position. I'm proud of Australian farmers and I'm proud of Australian producers, who do the very best they can to use all of these resources as efficiently and effectively as possible. The fact that we have good know-how, good knowledge and good practice puts us in good stead. The government is working very carefully to understand emerging pressures and identify where bottlenecks are likely to occur, and we will address these issues as early as possible. That is steady government with commitment to the Australian people. No fear, no alarm—we'll get through this. (*Time expired*)

Senator WHISH-WILSON (Tasmania) (17:53): Australians, including Australian farmers, are hurting because this country has been dragged into another US forever war. It's ironic that the Liberal Party came in with this motion today; the Liberal Party are a party that supports this war. The National Party are a party that supports this war. The Labor Party—the government—are a party that supports this war. One Nation, another war party, are a political party that supports this war. They come in here today and they criticise the government for its lack of preparation. Well, I accept that, but you also support this conflict.

No wonder people are cynical and anxious about where this is all going to lead. Yes, Australian farmers should be concerned about input prices into their production, be it diesel or be it fertiliser. They should be concerned because there is no exit plan from this war. There's not even a plan B. We've been repeatedly lied to about this conflict. Where does it go from here? There is such a high level of anxiety in this country right now. Why are we being drawn into this war, queuing at petrol bowsers and paying more at the supermarkets because of countries like Israel and the US, who won't even tell us why they went into this war in the first place? Is it because of Israeli elections in a few months? Is that why we're all suffering? Could it be that simple? Who knows? But we know one thing, and that is that we need truth and we need transparency.

Let's talk about the fertiliser market, very quickly. It has been an issue in this country for decades—the fact that we have to import a lot of our fertilisers. Various governments haven't dealt with it. It's a good time to be having this debate now, when we are suffering under these conditions, but this is a long-term structural problem.

Senator McDONALD (Queensland—Deputy Leader of the Nationals in the Senate) (17:55): The lack of organisation and response by this Labor government has been silent and insidious, and supported in many cases by both the Greens party and many of the crossbenchers. They have done it under the cloak of pretending to take action, and I'll give you a couple of examples. The first one was in government. We were still trying to release offshore tenure and acreage for things like the Great Australian Bight for more drilling for oil, to support Australia's refineries, and more drilling for additional gas, and, of course, the project that we had approved under NAIF, which was the Perdaman urea project at Karratha. These were the sorts of actions that we were taking.

Let me outline to you what has happened in the last four years since Labor have been in government. They have released no new offshore acreage—except for some very deep acreage, which then has the additional condition of no seismic testing, which means wildcat drilling, and drill holes that cost around \$100 million each, so I'm not sure how many projects are going to take up that offer. They have encouraged activist organisations like the Environmental Defenders Office, and they've done that through funding them. Those activists have undermined every single new project for new gas; they're certainly not for new oil.

Even important projects like Perdaman have not been safe from the activists' greedy claws, with support from many of the crossbenchers trying to run arguments that somehow the development of this important urea project at Karratha would damage the environment, despite environmental approvals and others in place and this being in the national interest. The point has been made so clearly that the over two million tonnes of urea that will be manufactured at that site annually from 2027 would, in large part, cover Australia's domestic requirements. That is the sort of forward planning that the coalition was doing, but, under Labor, projects like the urea project have been delayed through activist lawfare, and offshore drilling for important oil projects to support refineries right here in Australia has been made so difficult.

The latest example is the changes to the EPBC legislation. There is nobody in their right mind that thinks that the new standards are going to in any way speed up, facilitate or provide greater clarity for decision-making in approvals. Indeed, it will be exactly the opposite. We will see duplication of consultation requirements for Aboriginal consultation. We have seen crazy outcomes like the 15-year vegetation management law to apply to all bioregions across Australia. We have seen no clarity on things like net gain. This is the sort of legislation that you introduce that pretends to be in Australia's national interests but actually will just see slow approvals or no approvals.

What Australians are now facing is the uncertainty driven by this conflict in the Middle East. It has brought into sharp relief the failure of this Labor government to actually progress anything new. Instead, they are taking credit for projects that were started under the coalition, and quietly killing off any of the other tenures that we had left in place in the May 2022 election.

We should be afraid. We've got two refineries left because of the subsidies and incentives left in place by the coalition. What about the crazy fuel standards introduced by Labor which mean that the Lytton refinery is forced to export the fuel that it refines because it doesn't meet Labor's new crazy standards? What about the safeguard mechanism that is our taxing energy producers out of existence? Australia is in a bad way under Labor. We will restore standards—(*Time expired*)

Senator MULHOLLAND (Queensland) (18:00): It feels like it's become a full-time job for the government to come into this place and correct the scaremongering of those opposite. They're not happy unless they're scaring little old ladies, worrying them about fuel, scaring them about fertiliser. Next, they'll be whipping them back up again about toilet paper. But facts matter right now, and they matter to the Australian people. Those opposite have never let the facts get in the way of a good bit of social media clickbait. In the era of increasing misinformation and disinformation, we cannot sit back and let this opposition put their political games ahead of the interests of the Australian people.

Let us turn to the fertiliser supply in this nation. It is vital that, like any critical supply measure, we discuss it calmly, based on facts, not on fearmongering. Since the escalation of the Iran conflict, the Minister for Climate Change and Energy, Chris Bowen, has been upfront about this difficult situation facing our nation. He has not denied the pressure that global supply chains are under. He has not sugar-coated the challenge. In fact, Minister Bowen has explicitly acknowledged that fertiliser sits at the acute end of the supply chain challenges being felt globally right now. In my home state of Queensland, where we have Australia's only producer of ammonium and phosphate fertiliser onshore, operating at Phosphate Hill in the north-west of the state, this is more important than ever before. We know that Australia sits in a very precarious situation because we are still reliant on imports of around 65 per cent of urea based fertiliser from the Middle East. That's how the Iranian conflict underscores why Australia can't rely purely on imports. It's part of our future made in Australia. That is why this government is charting our future made in Australia. We need to support the development of our sovereign capability. We know Australia's domestic urea production won't restart in Western Australia—in Senator O'Sullivan's own state—until 2027. We know there is more work that needs to be done to continue to build our sovereign capability, not just shutting refinery after refinery, like we saw under those opposite when they were last in power.

Turning back to fertiliser supply, fortunately there are supplies already in this country that are covering early-season demand. However, as the planting season continues, in mid-April, the government will continue to monitor the supply closely, which is why Ministers Bowen, Ayres and Collins met with the National Farmers' Federation and the fertiliser industry representatives, just last week, to coordinate our national response. Minister Collins, in partnership with the industry and the ACCC, is working on allowing sector coordination to make sure that fertiliser gets to where it needs to. This increased level of coordination and active monitoring is about greater transparency.

Transparency is critical in times of crisis. It would be beneficial, in the difficult weeks to come, if those opposite could try to show a similar level of leadership, because the coalition knows perfectly well it is impossible for Australia to somehow insulate itself from the global fertiliser markets overnight.

Senator O'Sullivan knows that fertiliser production is intrinsically tied to global energy markets, particularly gas. It's traded internationally and, when global supply chains are disrupted at scale, every country feels it. The question is not whether Australia can avoid global shocks entirely; the question is: how does a responsible government plan for and respond to those shocks when they occur? We know that those opposite did not have any real energy plan when they were last in government. Just the mere sight of a solar panel sends a shiver up their spine, and the mention of climate change sends their party room into a nuclear meltdown. Your new leader of the opposition was the worst energy minister in Australian history, overseeing the shutdown of six out of this country's eight oil refineries and wanting to stockpile our fuel in the United States of America. You never had a real plan, because you never did any real work in this space. You just crossed your fingers and hoped things would get better. Hope is not a plan; action is. In the Albanese government, Australians have a leadership team that has been talking action in a calm, considered and deliberate way as our country faces one of the most significant global energy and supply disruptions in our history.

Senator WHITTEN (Western Australia) (18:05): Fertiliser is not merely an import in Western Australia, along with diesel; it is the backbone of one of the most productive agricultural regions in the world. Western Australia produces roughly 40 per cent of Australia's grain exports, and that output is only possible because of consistent large-scale fertiliser use across the wheat belt and the south-west growing region. Urea is normally around \$700 a tonne. It is now almost \$1,400 a tonne and is predicted to go to \$2,000 a tonne. That's if you can get it. All fertiliser prices have almost doubled. Our farmers are hurting. Our farmers are seeding soon, and putting a crop in at a much greater cost is a potential double hit. If farmers can't put enough in at seeding due to availability and cost and if fertiliser is not available for the spring crop application or as an ongoing requirement for horticulture, dairy and beef, the situation gets exponentially worse, and then there's a diesel shortage and the extra costs that go with it, adding even more uncertainty for our farmers, who already have enough variables out of their control even before the supply and the cost of their two biggest imports were unreliable.

Banks are expecting foreclosures if businesses slow or stop their operations. It's a disaster. In the Pilbara, the Yara Pilbara Fertiliser plant on the Burrup Peninsula near Dampier is one of the largest ammonia facilities globally. Unfortunately, the Yara plant is currently shutdown for two months. Just-in-time systems have led to WA being particularly susceptible to shock. Decades of government mismanagement, neglect and irresponsibility have led to this vulnerability. We're the lucky country no more. One Nation has been saying that we need to be self-reliant and that Australia must stand on its own two feet for decades. We must take control of our country and our future.

Senator PAYMAN (Western Australia—Australia's Voice Whip) (18:07): A saying attributed to British intelligence branch MI5 is that society is always just four meals away from anarchy. Investment agency Klimb found that, in 2024, Australia consumed 8.7 million tonnes of fertiliser, valued at \$5.5 billion, of which imports accounted for 7.9 million tonnes. Reliance on international supplies has only risen as Australia's domestic manufacturing industry has withered. According to the commodity journal Argus Media, the price of urea, a key fertiliser, rose by nearly 20 per cent in the first week of the Iran war. Current domestic supplies are expected to last until mid-April, and, as Argus Media points out, this could not have come at a worse time. Domestic demand for granular urea peaks in April to June for pre-seeding and top-dressing applications on winter crops such as canola, barley and wheat.

Senator DEAN SMITH (Western Australia) (18:08): I rise to speak on this urgency motion because it goes to the heart of something this government should have secured a long time ago—Australia's sovereign capability in fertiliser supply. This is not a minor supply chain issue; it is a case study in how exposed Australia has become under the Albanese Labor government to external shocks in the critical imports needed to keep this country running.

Fertiliser underpins food production, mining and regional economies. In Western Australia in particular, ammonia is critical not only for agriculture but for the explosives that drive our resources sector. Australia's largest ammonia plant in the Pilbara—a place I know well—is shut for two months after a power outage damaged equipment on the site. It produces around 850,000 tonnes of ammonia a year, with a significant share feeding technical ammonium nitrate for mining and urea fertiliser. So, at precisely the moment global supply has tightened, local capacity has been limited. This leaves us at the mercy of external factors during a period of historic global uncertainty. In 2024, Australia consumed 8.7 million tonnes of fertiliser but imported 7.9 million tonnes. Domestic production has fallen to just 1.3 million tonnes, around 15 per cent of total consumption. Rather than being resilient, we are dependent, and much of that dependence runs through the world's most volatile chokepoints. More than a quarter of global ammonia trade and 43 per cent of urea shipments pass through the Strait of Hormuz. Australia sources more than half of its urea imports from Gulf nations, so when conflict disrupts that route, Australia is hit

immediately. Supply is tightening and prices surging, rising from around \$870 a tonne in late February to more than \$1,200 a tonne and, in some areas, as high as \$1,600 a tonne. Grain Central reports the world market is now struggling to send supply our way as the halt to shipping from the Persian Gulf enters its fourth week.

For farmers, this is not just about price. Timing is everything in farming. Fertiliser that arrives too late is not a solution, as Grain Producers Australia chair Barry Large made clear. Saying it will arrive in two weeks does not solve the problem. Growers in Western Australia are already being forced to rethink cropping decisions, reducing wheat plantings, shifting crops or cutting inputs altogether. As industry leaders are warning, if supply remains tight, some land will simply not be planted, and that incidentally is how food risk and insecurity begin—not with empty supermarket shelves overnight but with delayed seeding, reduced inputs, lower yields and less confidence to plant. The National Farmers' Federation has said that while current shipments may help secure this winter crop there is no confidence about supply beyond May, a point a Labor senator reiterated in her remarks. If in-crop requirements cannot be met, the winter crop in Australia could be halved. Those are not words that any government should hear and simply shrug off.

Agriculture is not the only sector exposed. Western Australia's mining industry relies on technical ammonium nitrate as explosives to sustain iron ore production. If supply is constrained, miners will be forced to rely on stockpiles or source alternative supplies at short notice. At a time when Australia should be strengthening sovereign industrial capability, this government has presided over growing fragility in a critical input for both agriculture and resources sectors. Fuel insecurity is compounding the problem. Farmers are already warning about difficulties obtaining enough diesel for seeding and harvest. Miners are experiencing the same shortages. Diesel prices have surged. The result is that they are being squeezed from both sides now—uncertain fertiliser and uncertain fuel.

Again, this is why sovereign capability matters. Australia has the gas, the industrial base, the agricultural demand and the strategic need to do better than this, yet under Labor we remain exposed to a single point of failure in global supply while domestic production has declined and contingency planning has lagged. The Albanese government has failed in this regard, and Australian farmers and Australia's regional communities and critical industries are now paying a very high price for Labor's lack of preparedness.

The PRESIDENT: The question is that the urgency motion as moved by Senator O'Sullivan be agreed to.

The Senate divided. [18:18]

(The President—Senator Lines)

Ayes.....37
Noes.....22
Majority.....15

AYES

Allman-Payne, P. J.
Babet, R. D.
Bragg, A. J.
Canavan, M. J.
Collins, J.
Hodgins-May, S.
McDonald, S. E.
McKim, N. J.
Payman, F.
Roberts, M. I.
Shoebridge, D. M.
Tyrrell, T. M.
Whitten, T.

Antic, A.
Bell, S.
Brockman, W. E.
Chandler, C.
Faruqi, M.
Kovacic, M.
McGrath, J. A.
Nampijinpa Price, J. S.
Pocock, B.
Ruston, A.
Smith, D. A.
Waters, L. J.

Askew, W. (Teller)
Blyth, L.
Cadell, R. P.
Colbeck, R. M.
Hanson-Young, S. C.
Liddle, K. J.
McKenzie, B. G.
Paterson, J. W.
Pocock, D. W.
Sharma, D. N.
Steele-John, J. A.
Whish-Wilson, P. S.

NOES

Ananda-Rajah, M.
Ciccone, R.
Dolega, J.
Grogan, K.
O'Neill, D. M.
Smith, M. F.
Walker, C.

Brown, C. L.
Cox, D.
Dowling, R.
Lines, S.
Polley, H.
Sterle, G.
Walsh, J. C.

Chisholm, A. D.
Darmanin, L. (Teller)
Green, N. L.
Mulholland, C.
Sheldon, A. V.
Stewart, J. N. A.
Watt, M. P.

Whiteaker, E.

PAIRS

Cash, M. C.
Duniam, J. R.
Hume, J.
McLachlan, A. L.
O'Sullivan, M. A.
Scarr, P. M.

Wong, P.
Ayres, T.
Farrell, D. E.
Gallagher, K. R.
McAllister, J. R.
McCarthy, M.

Question agreed to.

Cost of Living

The DEPUTY PRESIDENT (18:20): The Senate will now consider the proposal, under standing order 75, from Senator Tyrrell, which is shown at item 13 of today's Order of Business:

Pursuant to standing order 75, I give notice that today I propose to move "That, in the opinion of the Senate, the following is a matter of urgency:

The need to address the damage to Australians' cost-of-living caused by the conflict in the Middle East; proving that Australia needs to reduce its reliance on oil and global supply chains; by properly taxing gas exports; supporting the responsible transition to renewables; and reinstating Helium to the Critical Minerals List."

Is consideration of the proposal supported?

More than the number of senators required by the standing orders having risen in their places—

The DEPUTY PRESIDENT: With the concurrence of the Senate, the clerks will set the clock in line with the informal arrangements made by the whips.

Senator TYRRELL (Tasmania—Independent TAS Whip) (18:21): I move:

That, in the opinion of the Senate, the following is a matter of urgency:

The need to address the damage to Australians' cost-of-living caused by the conflict in the Middle East; proving that Australia needs to reduce its reliance on oil and global supply chains; by properly taxing gas exports; supporting the responsible transition to renewables; and reinstating Helium to the Critical Minerals List.

Ordinary Australians shouldn't be punished at the bowser for a conflict started halfway across the world. Our reliance on oil and our exposure to global supply chains have meant we've seen petrol prices skyrocket. Groceries will be even more expensive from higher transport costs, and Australians are at risk of losing basic healthcare essentials like MRIs.

Tasmanians know that I've been advocating hard for a 25 per cent gas export tax on gas companies. It's outrageous that we raise more from the tax on beer than we do from the multinational corporations exporting our natural sovereign resources. We should be taxing our gas exports to fund our sovereign wealth fund and to have better health care, education and housing. We would raise enough money to fix our debt whilst providing better services and providing cost-of-living relief. The government's excuse that it's scared to get the policy right isn't good enough to deprive Australians of a better quality of life and better economic conditions. We're one of the top three gas producers in the world. We shouldn't have high energy bills. The tax on gas exports should start now and stay in place permanently to benefit generations to come.

But we could also easily expand this 25 per cent tax so that it would be much higher during times of conflict, when the oil price skyrockets and the oil companies earn superprofits. The government should also implement a time limited tax on the windfall superprofits of oil and gas exporters—specifically those generated by the Middle East conflict. Every dollar raised by this tax would be used to make fuel cheaper by reducing the fuel excise. That means cheaper fuel for Australians, funded by un-ordinary windfall superprofits of multinational gas companies. This is a commonsense and budget-neutral solution to the current fuel crisis. With the conflict in Iran causing petrol prices to skyrocket, it is fundamentally unfair that multinational corporations are pocketing record profits from global instability while regular Australian struggle to fill their tanks.

But let's remember that it was One Nation that pushed hard for a war in Iran, knowing full well that such an action would lead to skyrocketing petrol prices for Australian. They hate and vote against solar panel rebates, but then their own leader uses them for her personal residence. Talk about hypocrisy! Maybe it's something to do with making more money for the mining billionaires who fund their party, all at the cost of working Australians. Their priority is the mining industry, not ordinary Australians. My priority is and will always be helping Tasmanians—all Tasmanians, not just the rich ones, not just the white ones and not just the ones in the major cities.

An additional superprofits tax during times of oil price crisis would lower petrol prices and reduce broader transportation costs for food and goods, putting downward pressure on inflation and interest rates. Yes, it would help keep inflation down and keep our interest rates from soaring as we have seen them do in the last few weeks. That means lower grocery prices and lower mortgage repayments. But the conflict in the Middle East hasn't just shown our reliance on oil and driven up inflation; it has also shown the need for sovereign capability for critical resources like helium.

As the President of the European Commission said today, dependencies can be weaponised. Australia is entirely dependent on importing helium, with no domestic commercial-scale production, despite possessing significant geological reserves. This places us in an extraordinarily vulnerable position. Our hospitals, our defence industry, our high-tech manufacturers and millions of everyday Australians who depend on MRI screenings are entirely at the mercy of a volatile global supply chain dominated by a handful of geopolitically sensitive producers. The conflict has caused helium production in Qatar to halt, which supplies approximately 30 per cent of the world's traded helium, causing a doubling of helium prices. If we lose supply, our MRIs stop, our datacentres overheat, and our AUKUS agreement is in jeopardy. Helium meets every reasonable test of a critical mineral. It cannot be substituted. It is essential for defence and health care. Its supply chain is totally vulnerable to disruption, and Australia currently produces none of it domestically. While the government celebrates Minerals Week, we don't even have a critical minerals list that reflects the minerals that Australia needs to survive and prosper. So let's urgently prioritise helping Australians' cost of living. Let's impose a 25 per cent tax on gas exports to fix our debt and provide better services for generations to come. (*Time expired*)

Senator DAVID POCKOCK (Australian Capital Territory—Independent ACT Whip) (18:26): In politics, we tend to focus on left versus right, and the media focuses a huge amount on left versus right. But the more time you spend in this place the more you start to realise that, actually, there are so many issues that we're not getting action on and that aren't actually left versus right; they are up versus down. They are vested interests—with the hold that they have on some of our political parties in this country—versus the Australian people. We're seeing this play out. We are seeing more and more Australians looking at the decisions that are made in this place and saying: 'Hang on. That doesn't make sense to me.' We're one of the biggest gas exporters in the world, and, every time the global LNG price goes up, we struggle. Aussies get smashed. Electricity prices go up. This is gas that is belonging to all Australians and being exported, and we haven't had the political will from either side of politics in the major parties, from Labor or the coalition, to actually say to gas companies: 'Hey, you're exporting Australia's gas. That belongs to all Australians. It actually belongs to future generations of Australians. Surely, we should be getting a fair return so we can pay for the services that Australians want now and ideally put some away for the future.' So this is just another one of those issues where you actually see, amongst the minor parties and Independents, there is such broad agreement. We should have a 25 per cent tax on gas exports in this country. Had we had the political leadership and foresight when Russia invaded Ukraine to introduce that, we'd be sitting on over \$60 billion worth of revenue from the sale of our gas, and that would rightly be in the hands of the Australian people, held by the government to spend money on the things that Australians need and, as I said, to hopefully put some away for future generations. So I thank Senator Tyrrell for bringing this motion forward.

We have to deal with this as a country. We can't keep getting distracted by culture wars or by left-versus-right politics, when, actually, at the core of so many of the issues we face are vested interests and their stranglehold on the major parties, meaning that we're not getting the action that Australians want.

Senator PAYMAN (Western Australia—Australia's Voice Whip) (18:29): I don't know about you, but it feels a bit 'Let them eat cake' to attend a lavish party hosted by a billionaire while parts of the world literally burn and while regular Australians are facing a cost-of-living shitstorm.

There are Western Australians living out of cars, showering in their workplaces, and soon those people will not be able to drive their car to work because fuel, if you can get it, will likely exceed \$3 a litre. That is the reality on the ground for so many Australians, and it lays bare a deep growing inequality between those accumulating wealth and those barely keeping their heads above water. In the meantime, we have the people in this chamber, and in the other place, entertaining, meeting and jetsetting with literal billionaires. Those same people are conveniently, and unfortunately with great success, pointing at migrants and saying, 'They're to blame for your woes,' while cynically sucking on the teat of Rinehart, Pratt and others.

In a vacuum of leadership, it has become incumbent on the crossbench to prosecute the ideas that sit gathering dust in Labor Party platform documents across the country. Sensible policy ideas like 25 per cent tax on gas exports, capital gains tax reforms and making sure billionaires and foreign based multinationals are paying their fair share in tax are a good start. Then we could explore the reinvigoration of manufacturing and the diversification of our economy, away from the 'dig up and ship off' we've become so accustomed to. And none of this is revolutionary.

These are all things that the Labor Party have proposed in one way or another, but, when they are handed the baton, they put it in the too-hard basket.

Senator WHITEAKER (Western Australia) (18:31): We understand that Australians are doing it tough. We are not immune to the international pressures on fuel supply and cost, and that is why our government is looking at every practical measure to shield our nation and household budgets from the impacts of this global uncertainty.

In moments like this, Australians want to know who is actually helping and who is just talk. Australians want to know who is standing in the way of meaningful, practical cost-of-living relief. While this government has been committed to that real, practical cost-of-living relief for many years, since coming to government, the coalition and One Nation have stood in the way of every single one of those measures. And let's be clear about what that means. They've opposed measures that would put money back in the pockets of ordinary Australians. They've opposed the action that we have taken to boost wages and reduce pressure on households. They've opposed reforms that make essential services more affordable.

This is not the approach that our government has taken. We know that Australians are feeling the pressure, and we are continuing to roll out cost-of-living relief for Australian households. Our No. 1 focus is easing pressure on Australian families, and that means taking practical action to help Australians with the cost of living. We've delivered tax cuts for every taxpayer, and there's another one coming in July. We have supported a pay rise for minimum and award wage workers, with total increases now over \$9,000. We've expanded paid parental leave to 24 weeks, and super is now paid on top of government parental leave.

We're cutting the cost of medicines, with PBS medicines now costing \$25, the lowest they've been since 2004. We're strengthening Medicare so that more Australians can see a GP for free. We're opening more Medicare urgent care clinics right across the country so that Australians can walk in and get urgent care with just their Medicare card.

We're taking action to bring down energy costs for households, with our 30 per cent off home battery rebate, which will permanently cut the cost of Australians' power bills. We're helping renters, with more than one million households benefiting from our increases to rental assistance. More than one million Australians are receiving higher social security payments thanks to our government. We're giving more support to single parents and to pensioners. We're helping Australians into homeownership, with five per cent home deposits, saving first home buyers tens of thousands of dollars on lenders' mortgage insurance. We're supporting apprentices with \$10,000 bonuses. We've cut student debt by 20 per cent. This is real, meaningful support so that Australians can get ahead. We are making sure that no-one is left behind. This is real cost-of-living relief because our government wants Australians to earn more and keep more of what they earn.

But the truth is that every one of those measures has been opposed or delayed or undermined by the Liberals and the Nationals and One Nation. They opposed our measures to increase wages. They opposed our measures to cut the cost of health care. They have opposed our reforms to making housing more affordable and building more homes. In fact, they took a plan for higher taxes to the last election. Labor has always been and always will be the party of fairness in Australia. We know the importance of this work to bring down pressure on households right across this country.

Those opposite want to talk down our economy. They want to amplify uncertainty, and that is their choice. But Australians should be clear about what that means, because if the Liberals and Nationals were in government, Australians' power bills would be higher, they would be paying more for medicines, they would be paying more to see a doctor and they would be paying more to get into their own homes. Labor is the only party that is easing cost of living for Australians.

Senator DOWLING (Tasmania) (18:36): I think this urgency motion does go to a real and legitimate anxiety of Australian households. People are watching the events in the Middle East. They're seeing pressures on global energy markets, and they're wondering what it means for their fuel bills, their grocery bills and their broader cost of living. We heard from the head of the International Energy Agency, in the last day or so, that this crisis is more than both the 1970s oil crises combined. It's a significant scale.

When conflict disrupts international markets, the effects don't stay neatly contained overseas. They move through shipping, freight, fuel and supply chains, and, before long, they arrive at the kitchen tables of homes right across the country. That is why the right response is not panic; it's practical action. As my colleague Senator Whiteaker outlined, this government does understand that Australians are still under pressure. There is no denial of that. That is why cost-of-living relief remains an essential priority.

We have delivered tax cuts for every taxpayer, and we have another round to come in July. We've backed wage increases for minimum and award workers. We've reduced the maximum cost of PBS medicines to just \$25. We've expanded bulk-billing, opened Medicare urgent care clinics and provided more funding for public hospitals. We've

increased rent assistance, strengthened income support and cut student debt by 20 per cent. We've expanded low-deposit pathways for first home buyers and backed more housing apprenticeships to help build the homes Australia needs. We're also helping households reduce ongoing energy costs, including through support for home batteries. These are all cost-of-living measures. They are all practical measures. They are not abstract claims. They are designed to take pressure off households, where families actually feel it.

At the same time, the government has acted swiftly on fuel security. We've empowered the ACCC to watch for unfair price spikes and anticompetitive conduct. We've moved to release part of the minimum stockholding obligation for petrol and diesel to support supply. We have acted to bring more fuel into the market. We have signed an agreement with Singapore, one of the country's biggest sources of refined petroleum, to keep supplies of diesel and petrol flowing. We are working with states and territories and industry to make sure fuel gets to where it is needed, especially in regional communities.

Following National Cabinet, the government also strengthened coordination through a Fuel Supply Taskforce Coordinator so that decisions are implemented quickly and supply chains keep moving. That matters everywhere, but it matters especially in my home state of Tasmania. Tasmanians feel freight and transport pressures more sharply than most. Regional communities feel disruption early. Farmers, small businesses, working families, cannot simply absorb endless shocks flowing from overseas conflict.

The motion put to us also raises the issue of taxing gas exports as though it is a straightforward answer to cost-of-living pressures. It's not. It's not a straightforward answer to cost-of-living pressures. Cost of living and taxes on our natural resources are two separate issues entirely. Resource taxation is a complex policy question that deserves complex consideration, and it has merit. It goes to investment settings, production decisions, long-term supply and energy security. Those issues should be debated carefully, not conflated with a cost-of-living crisis we are in right now that is driven by overseas conflicts. It is not a simple, quick-fix slogan solution. If we get the balance wrong and scare away investment, we'll risk reducing supply, and, when supply tightens, prices rise. That's not just a theory. That is the risk if we get this wrong.

So the objective is to ease pressure on households and businesses, and we need to be very careful about pretending that more tax on natural resources is some simple, consequence-free answer because it's not. Australians need steady policy, not slogans. They need government focused on the basics: wages, health care, medicines, housing and energy security. They need confidence that when global instability puts pressure on household budgets the government will act calmly, practically and in the national interest, and that is what this government is doing, because the cost of living is not an academic exercise. It is whether a parent can fill the car and still afford the weekly shop. That is what Australians rightly expect their national government to be focused on.

Senator BARBARA POCKOCK (South Australia) (18:41): I rise to speak to this urgency motion. Labor must do more to help Australians with the economic fallout of an illegal war which has included a fuel crisis and a cost-of-living spike, and they can start with a gas tax. The Greens are calling for a tax on gas exports of at least 25 per cent. This is a step, which is long overdue, towards fair compensation for our national resources. Gas companies have pillaged Australia's resources for decades and now stand to make billions more in blood money from a war-driven price hike. While ordinary Australians are paying the price of this illegal war, companies like Santos and Woodside pay barely any tax. To add insult to injury, 56 per cent of all Australian gas is exported without paying a cent in royalties—incredible.

We've just heard from Senator Dowling about how it's all very hard and nothing is simple. Well, taxing organisations for exporting our own resources is simple. Other countries do it every day. Why are we failing to do this? Why are we allowing super profits, war profits, to boost the bottom line for these companies while Australians miss out? These massive gas corporations take Australian gas for free, and they make obscene profits. Recent polling shows that an overwhelming number of Australians want a gas exports tax. They get it. They know it's doable. Only five per cent disagree. A gas exports tax could raise \$17 billion in a single year. Think about what that could do to assist those dealing with a massive cost-of-living crisis. It would make public transport free—it would really help with our transport costs—and assist with health, education, aged care and the housing crisis. If this 25 per cent gas exports tax had been introduced in 2022, it would've raised more than \$63 billion by now. That's \$63 billion we could've used for the services Australians need. It's a sensible measure, it's a doable measure, it has support across the political spectrum, and it's very widely supported by civilian society.

The government needs to act now to stop this war profiteering and ensure Australians are getting their fair share of their own wealth. Last sitting week, Labor, the Liberals and One Nation teamed up to vote against a gas exports tax. The three war parties showed us exactly who they work for, and it's not for ordinary Australians. The Greens have written to the Prime Minister and have offered to pass a 25 per cent gas exports tax this fortnight. The government has the numbers with the Greens in the Senate to pass really good reforms like this that would make a huge difference. Australians have been crystal clear: they want to tax gas exports, and they want to tax them now.

Senator BRAGG (New South Wales) (18:44): I do understand why so many Australians hate politicians, because it is an irritating debate to engage in at times, because we have lived through a massive supply-side failure here. Now, the Treasurer and his cabinet colleagues assert that they have read the book *Abundance* by Klein and Thompson of New York fame. But I don't think that's right; I don't think they have read the book. If they had read the book, they would have known that the supply-side challenge which we face in Australia, and in other countries, like the US, is one which inhibits the growth that is needed to help people on average incomes actually achieve their goals.

Right now, in Australia, I would say that this shock has exposed that we don't have enough capacity—that we are at the arse end of the food chain, for want of a better expression.

The ACTING DEPUTY PRESIDENT (Senator Ciccone): Senator, can I just remind you of your language, please.

Senator BRAGG: I withdraw that.

The ACTING DEPUTY PRESIDENT: Thank you.

Senator BRAGG: But we are at the bottom end of the supply chain, in many respects. So this has exposed vulnerabilities, and it has exposed the failure, on the supply side, to actually get enough resources into the market to ensure that Australians can avail themselves of reasonably priced resources to fuel their cars, and farmers can fuel their crops and businesses can maintain their actual function.

Now, we have the resources in this country. We've done a very bad job of mining them—and I make that point across the board. I mean, we should have had more oil and more gas; we should have had more uranium; we should have had more renewables. We should have more of everything. It's a massive supply-side challenge, in a country that is endowed with extraordinary potential. Renewables, fossil fuels—who cares? I mean, I don't think it really matters.

Right now, people are living in what the psychologist Maslow talked about—his hierarchy. People just want to put petrol in their car at a reasonable price so that they can get to work. Industry wants to be able to maintain its function, which it cannot do unless it gets access to reasonably priced diesel—or gets access to diesel in any respect.

So my point is that this has been a considerable supply-side failure. The red tape, the regulation—all the garbage that Canberra has done—and the tax burden have meant that it has been uneconomic, or not possible, to develop the resources that are underneath our feet, here in Australia, or, indeed, in the sky.

The same issue applies to the housing debate, which I note has been part of a lot of the contributions tonight. It's the same problem. It's a supply-side failure—a massive supply-side failure.

Again, the *Abundance* book actually documents how bad all these different regulations were, in the United States, in holding back the development of housing. This government has made all the mistakes that were made in California and other jurisdictions, about which politicians have said lovely, warm, fuzzy things, but which massively fail when it comes to actually delivering things.

What the Australian people want their politicians to do is to get them access to reasonably priced housing and resources, so they can have their lives, do their jobs, have a family—whatever. Who gives a rat's? It doesn't really matter. But the foundational components of this debate have been completely lost when people go to these kneejerk ideas like, 'Let's put more taxes onto housing,' or, 'Let's put more taxes onto resources.' I mean, it's insane. More taxes will result in fewer things happening, because we live in a competitive world where other countries also have resources and opportunities to do things. And the fact is that one of the reasons we don't have many houses being built in Australia is that people can't make any money out of it. It's uneconomic to build. So people who have resources have decided: 'Well, I'm not going to build houses. I can't make any money out of that. So I'll do something else.' This is how the market works.

We have had massive supply-side failures under this government. They have been there for four long years. They have cooked housing. They have cooked the ability for us to respond to this crisis in the Middle East, because we have no resources of our own. We're importing oil. We have heaps: we have 40 years of oil in Australia, that we could have had, right now—40 years of it. We could have had more renewables. We could have had more power. We're going to need more power, more stuff and more houses, and we won't get any of that, under this government, because they don't seem to know what they're doing. They say they've read the book, but I think they're actually telling a big whopper.

Senator ROBERTS (Queensland) (18:49): I thank Senator Tyrrell for this motion, which One Nation supports. My comments go to the connection between helium and the quality of living in Australia. Helium was included on Australia's Critical Minerals List until this Labor government removed it in December 2023, the same month the government allowed our only helium plant to close. Not only did the government not do anything to save the Darwin

plant; taking helium off the Critical Minerals List cleared the way. Now we import our helium from Qatar, the US, Algeria and Russia, three of whom are caught in the current war.

Helium is unique, meaning no other gas can replace it. It's needed in health care. Every MRI machine in Australia requires liquid helium to cool its superconducting magnets. Without it MRIs can't operate, disrupting diagnostics for cancer, neurological conditions and more. Running out is not an option; Australians will suffer. It is needed in semiconductors, electronics and quantum computing. Helium is essential for cooling, purging and atmosphere control in chip fabrication, which is a rapidly growing Australian industry that generates things this government hates: non-government jobs and financial independence. It is needed in data centres. The government is forcing more people into the digital economy, then it's taking away the gas that cools the data centres. What could go wrong? Helium is also needed in defence applications, the other thing this government doesn't want.

All the Albanese government can offer the Australian people is no petrol, no diesel, no fertiliser, no houses, falling wages, falling per-capita growth, falling wealth, falling productivity and falling prosperity. They have managed to freeze the economy at a complete standstill—no helium is needed now. One Nation will make the Critical Minerals List great again and produce everything on the list here in Australia. We have the minerals. One Nation loves this country, and we want everyone who's here to have a life of wealth, security and abundance.

Question negated.

DOCUMENTS

Consideration

Documents reserved for future debate will be listed on the *Notice Paper*.

COMMITTEES

Human Rights Joint Committee

Report

Senator DARMANIN (Victoria—Deputy Government Whip in the Senate) (18:53): On behalf of the Chair of the Parliamentary Joint Committee on Human Rights, I present *Human rights scrutiny report: report 3 of 2026* of the Parliamentary Joint Committee on Human Rights.

Corporations and Financial Services Joint Committee

Economics References Committee

Foreign Affairs, Defence and Trade Legislation Committee

Human Rights Joint Committee

Legal and Constitutional Affairs Legislation Committee

Treaties Joint Committee

Government Response to Report

Senator WALSH (Victoria—Minister for Early Childhood Education and Minister for Youth) (18:53): I present eight government responses to committee reports as listed on today's Order of Business. I seek leave to incorporate the documents in *Hansard*.

Leave granted.

The documents read as follows—

Australian Government response to the Parliamentary Joint Committee on Corporations and Financial Services.

Statutory inquiry into ASIC, the Takeovers Panel, and the corporations legislation: ASIC licence transfers

March 2026

Response to the recommendations

Recommendation 1

The committee recommends that ASIC include information in its annual report on the numbers of transfers or changes in control that occur each year for each type of ASIC licence, including:

- Australian Financial Service Licences;
- Australian credit licences;
- Australian auditor registrations;
- market licences;
- benchmark operator licences; and

- clearing and settlement licences.

Australian Government response

The Government notes this recommendation, which is directed to ASIC.

The Government expects ASIC to act transparently and to provide data, where appropriate, to support policy analysis. The Government supports ASIC's consideration of whether it can make available further data on licence transfers and, if so, what is the best medium for publishing that data and what additional context, if any, would be useful to publish alongside it.

Recommendation 2

The committee recommends that ASIC undertake and publish an audit to determine how many instances there are where an entity has acquired an ASIC licence through a transfer or a change in control, where the entity previously had the same licence type application/assessment refused, withdrawn, rejected, cancelled, or suspended.

Australian Government response

The Government notes this recommendation, which is directed to ASIC.

The Government supports ASIC in considering whether to undertake and publish an audit of the kind recommended by the Committee, noting that this would likely divert resources from other regulatory priorities.

Recommendation 3

The committee recommends that ASIC examine the transfer or change in control of all high-risk licences including market licences, benchmark operator licences, clearing and settlement licences, and any financial service or credit licence transfers or changes in control that have high-risk features due to the scale or complexity of the service to be provided under the licence.

Australian Government response

The Government notes this recommendation, which is directed to ASIC.

ASIC already takes an appropriately risk-based approach to its regulatory responsibilities. It has a full suite of regulatory tools which it uses in a targeted and proportionate way, to identify and reduce the risk of misconduct in markets and sectors governed by the licensing regimes. It focuses its action on areas of greatest harm, and takes an active and targeted approach to enforcement. The Government expects and supports ASIC to apply that risk-based approach to the exercise of its powers to examine changes to the control of licensees.

Recommendation 4

The committee recommends that there be a review of the economic incentives for companies to acquire an ASIC licence through a transfer or change in control, rather than apply for that licence. This review should include potential changes to the law that may reduce the time and costs of licence applications and transfers for ASIC and industry.

Australian Government response

The Government notes this recommendation.

The Government understands that the Committee felt unable to analyse 'the reasons and economic incentives for companies to pursue license transfers rather than applying to ASIC for a licence'. In the course of the Committee's inquiry it explored with ASIC the extent to which timeliness of ASIC licensing decisions could be a factor in a decision to acquire a licence. Other factors that might incentivise a firm to acquire a licence could include (but are unlikely to be limited to) the goodwill associated with a particular licence, its client list, its status as a going concern, its established trading history, or the opportunity to increase the firm's market share or diversify its operations.

The Committee's suggested line of enquiry for a review is 'to identify the shares of licence transfers that occur to acquire the licences, versus licence transfers that are incidental to changes in control that happened for other reasons'. This would likely be a resource-intensive process of attempting to impute reasons for arrangements that may not be apparent on the face of the commercial transactions involved.

While the Committee suggested that Treasury or the Financial Regulator Assessment Authority conduct such a review, the Government considers there are currently other priorities with a stronger claim on those institutions' resources. The Government will keep the Committee's interest in this matter in mind should additional review resources become available. Information Integrity on Climate Change and Energy—Select Committee

Australian Government response to the Senate Economics References Committee report:

Micro-competition opportunities in e-conveyancing

March 2026

Introduction

The Australian Government thanks the Senate Economic References Committee for its consideration of micro-competition opportunities in e-conveyancing.

The Government supports progress toward a more competitive, dynamic and resilient Electronic Conveyancing (eConveyancing) market that benefits consumers, practitioners, industry participants and the broader economy. The Government recognises that competition in eConveyancing is constrained by the existing market structure, and challenges to date in

delivering a functional model for interoperability. The Government considers that a more competitive market could support improved service quality, strengthen system resilience, and put downward pressure on costs and prices across the supply chain.

Responsibility for regulating eConveyancing primarily rests with the states and territories. There is substantial work underway across jurisdictions, and significant resources expended to date, to develop a sustainable and competitive market structure for eConveyancing. The Commonwealth supports these efforts and recognises that ongoing cooperation between governments is necessary to achieve the best outcomes for consumers, businesses, and the wider Australian public.

At the same time, the Government acknowledges that significant challenges must be navigated to arrive at a more competitive market outcome. These include addressing regulatory gaps, resolving outstanding issues with interoperability models and viable alternatives, and ensuring appropriate governance and accountability arrangements across the sector. These are complex issues that remain under active consideration by governments.

The Government provides the following response to the Committee's recommendations.

Response to the recommendations

Recommendation 1

The Committee recommends that the Australian Registrars' National Electronic Conveyancing Council (ARNECC) invite the Australian Competition and Consumer Commission (ACCC) to have a permanent presence on the Council and attend its meetings regularly.

Australian Government response

The Government **notes** this recommendation.

While it is a matter for ARNECC to invite participation from individuals and agencies as it sees fit, the Government does not consider that making the ACCC a permanent member would materially improve ARNECC's regulatory effectiveness or enhance the development of eConveyancing policy.

The ACCC has no formal role in relation to Conveyancing beyond its normal functions administering the *Competition and Consumer Act 2010* (CCA). The ACCC, alongside Council of Financial Regulators (CFR) member agencies, engages with ARNECC through regular cross-agency meetings, as well as through ad-hoc senior engagement. Through these engagement mechanisms, the ACCC can continue to provide advice to promote effective competition and regulation in eConveyancing, as appropriate, and consider potential breaches of the CCA. Permanent ACCC membership within ARNECC would likely increase resourcing requirements for the ACCC without materially improving its ability to provide advice or undertake its statutory functions.

Recommendation 2

The Committee recommends that following the release of the Australian Registrars' National Electronic Conveyancing Council reviews:

- the Australian Competition and Consumer Commission investigate the e-conveyancing market and report on its findings to both the Treasurer and the Assistant Minister for Competition, Charities and Treasury within six months as to whether further action is required in the e-conveyancing sector; and
- the Australian Competition and Consumer Commission publish the report of its findings, to be tabled in the Senate within fifteen sitting days.

Australian Government response

The Government **does not support** this recommendation.

The Government recognises that section 95H of the CCA allows the relevant Minister to direct the ACCC to hold an inquiry into a specified matter or specified matters.

The Government notes that substantial work is already underway to address competition and interoperability issues in eConveyancing. ARNECC has recently finalised and published reports for two of its three strategic reviews on interoperability. ARNECC is also working to finalise its third review, which focuses on the eConveyancing regulatory framework. Relevant Commonwealth regulators are actively contributing to this work. A NSW Select Committee inquiry into competition reforms in eConveyancing is currently examining many of the same issues.

Collectively, these and other related processes have identified and explored the key competition and market structure concerns in the sector, and have provided a detailed and well-developed evidence base of where the major frictions arise.

Considering the extensive work underway and already completed, the Government does not consider that directing the ACCC to undertake an inquiry at this time would materially advance understanding of the issues or deliver additional practical benefits. It is not clear that a further inquiry would provide new insights beyond those already being examined through existing regulatory, policy and parliamentary processes.

Recommendation 3

The Committee recommends that:

- the Australian Registrar's National Electronic Conveyancing Council make the Financial Requirements Review and the Cost Benefit Analysis publicly available; and

- if public release is not possible, then a summary of key findings and recommendations be provided to the Australian Competition and Consumer Commission, the Treasurer, the Assistant Minister for Competition, Charities and Treasury and tabled in the Senate fifteen sitting days from receipt.

Australian Government response

The Government **supports** this recommendation.

The Government notes ARNECC published these reports on 23 December 2025.

Recommendation 4

The Committee recommends that, in the event that interoperability is not pursued after reviews by the Australian Registrars' National Electronic Conveyancing Council are completed, the Australian Government should review what other initiatives might be taken to ensure the reliability and resilience of the e-conveyancing sector.

Australian Government response

The Government **supports in principle** this recommendation.

The Government will continue to work with state and territory governments through ARNECC and relevant ministerial forums to support the development of regulatory and market models that address key risks and maximise net public benefits. This includes engaging with ARNECC as it progresses its current review and follow on actions, and considering how Commonwealth expertise, particularly in competition law and policy, payments regulation, financial services, and consumer protection can constructively complement state and territory regulatory responsibilities.

The findings of ARNECC's regulatory governance review, due later this year, will provide a clearer picture of the coverage and gaps in eConveyancing regulation. The Government remains open to considering appropriate regulatory and non-regulatory roles for the Commonwealth, where such involvement would be in the public interest and enhance system resilience, support effective competition, and address issues that states and territories cannot practically resolve alone.

ARNECC has an existing framework for overseeing the performance levels of Electronic Lodgment Network Operators (ELNO) under its Model Operating Requirements (MOR), which set minimum standards of service availability and reliability, system performance (including resilience) and incident management. State and territory registrars determine Operating Requirements for their respective jurisdiction based on the MOR developed by ARNECC. ARNECC regularly monitors ELNOs' performance with these requirements.

The Government supports ARNECC conducting a review of how it can uplift existing data and reporting practices through its MOR to improve transparency and thereby strengthen reliability and resilience of ELNO systems.

Recommendation 5

The Committee recommends, regardless of the finding of the Australian Competition and Consumer Commission on whether any further action is required, that national competition policy (NCP) reforms by the Australian Government consider e-conveyancing in a future tranche.

Australian Government response

The Government **notes** this recommendation.

The Government works collaboratively with states and territories to scope and develop reform proposals that can progress under the NCP framework. Governments, via the Council on Federal Financial Relations (CFFR) agree to NCP reforms under a Federation Funding Agreement (FFA) Schedule.

NCP aims to progress reforms that reflect national priorities and will facilitate effective competition across Australia's economy to promote efficiency and productivity growth to sustainably improve living standards and opportunities for Australians. Reforms must align with one or more of the objectives outlined in the NCP FFA schedule, which include *promoting a more dynamic business environment* and *leveraging the economic opportunities of data and digital technology*. The Government will work with state and territory Governments through the NCP governance framework to consider whether there are eConveyancing reforms suitable to progress through NCP.

Recommendation 6

The Committee recommends that the Australian Prudential Regulation Authority prioritise the auditing of banking institutions compliance with Prudential Standard Cross-industry Prudential Standard 230 and to publish a report of its findings in an e-conveyancing context by 30 June 2026.

Australian Government response

The Government **notes** this recommendation.

The Government recognises the importance of operational resilience across the financial system. The Australian Prudential Regulation Authority's (APRA) mandate under the Australian *Prudential Regulation Authority Act 1998* and the *Banking Act 1959* is to promote the safety and stability of regulated entities through a risk-based, system-wide prudential framework.

APRA is an independent statutory authority. APRA's existing statement of expectations issued by Government also recognises APRA's regulatory independence. Consistent with its expectations of APRA's role, the Government will not seek to influence how APRA undertakes specific compliance activities within its area of regulatory responsibility.

APRA's standard requires that regulated entities are responsible for identifying and managing risks associated with any material service providers supporting their critical operations, including ensuring appropriate contractual and contingency

arrangements are in place. Material service providers are those on which the entity relies to undertake a critical operation or that expose it to material operational risk.

APRA will continue to supervise CPS 230 compliance through its established supervision programme (2025—2028) and provide prudential insights to Government where appropriate.

Australian Government response to the Senate Economics References Committee report:

Residential electrification

MARCH 2026

Introduction

On 14 June 2023, the Senate referred an inquiry into Australia's residential electrification efforts to the Senate Economics References Committee (committee).ⁱ The terms of reference were to inquire into Australia's residential electrification efforts, with particular reference to:

- a) the economic opportunities of household electrification, including but not limited to:
 - i. long-term reduction of energy price inflation
 - ii. long-term employment opportunities
 - iii. the scaling up of domestic capacity
- a) the macro-barriers to increasing the uptake of home electrification
- b) the total upfront cost and longer-term benefits of household electrification and alternative models for funding and implementation
- c) the marginal cost of abatement for household electrification compared to alternative sectors and options to decarbonise the economy
- d) the optimal timeline for household electrification accounting for the likely timing of decarbonising electricity
- e) the impacts and opportunities of household electrification for domestic energy security, household energy independence and for balance of international trade
- f) the impacts of household electrification on reducing household energy spending and energy inflation as a component of the consumer price index
- g) solutions to the economic barriers to electrification for low-income households
- h) the effectiveness of existing Australian Federal, state and local government initiatives to promote and provide market incentives for household electrification
- i) Australia's current standing against international standards, particularly with respect to the uptake of rooftop solar, batteries and electric household appliances
- j) any other matters.

The committee published details of the inquiry and asked for submissions by 29 December 2023.ⁱⁱ The committee held 3 public hearings from 22 November 2023 to 22 March 2024 at Parliament House, Canberra. The inquiry report was tabled on 31 March 2025.ⁱⁱⁱ

The Australian Government supports residential electrification through a suite of policy initiatives and investments so communities can take advantage of cheaper, cleaner energy to reduce energy bills and reduce emissions. Core recommendations of this inquiry are already underway, backed up by the Government's substantial progress towards 82% renewables in the electricity grid by 2030.

Response

Recommendation 1

The committee recommends that the Australian Government, in coordination with state and territory governments, should promote households to uptake consumer energy resources (CER), including rooftop solar, home batteries, bi-direction electric vehicle chargers and home energy management systems. In conjunction with those efforts, households should be promoted to participate with aggregators which can operate distributed assets in a coordinated fashion in response to grid and market conditions.

Response

Agreed.

The Australian Government promotes the uptake of consumer energy resources through the **Small-scale Renewable Energy Scheme (SRES)**. The SRES provides a financial incentive for households, small businesses and community groups to install eligible small-scale renewable energy systems such as rooftop solar.

The Australian Government is expanding the SRES to provide incentives to households to install battery energy storage systems through the **Cheaper Home Batteries program**. The program offers a 30% discount on batteries for all households.

The Australian Government is providing a \$1 billion equity injection to the Clean Energy Finance Corporation (CEFC) through the **Household Energy Upgrades Fund (HEUF)**.^[iv] This provides concessional finance for household energy

upgrades, including solar panels and solar batteries. The total investment to date has been more than \$800 million, including a \$417 million commitment from the Australian Government.^[v] It is anticipated the program will finance upgrades for over 110,000 households.

In 2025, Energy and Climate Change Ministers (ECMC) updated the **Trajectory for Low Energy Buildings** and endorsed the **Trajectory Implementation Plan 2026-27**. The Trajectory Implementation Plan outlines collaborative work between state, territory, and commonwealth governments, including promoting efficient electrification as a priority. The Plan also identifies specific actions planned by some state and territory governments to support home electrification and the uptake of consumer energy resources.

The Australian Government is working with state and territory governments to unlock the full potential of CER through the **CER Roadmap** (the roadmap).^[vi] The roadmap sets out an overarching vision and plan to unlock CER at scale across Australia. The roadmap will deliver equity in the transition and a coordinated vision for rooftop solar and batteries, virtual power plants and other forms of CER.

The roadmap outlines how governments will:

- work to enable CER's vast potential to lower bills
- improve reliability
- cut network costs by reducing the need for grid-scale investment.

State and territory governments, and industry, are conducting programs involving virtual power plants (VPP) and implementing the Cheaper Home Batteries Program. For example:

- the South Australian government, in partnership with Tesla, is developing South Australia's Virtual Power Plant, a network of potentially 50,000 solar and Tesla Powerwall home battery systems statewide
- the Western Australian government has released a Statement on the Interoperability of Distributed Energy Resources, detailing how distributed energy resource communication and installation will be harmonised in the South West Interconnected System.

In addition, the Australian Renewable Energy Agency (ARENA) and RACE for 2030 released the **National Roadmap for Bidirectional EV Charging** which directly contributes to the roadmap.^[viii] It includes a number of recommendations involving industry and Australian, state and territory governments working together to integrate bidirectional EV charging into the roadmap.

Recommendation 2

The committee recommends that the Australian Government, in coordination with state and territory governments, should prioritise investment in technologies that extend and improve the system value of rooftop solar, such as home batteries and home energy management systems.

Response

Agreed.

As noted in Recommendation 1, the Australian Government is working with state and territory governments to unlock the full potential of CER through the roadmap. The Australian Government is working collaboratively with jurisdictions to deliver these reforms.

The Australian Government also notes the other programs included in recommendation 1 such as the National Roadmap for Bidirectional EV Charging and Cheaper Home Batteries Program.

Recommendation 3

The committee recommends that the Australian Government, in coordination with state and territory governments, should prioritise how community batteries can spread the benefits of rooftop solar to consumers who are unable to install their own systems, such as renters, apartment dwellers or low-income earners.

Response

Agreed.

Australia's rapid uptake of rooftop solar is reshaping daytime electricity demand and creating new opportunities to make better use of abundant renewable generation. The Solar Sharer Offer (SSO) builds on these opportunities by providing a regulated daily free power period— up to 24 kWh—for residential customers with smart meters. This incentive rewards households for shifting their electricity use into periods of high solar output.

By enabling more Australians to benefit from plentiful daytime renewable energy, the SSO aims to improve affordability, support a fairer distribution of solar benefits, and contribute to long term system efficiency. It forms part of the government's broader package of measures designed to give households more ways to reduce their electricity bills.

The Australian Government currently has two community energy programs that are providing the benefits of community batteries and solar energy to a range of consumers. These programs are:^[ix]

- **Community Batteries for Household Solar program**—the Commonwealth is investing \$200 million to deploy 400 batteries across Australia. This program will put downward pressure on household electricity costs, contribute towards

lowering emissions, provide a benefit to the electricity network by relieving network constraints, store solar energy for later use, and support new solar installations.

- **Community Solar Banks program**—the Commonwealth is funding programs administered by the States and Territories to support community-scale solar, rooftop solar and clean energy technology projects. The programs aim to share the benefits of solar with renters, apartments residents and those that cannot afford solar or are locked out of installing their own.

Recommendation 4

The committee recommends that the Australian Government and state and territory governments consider cost-effective local tuition for apprentices, such as electrical apprentices.

Response

Agreed.

The Australian Government, in partnership with states and territories, is delivering \$1.5 billion in joint funding for over 500,000 Fee-Free TAFE and vocational education and training (VET) places across Australia from 2023 to 2026. This includes Fee-Free Construction, with courses related to electrotechnology available in many jurisdictions.

Eligibility for Fee-Free TAFE for apprentices varies between jurisdictions. For most apprenticeship arrangements, employers are responsible for the training related costs, either paid directly by the employer or through a reimbursement to the apprentice.

The Australian Government has also made Free TAFE an enduring feature of the national VET system. This includes investing an additional \$1.6 billion to 2034-35 to support at least 100,000 places annually from 2027, underpinned by the Free TAFE Act 2025. Free TAFE will be developed and delivered in partnership with states and territories, with eligibility requirements and courses subject to negotiations.

The Australian Government is investing up to \$12.6 billion over 5 years to 2028 under the **National Skills Agreement**. The agreement will expand and transform access to the vocational education and training (VET) sector, support training providers to deliver quality education and training, and implement reforms to address critical skills needs. This investment is \$3.7 billion above what was available under previous funding arrangements.

It includes up to \$11.3 billion in flexible funding to states and territories to support the delivery of VET and to address agreed national priorities, including *supporting the net zero transformation* and *delivering housing supply*. States and territories can use this funding for a range of purposes, including VET programs that support employers to engage with VET by training their workforce and/or employing an apprentice or trainee.

The Australian Government has several financial and non-financial programs in place that are available to support apprentices and employers training in high-priority occupations, such as clean energy and housing.

The **Key Apprenticeship Program (KAP)** commenced on 1 July 2025 and builds on the success of the New Energy Apprenticeships Program which commenced on 1 January 2023. The KAP aims to encourage the growth of the housing construction and clean energy workforce by expanding the pipeline of workers training towards critical occupations in these sectors.

The KAP contains two streams:

- New Energy Apprenticeship (NEA) stream; and
- Housing Construction Apprenticeship (HCA) stream.

Eligible Australian Apprentices can claim up to \$10,000 for a full-time apprenticeship and up to \$5,000 for a part-time apprenticeship over the life of the Australian Apprenticeship journey.

From 1 January 2026 eligible employers can claim up to \$5,000 for a full-time apprenticeship and up to \$2,500 for a part-time apprenticeship in the first year of an apprenticeship.

Response to Senator Pocock Recommendations

Recommendation 1

Australian Government establish clear national targets for household electrification, including an initial goal of electrifying at least 5 million homes by 2035, aligned with Australia's commitment to reach 82% renewable energy by 2030.

Response

Noted.

The Australian Government is committed to working constructively with states and territories—a number of which already have household electrification targets in place—to support the transition of our energy systems, while maintaining reliable and affordable energy for Australian households.

The Government has a range of programs that provide voluntary incentives for households who choose to electrify, as set out in response to Recommendation 2, below. The Government addresses the broader role of electrification in decarbonising the Australian economy in its Net Zero Plan and sector plans, released in 2025.

Recommendation 2

Australian Government invest in an ambitious program of household electrification and energy efficiency upgrades consisting of \$5 billion investment immediately and \$50 billion over the coming 10 years.

Response

Noted.

The Australian Government has a range of programs that improve choice for household electrification and energy efficiency upgrades.

The Australian Government is expanding the SRES to provide incentives to households to install battery energy storage systems through the **Cheaper Home Batteries program**. The program offers a 30% discount on batteries for all households.

The **Household Energy Upgrades Fund (HEUF)** is a \$1 billion equity injection to the Clean Energy Finance Corporation (CEFC). The fund provides concessional finance for household energy upgrades.^[x] The Australian Government has committed \$417 million under the HEUF to date.^[xi] Co-financiers have contributed up to \$428 million bringing total investment to more than \$800 million to date. It is anticipated the program will finance upgrades for over 110,000 households.

The **Social Housing Energy Performance Initiative (SHEPI)**, is providing \$1.1 billion (including \$800 million from the Australian Government) to reduce energy costs and consumption and improve thermal comfort for social housing tenants.^[xii]

The Australian Government is working in partnership with state and territory governments to deliver SHEPI. Energy performance upgrades being delivered include thermal shell upgrades, energy efficient appliances and solar systems.^[xiii] The SHEPI is now expected to reach more than 100,000 social housing properties.

The **Nationwide House Energy Rating Scheme (NatHERS)** provides energy ratings for homes. The Scheme is administered by the Australian Government on behalf of state and territory governments. It is used in over 90% of new homes to demonstrate compliance with the National Construction Code. The Australian Government has expanded NatHERS to offer home energy ratings for existing homes, with the rollout commencing in July 2025.^[xiv]

These ratings will:

- Allow Australian households to better understand their home's energy performance and help identify the most cost effective upgrades, including electrification.
- Underpin home energy rating disclosure schemes at point of sale or lease (which are being considered by state and territory governments) and enable other standards that state and territory governments may adopt, such as minimum rental standards.

In addition, the Australian Government is continuing to work with state and territory governments to support a nationally consistent approach to disclosure of home energy ratings through implementation of the **Home Energy Ratings Disclosure Framework**.

The Framework (version 2) was released by the Energy and Climate Change Ministerial Council on 6 December 2024.^[xv] Home energy ratings disclosure enables prospective buyers or renters to make more informed decisions when purchasing or leasing a property and makes energy efficiency features more visible and valued in the market, helping to drive retrofit of the existing housing stock over time.

Recommendation 3

That the investment in Recommendation 2 financial incentives, including rebates and low-interest financing, to reduce upfront costs associated with household electrification technologies

Response

Noted.

See response to Recommendation 2.

Recommendation 4

Australian Government develops policies to ensure that rental properties, multi-dwelling structures and low-income households have equal access to household electrification.

Response

Noted.

See response to Recommendation 2.

Recommendation 5

Expand the SRES to include home battery systems, significantly reducing their installation cost and promoting widespread adoption

Response

Agreed.

As noted in response to the Inquiry Report's recommendation 1, the Australian Government has announced the **Cheaper Home Batteries Program**. This includes purchasing of SRES battery certificates to ensure no cost pass through to energy consumers.

This will help Australian homes and small businesses invest in batteries to promote more widespread adoption.

Recommendation 6**Establish a workforce development program and enhance domestic supply chains for key electrification technologies**
Response

Agreed.

As noted in response to the Inquiry Report's recommendation 4, the Australian Government has a number of initiatives in place to develop a workforce for electrification.

The **National Renewable Energy Supply Chain Action Plan** sets out the Government's approach to identifying and reducing risks in Australia's renewable energy supply chains, to help meet the 2030 renewables target.

The Australian Government is investing to enhance Australian manufacturing of key electrification technologies including through the \$1 billion Solar Sunshot program to boost solar PV manufacturing in Australia by supporting innovation and scaling up domestic production of solar panels and their components, and through the \$500 million Battery Breakthrough Initiative to enhance Australian battery manufacturing capabilities.

The Australian Government continues to develop work that supports increased transparency of future domestic componentry needs for critical renewable energy technologies.

Additionally, the Commonwealth also has strategies in place to support the VET workforce specifically:

- Under the National Skills Agreement, the Australian Government is investing up to \$100 million for initiatives to support the VET workforce, including responses to the VET Workforce Blueprint agreed by all Skills Ministers in 2024. This includes \$70 million for state and territory initiatives, with matched funding from states and territories, and \$30 million for national action.
- To support the release of the Blueprint, a suite of Commonwealth-led national actions are being progressed to support a greater understanding of the VET workforce, and to inform further responses to grow and support this workforce. This includes occupational mapping of the VET workforce, a VET workforce data strategy, an ongoing research program for VET workforce issues, and mapping and analysing compliance and administrative burden for the VET workforce. The Commonwealth is working closely with Jobs and Skills Australia and states and territories on these actions.
- The Australian Government is also taking further action to progress shared national priorities through targeting initiatives to support the First Nations VET workforce, and to boost the VET workforce in critical industries including construction and electrical, noting the importance these sectors play in driving Australia's productivity.

Australian Government funding to build and support the VET workforce is also being provided, with \$12 million for Jobs and Skills Councils industry-led initiatives that respond to VET workforce challenges faced by their industries. In addition, \$30 million is being provided to turbocharge the teacher, trainer and assessor workforce for clean energy, manufacturing and construction. The latter measure will support an increase to the pipeline of teachers, trainers and assessors to deliver qualifications for these critical industries. The Australian Government is investing up to \$325 million over five years under the NSA, with matched funding from states and territories, to establish nationally networked TAFE Centres of Excellence. These Centres will help provide nationally consistent, world-class teaching and learning, targeting critical and emerging industries, including the transformation to a net zero economy.

- To date, 4 TAFE Centres of Excellence have been established in the renewable energy sector, with a focus on electricians and electrotechnology skills, including the:
- NSW Hunter Net Zero Manufacturing Centre of Excellence which is developing an associate degree in Electrotechnology and Renewable Technologies (higher apprenticeship).
- Queensland TAFE Centre of Excellence Clean Energy Batteries which is consulting on the development of higher-level apprenticeship and/or degree level apprenticeship pathways, including through the Certificate III Electrotechnology Electrician and the Bachelor of Engineering/Electrical Science.
- Tasmanian Clean Energy Centre of Excellence which is developing General and Electrical (technical) Engineering Paraprofessional pilots.
- ACT Electric Vehicle TAFE Centre of Excellence which is developing a dual-qualified automotive trade apprentices' program, including light and heavy EV technician and automotive electrician.

Recommendation 7**Commence a process to reform the design of the National Energy Market in accordance with my additional comments to the recent report from the Select Committee on Energy Planning and Regulation in Australia.****Response**

Noted.

The Australian Government is considering its response on the December 2024 Senate Select Committee on Energy Planning and Regulation in Australia's report and will address this recommendation in that response.

In November 2024, the Australian Government announced a review of the National Electricity Market (NEM) wholesale market settings by an independent expert panel. The panel was supported by the Commonwealth Department of Climate Change, Energy, the Environment and Water, state and territory governments and market bodies

The NEM Review Final Report and supporting Implementation Roadmap were presented to Energy Ministers on 16 December 2025 and published. Energy Ministers, except for Queensland, agreed in-principle to the NEM Review's core recommendations. These include establishing an Electricity Services Entry Mechanism, a Market Making Obligation, and measures to improve the visibility of Price Responsive Resources. The Australian Government is working closely with states and territories, industry and market bodies to progress detailed design of the core recommendations of the review, to allow further consideration of the proposed reforms by the Energy and Climate Change Ministers throughout 2026.

[i] Senate Economic References Committee, Residential electrification, Report, 31 March 2025, accessed 7 April 2025.

[ii] Senate Economic References Committee, Residential electrification, Report, 31 March 2025, accessed 7 April 2025, p. 2.

[iii] Senate Economic References Committee, Residential electrification, Report, 31 March 2025, accessed 9 April 2025.

[iv] CEFC, Household Energy Upgrades Fund—Clean Energy Finance Corporation, Website, accessed 19 May.

[v] CEFC, Opening doors for sustainable Australian homes, Report, 11 February 2025, accessed 22 May 2025, p. 2.

[vi] DCCEEW, Energy Ministers agree to the National Consumer Energy Resources (CER) Roadmap, Website, 19 July 2024, accessed 19 May 2025.

[vii] DCCEEW, South Australia's Virtual Power Plant, Website, accessed 19 May 2025; and WA Government, Statement on Interoperability of Distributed Energy Resources, Announcement, 3 June 2025, accessed 6 June 2025.

[viii] ARENA, National Roadmap for Bidirectional EV Charging in Australia, Website, 25 February 2025, accessed 19 May 2025.

[ix] DCCEEW, Community Batteries for Household Solar program, Website, accessed 19 May 2025; and DCCEEW, Community solar banks, Website, accessed 19 May 2025.

[x] CEFC, Household Energy Upgrades Fund—Clean Energy Finance Corporation, Website, accessed 19 May.

[xi] CEFC, Opening doors for sustainable Australian homes, Report, 11 February 2025, accessed 22 May 2025, p. 2.

[xii] DCCEEW, Social housing energy performance—DCCEEW, Website, accessed 20 May.

[xiv] NATHERS, Existing homes | Nationwide House Energy Rating Scheme (NatHERS), Website, accessed 19 May 2025.

[xv] DCCEEW, Home Energy Ratings Disclosure Framework—Version 2 | energy.gov.au, Website, accessed 19 May.

GOVERNMENT RESPONSE TO THE INQUIRY INTO THE DEFENCE AMENDMENT (DEFENCE HONOURS AND AWARDS APPEALS TRIBUNAL) BILL 2025

On 4 September 2025, the Senate referred the provisions of the Defence Amendment (Defence Honours and Awards Appeals Tribunal) Bill 2025 (the Bill) to the Senate Foreign Affairs, Defence and Trade Legislation Committee for report by 30 October 2025.

On 28 October 2025, the Senate agreed to extend the reporting date to 21 November 2025. The Committee tabled its final report on 21 November 2025.

The intent of the Bill was to contemporise the Defence Honours and Awards Appeals Tribunal (the Tribunal). The Bill proposed to add provisions that would limit reviewable decisions to service undertaken within 20 years of the end of an operation in the case of Defence honours and operational service awards, and in the case of length of service awards when the affected person turned or would have turned 100 years of age. Other provisions defined who could apply to the Tribunal regarding a reviewable decision and the scope of Tribunal recommendations.

The Bill was crafted to respond to concerns raised by the Tribunal itself in its decisions and annual reports on the risks associated with decisions being made when *it* is difficult, if not impossible to refer to objective and independent evidence. Importantly, the Committee and other relevant stakeholders did support some elements of the Government's proposed legislative reform of the Tribunal's operations. This included: the introduction of an effective timeline for seeking a review of a Defence decision; the ability to create procedural rules for the Tribunal; clarifying the scope of recommendations the Tribunal can make; and clarifying the powers of the Tribunal for decisions associated with Defence honours and awards.

The report made two recommendations, namely that:

1. That the Department of Defence undertakes further consultations with the Defence Honours and Awards Appeals Tribunal, ex-service organisations and other relevant stakeholders, regarding subsection 110V(2) of the Bill relating to the 20-year limitation on reviewable decisions and section 110VA of the Bill relating to the standing provisions.
2. That the Senate defer its consideration of the Bill until the Department of Defence concludes and makes public the outcome of its consultations.

The Government **accepts** both of these recommendations. To give effect to this, the Government discharged the Bill from the Senate on 24 November 2025.

The Government **notes** the remaining recommendations put forward from the Australian Greens, the Jacqui Lambie Network and Senator David Pocock's respective dissenting reports. The Government **does not agree** with the recommendation put forward in the Coalition's dissenting report.

The Government thanks the Committee for its work on this Inquiry, as well as those who provided submissions and appeared at hearings.

Australian Government response to the Parliamentary Joint Committee on Human Rights report on the Inquiry into antisemitism at Australian universities

MARCH 2026

Overview

The Australian Government welcomes the opportunity to respond to the Parliamentary Joint Committee on Human Rights (PJCHR) report on its inquiry into Antisemitism at Australian universities.

On 29 October 2024, the Australian Government referred the issue of antisemitism at Australian universities to the PJCHR for inquiry and asked the Committee to provide advice on steps that Australian universities and the sector can take to better protect Jewish students and staff from further harm. The PJCHR released its inquiry report on 12 February 2025 and made 10 recommendations.

The Australian Government agrees or agrees in principle with all 10 of the Committee's recommendations. The Australian Government notes the Committee's findings and recommendations complement a range of Government initiatives underway.

The evil act of terrorism and antisemitism perpetrated at Bondi Beach on 14 December, the first night of Chanukah, was an attack on Jewish Australians and an attack on all Australians.

We grieve for those whose lives were taken, we stand with their loved ones and friends. We vow that from this tragedy Australia will emerge stronger, more united and safer for all who call our nation home.

While antisemitism and extremism can lead to violence, violence is not the beginning of the harm they do. Abuse, prejudice and discrimination can take a devastating toll on the wellbeing of individuals and communities.

The Australian Government is fully committed to eradicating the root causes of antisemitism, extremism and prejudice, as well as working to prevent their terrible consequences.

That is why the Australian Government has established the Antisemitism Education Taskforce (the Taskforce), chaired by David Gonski AC.

The purpose of the Taskforce is to help the Australian education system prevent, tackle and properly responds to antisemitism. This includes relevant elements of the Plan to Combat Antisemitism developed by Australia's Special Envoy to Combat Antisemitism, Jillian Segal AO.

The Taskforce includes Australia's Special Envoy to Combat Antisemitism and representatives from across the Australian education system: including early childhood education and care, schools and universities. Representation on the taskforce include: the Australian Children's Education & Care Quality Authority, representatives of state and territory educational authorities, non-government schools, Universities Australia, Tertiary Education Quality and Standards Agency (TEQSA) and the interim Australian Tertiary Education Commission.

Initial areas of priority include implementation of the measures outlined below and identification of further measures needed to ensure the Australian education system is able to prevent, tackle and properly respond to antisemitism.

The Taskforce builds on a range of accelerated investments and new initiatives to tackle antisemitism in schools, including:

- A focused review of elements of the Australian Curriculum to identify opportunities to strengthen its capacity to support: a rejection of all forms of antisemitic thought and antisemitic actions, a deep understanding of Jewish Australians' history and culture, and a mature understanding and expression of Australian values;
- Supporting the expansion of the Special Envoy's United Nations Educational Scientific and Cultural Organization teacher training into schools across Australia;
- Extending and expanding the funding for Together for Humanity over 4 years to continue its work to build intercultural understanding and social cohesion in schools; and
- Providing teachers and schools a new hub with access to free high-quality resources and guidance to strengthen social cohesion in schools, and combat antisemitism through new online resources.

The Taskforce also builds on a range of accelerated investments and new initiatives to tackle antisemitism in universities, including:

- strengthening the powers and penalties of TEQSA to ensure it is able to step in and act when it is justified in the public interest;
- strengthening Commonwealth higher education regulation to ensure institutions demonstrate a commitment to addressing racism, and ensuring the Tertiary Education Quality and Standards Agency can monitor compliance;
- supporting the Monash Initiative for Rapid Research into Antisemitism (MIRRA) to expand its training program to deliver training to university staff and leadership on recognising antisemitism in universities across Australia;
- in February 2026, the Special Envoy attended the Education Ministers Meeting to provide an update on the Plan to address antisemitism and support a discussion about the role of the education system and school communities;

- establishing the Expert Council on University Governance which has provided the Education Ministers Meeting with principles to ensure universities are safe and welcoming;
- tasked the Australian Human Rights Commission to undertake the Respect at Uni Study, led by Race Discrimination Commissioner Mr Giridharan Sivaraman. The Study examines the prevalence, nature, and impact of individual and systemic racism in Australian universities and is engaging in significant consultation with university students and staff;
- appointing the National Student Ombudsman, a free and impartial service to investigate complaints from students, including antisemitism or any other forms of racism; and
- developing and releasing TEQSA Statement of Regulatory Expectations: Student grievance and complaint mechanisms on 3 October 2025 in the context of protests on university campuses.

Further information

TEQSA has also published a Sector Alert on Managing External Actors on Campus. This advice informs providers on management of risks presented by external actors, and provides a range of strategies and responses.

The Australian Government has conducted a review of the *Tertiary Education Quality and Standards Agency Act 2011* (TEQSA Act) reflecting its commitment to ensuring the higher education regulatory system is student-centred and meets contemporary student and community expectations. The review engaged a wide range of sector stakeholders to understand current and future challenges and ensure the regulatory framework is fit for purpose into the future.

The Australian Government has established the independent National Student Ombudsman (NSO) to investigate and resolve student complaints about universities, including complaints by Jewish students or about antisemitism. The NSO commenced operations on 1 February 2025 and will provide guidance to universities to improve their complaints-handling practices. The NSO has strong investigative powers and can make recommendations to a provider about the actions that should be taken to resolve a complaint. The NSO has the power to monitor a provider's implementation of its recommendations, as well as share information with relevant regulators to provide the basis for potential compliance action where necessary.

If a provider does not take appropriate action in response to NSO recommendations, the NSO is able to provide the Minister for Education with a copy of an investigation report for tabling in Parliament. The NSO reports annually on complaint volumes, complaints outcomes and compliance with recommendations.

In response to the Australian Universities Accord, the Australian Government commissioned the AHRC to undertake a *Respect at Uni: Study into Antisemitism, Islamophobia, racism, and the experience of First Nations People*, led by Race Discrimination Commissioner, Mr Giridharan Sivaraman.

The final report was published on 17 February 2026. The report draws on the experience of 76,000 university staff and students and was developed in consultation with stakeholder groups and education providers.

The Australian Government has established a Royal Commission on Antisemitism and Social Cohesion, which will be led by former Justice of the High Court, the Hon Virginia Bell AC. The terms of reference for the Royal Commission include tackling antisemitism by investigating the nature and prevalence of antisemitism in institutions and society, and its key drivers in Australia, including ideologically and religiously motivated extremism and radicalisation.

Hearing from the Jewish Australian community will be important to informing recommendations from the Royal Commission relating to educational cultural institutions, and other sectors of Australian society. The Royal Commission will deliver an interim report to Government by 30 April 2026 and a final report by 14 December 2026.

Responses to recommendations

Parliamentary Joint Committee on Human Rights report on the Inquiry into antisemitism at Australian universities

No.	Recommendation	Response
1	The committee recommends that university Vice Chancellors hold a formal meeting with Jewish student bodies and Jewish staff during semester one of 2025 to engage directly on their observations regarding antisemitism on their campuses. The committee recommends that Vice Chancellors should subsequently make a public comment on their work to combat antisemitism and regarding those meetings with Jewish students and staff.	Agree
2	The committee recommends that Australian universities should review their complaints procedures with a view to their simplification, including giving particular consideration to: establishing a single central office to receive and process all complaints; adopting a clear definition of antisemitism that aligns closely with the International Holocaust Remembrance Alliance definition; and providing for alternative dispute resolution mechanisms.	Agree

3	The committee recommends that Australian universities should report on the outcome of complaints in a more transparent manner while maintaining the privacy of the complaints process. The committee recommends that such reports should include, where relevant, comment by the Vice Chancellor regarding their work to address antisemitism on campus.	Agree
4	The committee recommends that the government give consideration as to whether it is necessary to amend the <i>Fair Work Act 2009</i> to enable disciplinary or other action to be taken in relation to an employee (or a grant recipient where the <i>Australian Research Council Act 2001</i> and related legislation applies), where that person is found to have engaged in conduct which would breach Part 5.1 of the <i>Criminal Code Act 1995</i> , or section 18C of the <i>Racial Discrimination Act 1975</i> .	Agree
5	The committee recommends that Australian universities should publish regular de-identified reports setting out the number of complaints received, the nature of the complaints, the number of complaints resolved since the last report and the timeframe for the resolution of outstanding complaints.	Agree
6	The committee recommends that universities consider increased investment in research into antisemitism and opportunities for collaboration regarding current projects, having close regard to the work being undertaken by the Monash University Australian Centre for Jewish Civilisation as an appropriate model.	Agree
7	The committee recommends that universities deliver ongoing training to students, staff and leadership on recognising and addressing antisemitism.	Agree
8	The committee recommends that the government give consideration to amending the <i>Tertiary Education Quality and Standards Agency Act 2011</i> to provide TEQSA with enhanced powers to enforce compliance with the higher education threshold standards relating to student wellbeing and safety, as those standards are applied in practice by universities (e.g. through Codes of Conduct).	Agree
9	The committee recommends that government monitor the implementation of these recommendations and further recommends that the National Student Ombudsman review university practices to reduce antisemitism on campuses within twelve months of the tabling of this report.	Agree-in principle
10	The committee recommends that if, following a review of the implementation of these recommendations in consultation with the Special Envoy to Combat Antisemitism, it is apparent that the response by universities has been insufficient, the government should give consideration to the establishment of a judicial inquiry.	Agree-in principle

Coalition Additional Comments

Recommendation 1. That the government establish an independent judicial inquiry into antisemitism at Australian universities immediately

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 2. That the Australian Government amends the law so that all public universities are required to adopt the International Holocaust Remembrance Alliance (IHRA) working definition of antisemitism.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 3. That Australian universities review and amend their hiring policies and policies relating to employee conduct to prevent and address antisemitic behaviour among academic staff.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government encourages universities to consider this recommendation in consultation with their students, staff, communities and other stakeholders.

Ms Kylea Tink MP Additional Comments

Recommendation 1. Universities should, for the purposes of addressing complaints of antisemitism relating to students or staff, adopt a definition of antisemitism that recognises the distinction between antisemitism and criticism of the Israeli Government and Zionism.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government encourages universities to consider this recommendation in consultation with their students, staff, communities and other stakeholders.

Recommendation 2. The government should adopt the Australian Human Rights Commission National Anti-Racism Framework.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 3. Universities should address antisemitism as part of broader strategies to reduce racism in all its forms.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government encourages universities to consider this recommendation in consultation with their students, staff, communities and other stakeholders.

Recommendation 4. The government should consolidate Australia's anti-discrimination legislative framework into a single, uniform Anti-Discrimination Act.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 5. Universities should adopt the Rabat Plan of Action on the prohibition of advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence six-part threshold test to appropriately distinguish between hate speech and protected expression in practice.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government encourages universities to consider this recommendation in consultation with their students, staff, communities and other stakeholders.

Recommendation 6. The government should introduce legislation to establish a Human Rights Act, as per the recommendation of the Parliamentary Joint Committee on Human Rights inquiry into Australia's Human Rights Framework

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Senator Lidia Thorpe Additional Comments

Recommendation 1. Universities in their approach to racism adopt a holistic anti-racism framework, jointly developed with representatives of all racialised communities.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government encourages universities to consider this recommendation in consultation with their students, staff, communities and other stakeholders.

Recommendation 2. For the Parliamentary Joint Committee on Human Rights to undertake a review of the effectiveness of the Racial Discrimination Act 1975, a proposal that is supported by the Race Discrimination Commissioner.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 3. Universities should be guided by the 2020 Jerusalem Declaration on Antisemitism in their attempts to identify and fight antisemitism while protecting freedom of expression.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government encourages universities to consider this recommendation in consultation with their students, staff, communities and other stakeholders.

Recommendation 4. For the Parliamentary Joint Committee on Human Rights to conduct a review of the Australian Government's compliance with international human rights obligations in relation to the plausible genocide in Palestine,

including adherence to orders from United Nations bodies and the findings and opinions of the International Court of Justice.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Australian Government response to the Senate Legal and Constitutional Affairs Committee report on the Commission of Inquiry into Antisemitism at Australian Universities Bill 2024 (No.2)

MARCH 2026

Overview

The Australian Government welcomes the opportunity to respond to the Senate Legal and Constitutional Affairs Legislation Committee report on the Commission of Inquiry into Antisemitism at Australian Universities Bill 2024 (No.2).

On 4 July 2024, the Senate referred an inquiry to the Senate Legal and Constitutional Affairs Legislation Committee (the Committee) to examine the Commission of Inquiry into Antisemitism at Australian Universities Bill 2024 (No.2) (the Bill). The Committee released its inquiry report on 1 October 2024 and made three recommendations.

The Australian Government agrees all three of the Committee's recommendations. The Australian Government notes the Committee's findings and recommendations complement a range of Government initiatives underway.

On 29 October 2024, the Australian Government referred the issue of antisemitism at Australian universities to the Parliamentary Joint Committee on Human Rights (PJCHR) for inquiry and asked the Committee to provide advice on steps that Australian universities and the sector can take to better protect Jewish students and staff from further harm.

The evil act of terrorism and antisemitism perpetrated at Bondi Beach on 14 December, the first night of Chanukah, was an attack on Jewish Australians and an attack on all Australians.

We grieve for those whose lives were taken, we stand with their loved ones and friends. We vow that from this tragedy Australia will emerge stronger, more united and safer for all who call our nation home.

While antisemitism and extremism can lead to violence, violence is not the beginning of the harm they do. Abuse, prejudice and discrimination can take a devastating toll on the wellbeing of individuals and communities.

The Australian Government is fully committed to eradicating the root causes of antisemitism, extremism and prejudice, as well as working to prevent their terrible consequences.

That is why the Australian Government has established the Antisemitism Education Taskforce (the Taskforce), chaired by David Gonski AC.

The purpose of the Taskforce is to help the Australian education system prevent, tackle and properly responds to antisemitism. This includes relevant elements of the Plan to Combat Antisemitism developed by Australia's Special Envoy to Combat Antisemitism, Jillian Segal AO.

The Taskforce includes Australia's Special Envoy to Combat Antisemitism and representatives from across the Australian education system: including early childhood education and care, schools and universities. Representation on the taskforce include: the Australian Children's Education & Care Quality Authority, representatives of state and territory educational authorities, non-government schools, Universities Australia, Tertiary Education Quality and Standards Agency (TEQSA) and the interim Australian Tertiary Education Commission.

Initial areas of priority include implementation of the measures outlined below and identification of further measures needed to ensure the Australian education system is able to prevent, tackle and properly respond to antisemitism.

The Taskforce builds on a range of accelerated investments and new initiatives to tackle antisemitism in schools, including:

- a focused review of elements of the Australian Curriculum to identify opportunities to strengthen its capacity to support: a rejection of all forms of antisemitic thought and antisemitic actions, a deep understanding of Jewish Australians' history and culture, and a mature understanding and expression of Australian values;
- supporting the expansion of the Special Envoy's United Nations Educational Scientific and Cultural Organization teacher training into schools across Australia;
- extending and expanding the funding for Together for Humanity over 4 years to continue its work to build intercultural understanding and social cohesion in schools; and
- providing teachers and schools a new hub with access to free high-quality resources and guidance to strengthen social cohesion in schools, and combat antisemitism through new online resources.

The Taskforce also builds on a range of accelerated investments and new initiatives to tackle antisemitism in universities, including:

- strengthening the powers and penalties of TEQSA to ensure it is able to step in and act when it is justified in the public interest;
- strengthening Commonwealth higher education regulation to ensure institutions demonstrate a commitment to addressing racism, and ensuring TEQSA can monitor compliance;

- supporting the Monash Initiative for Rapid Research into Antisemitism (MIRRA) to expand its training program to deliver training to university staff and leadership on recognising antisemitism in universities across Australia;
- in February 2026, the Special Envoy attended the Education Ministers Meeting to provide an update on the Plan to address antisemitism and support a discussion about the role of the education system and school communities;
- establishing the Expert Council on University Governance which has provided the Education Ministers Meeting with principles to ensure universities are safe and welcoming;
- tasked the Australian Human Rights Commission to undertake the Respect at Uni Study, led by Race Discrimination Commissioner Mr Giridharan Sivaraman. The Study examines the prevalence, nature, and impact of individual and systemic racism in Australian universities and is engaging in significant consultation with university students and staff;
- appointing the National Student Ombudsman, a free and impartial service to investigate complaints from students, including antisemitism or any other forms of racism; and
- developing and releasing TEQSA Statement of Regulatory Expectations: Student grievance and complaint mechanisms on 3 October 2025 in the context of protests on university campuses.

Further information

TEQSA has also published a Sector Alert on Managing External Actors on Campus. This advice informs providers on management of risks presented by external actors, and provides a range of strategies and responses.

The Australian Government has conducted a review of the *Tertiary Education Quality and Standards Agency Act 2011* (TEQSA Act) reflecting its commitment to ensuring the higher education regulatory system is student-centred and meets contemporary student and community expectations. The review engaged a wide range of sector stakeholders to understand current and future challenges and ensure the regulatory framework is fit for purpose into the future.

The Australian Government has established the independent National Student Ombudsman (NSO) to investigate and resolve student complaints about universities, including complaints by Jewish students or about antisemitism. The NSO commenced operations on 1 February 2025 and will provide guidance to universities to improve their complaints-handling practices. The NSO has strong investigative powers and can make recommendations to a provider about the actions that should be taken to resolve a complaint. The NSO has the power to monitor a provider's implementation of its recommendations, as well as share information with relevant regulators to provide the basis for potential compliance action where necessary.

If a provider does not take appropriate action in response to NSO recommendations, the NSO is able to provide the Minister for Education with a copy of an investigation report for tabling in Parliament. The NSO reports annually on complaint volumes, complaints outcomes and compliance with recommendations.

In response to the Australian Universities Accord, the Australian Government commissioned the AHRC to undertake a *Respect at Uni: Study into Antisemitism, Islamophobia, racism, and the experience of First Nations People*, led by Race Discrimination Commissioner, Mr Giridharan Sivaraman.

The final report was published on 17 February 2026. The report draws on the experience of 76,000 university staff and students and was developed in consultation with stakeholder groups and education providers.

The Australian Government has established a Royal Commission on Antisemitism and Social Cohesion, which will be led by former Justice of the High Court, the Hon Virginia Bell AC. The terms of reference for the Royal Commission include tackling antisemitism by investigating the nature and prevalence of antisemitism in institutions and society, and its key drivers in Australia, including ideologically and religiously motivated extremism and radicalisation.

Hearing from the Jewish Australian community will be important to informing recommendations from the Royal Commission relating to educational cultural institutions, and other sectors of Australian society. The Royal Commission will deliver an interim report to Government by 30 April 2026 and a final report by 14 December 2026.

Responses to recommendations

The Senate Legal and Constitutional Affairs Committee report on the Commission of Inquiry into Antisemitism at Australian Universities Bill 2024 (No.2)

Recommendations by the Committee

No.	Recommendation	Response
1	The committee recommends that, in collaboration with the Tertiary Education Quality and Standards Agency (TEQSA) and the Special Envoy to Combat Antisemitism, all Australian universities urgently review their complaints processes and give effect to any and all changes necessary to ensure these processes are known to and understood by students and staff, and deliver real and meaningful outcomes for complainants.	Agree
2	The committee recommends that the Attorney-General immediately refers an inquiry into antisemitism at Australian universities to the Parliamentary Joint Committee on Human Rights.	Agree

3 The committee recommends that the Senate does not pass the Bill. Agree

Recommendations by Coalition Senators

Recommendation 1. That the Senate and the Parliament pass the Bill at the earliest opportunity so that a Commission of Inquiry into antisemitism at Australian universities can be established as soon as practicable

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 2. That the Australian Government directs the Special Envoy to Combat Antisemitism, Ms Jillian Segal, to urgently recommend, in consultation with TEQSA:

- best-practice university policies and procedures to combat antisemitism, including in relation to complaints handling and fines for non-compliance;
- antisemitism training for university leaders; and
- any other practical initiative to combat antisemitism at Australian universities.

That the Australian Government considers how best to implement the recommendations of the Antisemitism Envoy including any necessary amendments to the law.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 3. That the Australian Government amends the law so that all public universities are required to either adopt the International Holocaust Remembrance Alliance (IHRA) working definition of antisemitism or give detailed reasons as to why such a definition has not been so adopted, to be published and updated prominently on each university's website on 1 February and 1 August of each year.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 4. That the Australian Government amends the law so that public universities are required to disclose a breakdown of all revenues and all agreements, arrangements or understandings in relation to the provision of such revenues including with foreign persons or entities.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendation 5. That the proposed National Student Ombudsman be supported by a person expert in antisemitism and that such requirement be included in the National Student Ombudsman Rules.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Recommendations by Australian Greens Senators

Recommendation 1. That the office of the Race Discrimination Commissioner urgently completes and implements the national anti-racism strategy and be fully funded and resourced to do so.

The Australian Government acknowledges the range of views presented to the inquiry and **notes** this recommendation.

The Australian Government's response, as outlined above, reflects the range of actions the Government is taking to respond to the issues raised in this inquiry.

Australian Government response to the Senate Legal and Constitutional Affairs Legislation Committee report:

Copyright Legislation Amendment (Fair Pay for Radio Play) Bill 2023

DECEMBER 2025

Introduction

The Copyright Legislation Amendment (Fair Pay for Radio Play) Bill 2023 (the Bill) was introduced by Senator David Pocock and referred by the Senate to the Legal and Constitutional Affairs Legislation Committee (the Committee) for inquiry and report.

The Bill seeks to repeal subsection 152(8) of the *Copyright Act 1968*, which caps the amount of royalties that the Copyright Tribunal of Australia (Copyright Tribunal) can determine is payable by commercial radio stations for the use of sound recordings to one per cent of gross earnings of the broadcaster (the 1% cap) and subsection 152(11), which caps the amount of royalties

that the Copyright Tribunal can determine is payable by the Australian Broadcasting Corporation (ABC) for the use of sound recordings, to an amount not exceeding 0.5 cents per head of the Australian population (the ABC cap).

The caps only affect rights in sound recordings of music (as administered by the Phonographic Performance Company of Australia (PPCA)) and not the underlying rights in the musical works themselves (as administered by the Australasian Performing Right Association and Australasian Mechanical Copyright Owners Society (APRA AMCOS)). The caps also do not apply to the use of sound recordings on online streaming services, as such services are not considered 'broadcasting services' under the *Broadcasting Services Act 1992*.

The Committee released its report on 20 June 2024. The Government welcomes the Committee's report.

The Government strongly supports Australian artists and creators, as demonstrated through *Revive*, the Government's National Cultural Policy. Music Australia was established under Creative Australia with dedicated funding of \$69.4m over four years from 2023-24 through *Revive*.

Music Australia is undertaking targeted research in consultation with key music industry stakeholders to inform their strategic investments and address the contemporary needs of the music industry, including artists incomes and career development and pathways.

However, in addition to impacts on the recording artists and recording industry, the removal of the radio broadcast licence fee caps would impact a range of other stakeholders, including regional and remote radio broadcasters and the ABC. These implications also require careful consideration.

The Government recognises the importance of a strong, fair and balanced copyright system, and will continue to work with all stakeholders to better understand the potential impacts of changes to the radio broadcast royalty caps. This should be done in a holistic way in the context of broader reforms in the copyright, communications and arts portfolios and Government's broader media reform agenda.

Recommendations

Recommendation 1: The committee recommends that the federal government conducts a cost-benefit analysis examining the impacts of removing the current caps on licence fees for the broadcast of sound recordings on radio.

Response: Agreed in principle.

The Government strongly supports Australian artists and creators. This is demonstrated through *Revive*, the Government's National Cultural Policy.

The Government agrees that a cost-benefit analysis, as recommended by the Committee, would assist with understanding the potential impacts on stakeholders of retaining, amending or removing the current caps in today's media environment, including impacts on the recorded music industry and remote/regional radio stations.

The Government notes that there may be several ways to obtain this information, including reviewing the outcome of recent Copyright Tribunal proceedings on this issue and/or conducting its own independent economic analysis. The Government will give this further consideration.

Recommendation 2: The committee recommends that the Senate does not pass the Bill.

Response: Noted.

The Government notes the dissenting reports made by Senator David Pocock, and by Senator Sarah Hanson-Young on behalf of the Australian Greens recommending that the Senate pass the Bill.

Australian Government response to the Joint Standing Committee on Treaties report:

Agreement Among the Government of Australia, the Government of the United Kingdom of Great Britain and Northern Ireland, and the Government of the United States of America for Cooperation Related to Naval Nuclear Propulsion

February 2025

On 5 August 2024, AUKUS partners took another significant step forward in facilitating Australia's acquisition of conventionally armed, nuclear-powered submarines, with the signing of the *Agreement Among the Government of Australia, the Government of the United Kingdom of Great Britain and Northern Ireland, and the Government of the United States of America for Cooperation Related to Naval Nuclear Propulsion* (the 'Agreement').

The Agreement establishes a legally-binding framework to facilitate the transfer of nuclear material and equipment from the United Kingdom and the United States to Australia, as well as the communication and exchange of naval nuclear propulsion information between Australia, the United Kingdom and the United States. The Agreement supersedes the *Agreement between the Government of the United States of America, the Government of Australia, and the Government of the United Kingdom of Great Britain and Northern Ireland for the Exchange of Naval Nuclear Propulsion Information*, which was due to expire on 31 December 2025, and has facilitated the exchange of naval nuclear propulsion information to-date.

The Agreement will enable the transfer of Virginia class submarines from the United States to Australia from the early 2030s, as well as the transfer of information and equipment from the United Kingdom for use in Australia's SSN-AUKUS submarines. Importantly, it also reinforces the AUKUS partners' commitment to setting the highest non-proliferation standard, and is consistent with Australia's international non-proliferation obligations. The Agreement entered into force on 17 January 2025.

The Government acknowledges the views of the Joint Standing Committee on Treaties (the Committee) in its inquiry into the Agreement. The Committee made eight recommendations in its report, tabled on 27 November 2024. The Government agrees to six recommendations, agrees in-principle to one recommendation and notes one recommendation.

The Government Response is outlined below.

Recommendation One

The Committee supports the Agreement among the Government of Australia, the Government of the United Kingdom of Great Britain and Northern Ireland, and the Government of the United States of America for Cooperation Related to Naval Nuclear Propulsion and recommends that binding treaty action be taken.

Response to recommendation: Agreed

The Government welcomes the support of the Committee. The Government has taken binding treaty action.

On 17 January 2025, the Agreement entered into force following an exchange of diplomatic notes between Australia, the United Kingdom of Great Britain and Northern Ireland and the United States of America notifying of the respective completion of domestic requirements (in accordance with Article XIII.A of the Agreement).

Recommendation Two

The Committee recommends that the Government and the Australian Submarine Agency expand and enhance community education activities to inform the general population on how AUKUS is in the national interest, including the distinct advantages of nuclear-powered submarines.

Response to recommendation: Agreed

Building and maintaining an understanding of the program and how it contributes to Australia's national security and defence capabilities will remain an important line of effort in the Government's nuclear-powered submarine program. It will require ongoing consideration and communications within the context of the biennial National Defence Strategy.

Australian Government agencies will continue to provide public information to build the knowledge and understanding of the program and our progress in the Australian community.

Recommendation Three

The Committee recommends appropriate parliamentary scrutiny of any supplementary or additional instruments resulting from ratifying the AUKUS treaty.

Response to recommendation: Noted

The Government supports the intent of the recommendation.

The Government had intended the Defence portfolio to be subject to the Parliamentary Joint Committee on Defence (PJCD). The Government considers the PJCD would have been an important forum for ensuring appropriate parliamentary consideration of the AUKUS partnership and Australia's nuclear-powered submarine program. It is therefore regrettable that, despite the bipartisan recommendation of the Joint Standing Committee on Foreign Affairs, Defence and Trade, Coalition Senators voted with Greens Senators against the PJCD Bill in the Senate on 4 July 2024. The Government hopes that a future Parliament will reconsider the establishment of the PJCD.

Any supplementary or additional instruments of treaty status will be subject to appropriate parliamentary scrutiny in accordance with Australia's treaty making process and existing parliamentary oversight mechanisms.

Recommendation Four

The Committee recommends that community and worker consultation, engagement and public transparency be prioritised in the development of the plan for the management, transportation and storage of AUKUS-related nuclear waste.

Response to recommendation: Agreed

The Government is committed to maintaining the highest levels of nuclear safety and stewardship, including in relation to radioactive waste. The Government notes that community and worker engagement is critical to build transparency and understanding of nuclear safety plans and the regulatory framework and licencing regime that will be in place to protect our workers, communities, and the environment. This will also be a priority of the new Australian Naval Nuclear Power Safety Regulator when established in 2025.

Recommendation Five

The Committee recommends that advice published by the Australian Naval Nuclear Power Safety Regulator be made publicly available within a timely fashion to enhance transparency.

Response to recommendation: Agreed in-principle

The Government agrees in-principle to the recommendation.

The Regulator will be required to report to the Minister on a range of matters. The Regulator will also prepare an annual report on its activities, decisions and performance, which will be made publicly available in accordance with legislation. The Regulator will be required to report to the Minister and Parliament in relation to certain nuclear safety incidents. The Regulator will publish guidance material including relevant codes to inform the regulated community, and the public, on its processes and decision-making.

The Government notes that under the *Australian Naval Nuclear Power Safety Act 2024* the appointed Director-General will have some discretion over the scope of information that is published. There will be aspects of the Regulator's functions and activities which cannot be made publicly available in order to protect Australia's and AUKUS partners' naval nuclear-powered submarine capability and information relating to military operations or activities.

Recommendation Six

The Committee recommends that the Australian Government launch an AUKUS career and employment opportunities promotion campaign and further enhance existing STEM and traditional trades engagement programs for local schools and tertiary education providers.

Response to recommendation: Agreed

The Government will continue to consider and review initiatives in line with Nuclear-Powered Submarine (NPS) Enterprise workforce planning and related arrangements.

The NPS Technical Student Support Scholarships announced in the 2024-25 Budget will include activities to promote STEM scholarships and career and employment opportunities related to the NPS Enterprise.

Australian Government agencies will also continue to work closely with state and territory governments, professional bodies, and stakeholders across the NPS Enterprise, to develop effective programs, and to support and enhance existing trades and STEM programs across relevant educational levels.

Recommendation Seven

The Committee recommends that the Government partner with relevant State and Local governments to collaborate and coordinate on planning and delivery of enabling programs, infrastructure and works to support communities involved in the implementation of AUKUS.

Response to recommendation: Agreed

The Government is committed to working closely with state and local governments, particularly in South Australia and Western Australia, to achieve the outcomes listed in Recommendation Seven. Efforts to coordinate are multifaceted, with the primary forum of coordination occurring in formal steering groups and working groups created in both states across the three levels of government. The Government has entered into Cooperation Agreements with the governments of South Australia and Western Australia respectively to outline scope, intentions, rules and responsibilities for taking forward cooperation and implementation of the nuclear-powered submarine program under AUKUS.

Recommendation Eight

The Committee recommends that the Australian Submarine Agency enhance engagement and consultation with the local Traditional Owner group and First Nations peoples; and with local environmental groups.

Response to recommendation: Agreed

The Australian Submarine Agency is committed to ongoing engagement and consultation with local Traditional Owner groups and First Nations peoples. These engagements will continue and increase, ensuring First Nations' voices and perspectives are heard, while the Australian Submarine Agency also continues to increase cultural understanding and awareness in the nuclear-powered submarine enterprise.

The Australian Submarine Agency is also committed to continuing and enhancing engagement and consultation with local environmental groups, including to maintain transparency over development approvals, construction, operation and radioactive waste management activities.

Information Integrity on Climate Change and Energy Select Committee

Report

Senator WHISH-WILSON (Tasmania) (18:53): I present the final report of the Select Committee on Information Integrity on Climate Change and Energy, together with accompanying documents. I move:

That the Senate take note of the report.

This was an eight-month inquiry of a select committee initiated by the Greens at a time when some of the greatest challenges we face—and I'm talking about humanity here, all of us, all around the world—seem almost insurmountable—challenges like climate change and the attacks on the integrity of our information systems, the war of disinformation that we find ourselves in globally now. The Greens initiated this Senate inquiry because we believe, just like the United Nations, that deliberate, deceptive, misleading information is undermining climate action globally, and we also take seriously the warnings of the World Economic Forum, two years in a row, in 2024 and 2025, that the biggest short-term risks to humanity are disinformation campaigns—deliberate, deceptive, misleading campaigns. We're not just talking about whether data is factual or not; we're talking about the manipulation of public discourse on critical matters of policy like health care and climate change, just to mention a few. The World Economic Forum said that the biggest long-term risk to humanity was these disinformation campaigns and how easily they're enabled in our modern information system with massive tech platforms. Combined with the impacts of climate change, it is the biggest threat facing humanity. So here we have the United

Nations saying that the biggest stumbling block to climate action globally is disinformation, a lack of information integrity and attacks on information integrity, and we have the World Economic Forum naming it up.

This inquiry was the first of its kind anywhere in the world. We looked at the information integrity systems in Australia and how they function in relation to the issue of climate change. The reason this inquiry was initiated by the Greens, supported by the government and voted for by this Senate chamber was to coincide with the COP of truth, COP30 in Brazil last year. For the first time ever, at this COP—this multilateral agreement where nations from around the world came together to discuss how to act on our climate commitments to prevent further climate breakdown and climate catastrophe—information integrity on climate change was on the agenda.

I'm very pleased to say that this committee and this report—I'm glad it's over; I'm glad it's done, and we've taken a significant amount of evidence—have been taken very seriously by the Senate, even though, yes, at times, it's been controversial. I think that is the nature of asking people to reflect on what they believe is integrity in the information being provided on a debate like the one on climate change, which has been very politically contentious in the past. But it isn't actually contentious amongst the public and amongst citizens, most of whom want action on climate change.

We can't be silent in the face of disinformation—dangerous, destructive disinformation—and deliberate agendas being peddled for commercial reasons: to protect the profits of big multinational oil and gas companies, fossil fuel corporations. There is an abundance of evidence around the world about the role they have played for decades, just like the tobacco industry, to sow doubt and undermine and obstruct climate action globally, and it isn't just through our political systems. When people think of the climate wars, they think of politicians arguing over policy, but we need to think of climate policy not as having failed in places like the US or Australia for decades but as having been defeated, because politicians are part of this infected ecosystem but it is these structures built around peddling misinformation and disinformation and undermining integrity on climate change that have enabled this obstruction of climate policy globally. It's been picked up by the UN and the World Economic Forum and, may I say, so many experts, both in Australia and overseas, that provided evidence to this committee.

I wanted to say that, even though it was at times contentious—this very unique select committee—what we have before us today in the Senate chamber is a majority report that's been signed onto by the Greens; the government, the Labor Party; the Liberal Party, with Senator McLachlan, who's here tonight; and Senator David Pocock. That's a significant achievement, because everybody recognises how serious this issue is and the fact that we need to act on it. And that's where I'd like to finish my contribution.

There is so much constructive energy, thought and work that has gone into this report. I want to thank the secretariat especially for the incredible work they have done. We went all around the country. We took evidence from experts, community groups and the secretariat have done an incredible amount of work to keep the committee on an even keel, to keep it fair, to keep the inquiry going. The result before us today, I hope, is the first step for this Australian parliament to take towards developing a blueprint, a framework, a comprehensive set of solutions for dealing with this global attack on information integrity that has undermined climate action for decades now. It has been especially prevalent in Australia, and that information is in this report.

Every time we see the undermining of climate action happen, we need to call it out. We need to raise public awareness of the actors who are working behind the scenes, often in the shadows. We need to call out the denial machine and all its various components—the conservative think tanks, the PR firms, the Murdoch press, the conservative press and all the other elements of this machine—that has, over so many years, successfully looked like it was a genuine opposition to climate change when really the evidence before us says that it is a small group of very well-resourced, very powerful and very noisy people who have done so much damage to something as simple as acting on a changing climate that presents so many challenges to us. And it's not just damage to nature and to this planet that we all love and live on; it's to our economy, to our communities. And it will only get worse in the future. This is the challenge before us: recognise that climate policy globally, and in Australia, has been under relentless assault and will still be under relentless assault. This is a war, an information war, that we simply have to win. This is the great challenge of our time.

I want to thank all senators who participated in this. I hope this is just the first step and that there are other opportunities for us, as a parliament, to build on this work, just as this work is built on several inquiries prior to it. The recommendations aren't controversial, and that's why all major parties have signed on to this, but it is essential that we keep the momentum going. I'm glad that it's over. I'm looking forward to seeing where it goes from here. I'm also looking forward to the contributions of other senators who have been on this critical, unique, important inquiry.

Senator ANANDA-RAJAH (Victoria) (19:03): There is a war going on in the Middle East that has brought into sharp focus the gaps in our energy resilience. But there is another war, a war that is being waged in the shadows—

predominantly in regional Australia—that is simultaneously undermining our energy resilience. This is an information war of false and misleading narratives that are sowing division and doubt, and sometimes leading to outright hostility, undermining renewable energy.

In regional communities a culture of fear has developed, which is silencing democratic debate and allowing these false and misleading claims to thrive rather than be tested and challenged. This report highlights a playbook featuring a variety of actors who attack credible voices like researchers and scientists, or farmers with lived experience of hosting renewables, while at the same time propagating dubious or fringe claims against renewables. It is backed by a web of vested interests, powerful vested interests. Fossil fuel companies for sure, but they are the usual suspects. But this report has unveiled a whole array of other bad-faith actors who walk among us, quasi-scientists and pseudo-experts, and all of these claims are amplified on social media. The social media companies are as culpable. They have turned a blind eye, and they are adept at the tools of the trade—algorithmic bias, deep-fake interference, trolls and bots pushing these false and misleading claims, preying on the legitimate fears of ordinary Australians and thereby making them more unsure and uncertain. Social media has had a polarising effect in these communities, and for small tightknit communities this is incredibly divisive and damaging—damaging to relationships, damaging to mental health. Maintaining the status quo is a deliberate strategy, and it is designed to grind the gears of Australia's energy shift. Lining the pockets of vested interests is the name of the game, and regional communities pay.

For regional communities, the economic benefits of large-scale renewable projects are indisputable, ranging from jobs to alternative income streams for farmers, buffering them from the long-term impacts of climate variability, and, in best cases, sharing the love, the benefits and the income with the wider community, which is crying out for infrastructure, which is crying out for new clubs, which is crying out for better roads, which is crying out for football fields, which is crying out for essential services. For coastal communities, offshore wind exerts a gravitational pull. It attracts manufacturing, blue economy industries, like low-carbon liquid fuel development, and, most importantly, it creates jobs, which are essential for those workers who are currently in declining fossil fuel industries. With billions of dollars locked up in over 130 renewable energy projects that have been approved by this Labor government, regional communities are in the economic box seat.

Despite concerted attempts and efforts to obstruct the energy shift, aided and abetted by a swath of politicians, many of whom are in this chamber, Australia is making steady progress. For the first time, Australia's main grid hit a new milestone in the last quarter of 2025: 51 per cent renewable energy, overtaking for the first time the contribution from coal. Our homes are flush with rooftop solar—one in three homes. Households have also enthusiastically embraced our cheaper home batteries scheme, with over 280 installations and counting. Regional households are actually overrepresented, accounting for 40 per cent of home batteries, despite the fact that they are less than 30 per cent of Australia's population.

In terms of transport, we've seen a big spike in EV sales and interest. EV sales hit a record in December of last year, spiking at nearly 17 per cent, with over 450,000 of these vehicles sold. We introduced tax breaks and new vehicle emissions standards to deliver greater choice, and we've seen a surge in EV models on the market. When we came to government in 2022, there were 56 models. There are now over 150. And we've also introduced concessional finance for key workers. Uptake has been highest in outer suburban areas, and the EV discount is dominated by working Australians, from nurses to teachers, police and tradies. We're continuing to roll out and invest in EV charging infrastructure, with now over 1,300 public stations installed, up from around 290 in March 2022 when we came to government. With a further \$40 million, we will be installing kerbside EV charging on light poles throughout Australia. We're also investing in truck electrification. This has been assisted with concessional finance and grants for charging infrastructure that has taken up by some of Australia's biggest logistics companies.

With a target of 62 per cent to 70 per cent emissions reductions by 2035 in an increasingly fractious world, we need to double down rather than reignite the coalition driven climate wars. Amidst cost-of-living pressures, households, including those without solar, in several states can look forward to three hours of free electricity from the middle of this year through our Solar Sharer scheme. This is a glimpse of that energy-abundant future that is ours for the taking. We have a solar energy glut in this country, and it is starting to pay dividends. This is how we are enabling Australians to take control of their energy destiny. Share the love—the solar love, that is—and realise enduring cost-of-living relief. Our net zero pathway—underwritten by renewables, backed by storage, pumped hydro and gas—is delivering cost-of-living relief, energy resilience and reliability against a backdrop of a global oil shock. Geopolitical volatility only sharpens the imperative for Australia to double down on energy independence, recognising that, unlike fuel imports, the sun cannot be blockaded.

For regional communities, the stakes are even higher. Primary producers, transport companies and industries big and small are centred in our regions. To that end, the expansion of renewable energy is critical infrastructure, which will not only replace ageing coal fired power but bake in independence at scale in the heart of these communities.

We are also investing \$1.1 billion in low-carbon fuels through our Future Made in Australia agenda. Again, in the box seat will be our farmers, who will supply the sorghum, the canola, the sugar and the waste products towards biodiesel, sustainable aviation fuel and synthetic fuels that will be made in the regions, harnessing cheap renewable energy from the regions. Australians do not wish to be beholden to foreign interests for their energy needs, and by staying the course articulated by our government, through our ambitious but achievable energy goals, they need not be.

I thank the Senate and I thank my colleagues for this important inquiry. We uncovered a disturbing degree of activity and manipulation in the community that is dividing regional Australians and thereby hurting them. The people who claim to represent regional Australia are doing them a disservice by denying them jobs, denying them financial security and denying them energy independence. We need to go further, and this report is just the beginning. I thank Senator Whish-Wilson for his leadership, and I thank all my colleagues. I thank the secretariat and all those participants who contributed. (*Time expired*)

Senator DAVID POCKOCK (Australian Capital Territory—Independent ACT Whip) (19:13): The Select Committee on Information Integrity on Climate Change and Energy's final report is a substantial piece of work. Over the course of this inquiry, the committee received 243 submissions, held 11 public hearings and has produced a comprehensive report that reflects the scale and seriousness of this issue. I want to sincerely thank everyone who contributed to this inquiry. I thank the individuals, experts, researchers and organisations who took the time to make submissions and appear as witnesses. Your evidence has been critical in helping us understand the depth of the challenge we face. I also want to acknowledge the committee secretariat for their exceptional work in coordinating an inquiry of this size and complexity. These processes simply do not function without their professionalism and dedication. I'd also like to thank all committee members: Senator Ananda-Rajah for her exceptional work, Senator Canavan, Senator Darmanin, Senator Whish-Wilson and Senator McLachlan. I was pleased to support the committee's report and also to provide additional comments alongside Senator Andrew McLachlan.

I'd like to take a moment to thank in particular Senator Whish-Wilson. Senator Whish-Wilson has made an exceptional contribution to public life, and he will be sorely missed in this place when he leaves. His leadership on issues of environmental protection, particularly our oceans, and the passion that he brings for our incredible oceans is a real testament to him and his team. I'd also like to thank Senator McLachlan for his leadership throughout this inquiry. He brings a calm, analytical approach in an area that can often be highly contested, and it was a pleasure working with him in co-authoring additional comments.

While we support the report, our additional comments make clear that the evidence before the committee points to the need for real reform. We have called for a set of practical changes: truth-in-political-advertising laws, action to address bots and inauthentic accounts, transparency around platform algorithms, greater user control over what they see online, and long-overdue reform of our lobbying laws. While there is broad consensus on many of these issues, we have not seen the level of urgency from the government that ought to exist. This report, as previous contributors have said, is a really important step, but it needs to be the beginning of meaningful action to address the huge problem of climate misinformation that we face in this country.

Senator McLACHLAN (South Australia) (19:16): I rise to speak on the report of the Select Committee on Information Integrity on Climate Change and Energy. I too thank the chair for his leadership—a firm hand on the tiller—as well as all my fellow committee members, the secretariat and all those that made submissions. I also thank the generosity of Senator Pocock for working with me to draft some additional comments. I would say that he and his staff carried probably a heavier burden, but I thank him for his generosity in allowing me to make a contribution on the issues that are important to both of us.

For me, this inquiry was important because it's about the public debate and how we construct the public debate. We are no longer debating in the public square. We are debating online, and therefore there is great risk for manipulation, both with misinformation and disinformation. We are struggling with this, not just on our energy transition and climate change responses but on a whole variety of issues, but it is particularly acute in the area of the responses to climate change. Why? Because our democracy is grappling with a transition. Whether you agree with how the transition is being conducted, which is where the debate really should be, it requires winners and losers in an economy, and that drives behaviours. Not all of them are acceptable. Those that seek to restrain transition or progress will use any measures at their disposal to disrupt the open, transparent and fair conversations that need to occur. Unless they occur, we cannot have a proper conversation on the trade-offs. Much of the debate, even in this place, is about advancement or economic advancement without pricing in the cost to nature. In fact, the actual damage to nature is conveniently left off many contributions in the debate, particularly in this place.

When I was thinking about this, I thought of two quotes. My friends in the Greens will just have to endure conservative environmentalist quotes! One is from Russell Kirk, a well-known United States conservative environmentalist. He said:

In our 20th century, humankind is proud of "conquering nature," by tools that vary from the bulldozer to insecticides. But like other merciless conquests, this victory may end in the destruction of the victor.

What he's trying to say is this is critically important. Thus, our debates must be at the highest level. Yet there is so much—I actually learned this on this inquiry—aggressive action, from fossil fuel companies in particular, to protect their market. That's okay as long as it's declared and we know what their status is in the debate. But it's cloaked. It's hidden. Therefore, a member of the public is not fully informed to be able to weigh up whether they wish to support a fossil fuel company or a renewable company. In fact, I don't necessarily see it as a binary decision.

Another quote that came to mind was from a former conservative environment minister Lord Deben, who is one of my personal heroes. He says:

We need to make the transition as easy as possible, but we mustn't pretend it isn't going to have difficulties. You cannot say to people what is being said: that we are going to deliver net-zero in a way that nobody notices. That is just not possible. What you have to do is first of all to recognise that we have to deliver it. And secondly you have to recognise that we have to deliver it in a way which is fair to the people ...

That, I think, sets the stage for what this inquiry was trying to examine. We were very conscious—everyone on that committee—that we did not want to trample on the rights of free speech, because the whole point of having an open and transparent debate is to underpin freedom of speech and, from freedom of speech, have active and engaged decision-making of the body politic and the community that supports the body politic. As a consequence of sitting on this committee, I am probably more worried about the nature of the debate, online in particular, than I was before I started, so I thank the chair for his initiative. I would encourage members to read the report and the additional comments from all members.

My additional comments with Senator Pocock focused on other issues, such as lobbying and transparency about algorithms, and other pillars that we both saw as shoring up the whole of the body politic, which I think is under increasing stress. All of us have been made targets of social media campaigns. If you haven't, you're lucky. But it will happen to you one day, and that may be on any issue that has vexed. In many ways, it's undermining what we're trying to do in this chamber. I would like, as everyone knows in this chamber, nature to be at the centre of all decision-making. But I should be taken on on that prospect in this chamber, on television, and the trade-off should be put to me to justify, which I am happy to do. I thank all my fellow committee members.

Senator DARMANIN (Victoria—Deputy Government Whip in the Senate) (19:23): I, too, would like to associate my comments with those of the others who have spoken before me as members of the committee on this report. I'm very pleased to support the tabling of the report and the recommendations that we have collectively come up with. I'd like to thank all of my Senate colleagues, but in particular the chair, Senator Whish-Wilson, and the deputy chair, Senator Ananda-Rajah, as well as the secretariat for, as Senator Pocock said, the tower of work that they did to support us while we worked through the thousands and thousands of pages of evidence to come up with what you see before you today.

As has been mentioned, we heard a lot of important evidence throughout the inquiry—a lot of it undermining community confidence in our important and necessary transition to a renewable future—about the impacts of mis- and disinformation, social media and the sloopaganda that is circulating amongst us and our communities. We heard from very, very courageous communities, workers and organisations who highlighted the challenges in working to move to a renewable energy economy and supporting our community in the transition. We cannot afford to get this wrong. We cannot afford to get it wrong for our kids and for our future. I think this inquiry really highlighted some of the challenges that are before us and that will be before those who come after us as the world moves so quickly.

We also heard some excellent examples of how transition can be managed well in communities. I think about some evidence we heard from the Gippsland region in Victoria. We heard evidence from those who worked together, who engaged very early in the process, a long time before anything started to happen. We had organisations building trust with community, building trust with community organisations, working with local government and building confidence amongst those in the local area to really understand what was happening in their communities and why it was happening. They were expending important resources early so that people had absolute trust and were able to feel safe, to ask questions, to debate, to access reliable and credible information, to make their own decisions and to come up with conclusions that support a just transition for people in such a way that people can feel confident and able to speak their minds.

There is absolutely a debate that has to be had, but the debate has to be based on facts. It has to be based on people being able to trust where the information is coming from. It needs to be based on credible organisations and actors and transparency about who is behind what is being proposed, what is being said and who is funding such debate. So I really want to shout out those communities who have continued to engage in processes when it has been difficult and those organisations who have supported those communities. As I said, there is an important role that organisations like local government can also play in building trust and engendering transparency on what is

going on as communities make a massive transition that will have lasting impacts on them for a long time to come. Some of the lessons, clearly, are around engaging early, building trust and credibility and the importance of our public institutions in that process.

That goes to the broader agenda of this government, which has received a mandate from the Australian people to continue to work on combating climate change, moving to a renewable energy future and making the energy system fairer. Since the Albanese government was elected in 2022, we have lifted our country's 2030 emissions reduction target by more than half, from 26 per cent to 43 per cent. Having the confidence of the community in a renewable energy transition process in the regions and all throughout our country is critical in enabling us to continue to meet that target.

Since returning to government, we have set our 2035 target of 62 to 70 per cent on 2005 emissions levels. In setting this target, we have accepted the Climate Change Authority's advice. To progress towards achieving our 2035 target, we have done a range of things to transition and progress, and I think this inquiry and this report also forms part of that work that must continue, along with things like establishing a new \$5 billion Net Zero Fund in the National Reconstruction Fund to help industrial facilities decarbonise and scale up more renewables that can power communities and low-emissions manufacturing. We have invested \$1.1 billion to encourage more production of clean fuels here in Australia. Those are just a few things that build on our achievements over the past three years.

Importantly, there is a large part of our community that accepts the need to transition, and the uptake of solar rooftop in our country is living proof of that. We have reduced the cost of typical home batteries to support that solar transition and to build on the success of Australians who have embraced that technology so well. And, of course, we've also put net zero in the objects of the Clean Energy Finance Corporation Act and the Australian Renewable Energy Agency Act to ensure that they keep this goal at front of mind when making decisions, and we have made it relevant to other key agencies, such as Infrastructure Australia and Export Finance Australia. All of these levers form part of what the fabric of this report is also about. Of course, more broadly, we've restored Australia's international climate leadership, restoring our credibility with the world, including the Pacific.

Emission projections confirm these policies have us on track to reach our 43 per cent 2030 emissions reduction target, but we know there's much more to do, and hopefully the recommendations in this report can continue to support the work that we need to do, because we absolutely cannot afford to go backwards. I would also urge, as Senator McLachlan did, that people who are interested in this read the report and, importantly, the recommendations that we've come up with to address the enormous challenges that have been highlighted by this inquiry.

In conclusion, I think the final thing that I would say is that I still feel fairly new to the Senate, even though I wasn't part of the class of 2025—the 48th Parliament—but I think I'm beginning to understand the importance of Senate inquiry work and the work that you can collectively do with colleagues across the aisle, from all parties, to come up with a report like this. I think we had our final meeting yesterday—was it just yesterday? Everybody in the room was reflecting on the work that was done and how proud we are to have achieved a report where we could agree on the recommendations. I think that is a Senate committee working at its best, when we can all keep our eye on the main objective that we're trying to achieve here.

I seek leave to continue my remarks later.

Leave granted; debate adjourned.

Consideration

Committee reports and government responses reserved for future debate will be listed on the *Notice Paper*.

DELEGATION REPORTS

Australian Parliamentary Delegation to Fiji

Senator COLBECK (Tasmania) (19:34): I present the report of the Australian Parliamentary Delegation of the 5th Pacific Island Parliamentary Group Conference in Fiji which took place in August of 2025. I seek leave to move motion to take note of the document.

Leave granted.

Senator COLBECK: I move:

That the Senate take note of the document.

In doing so, can I just make a few comments with respect to this delegation and the work that is being done in the Pacific to support parliaments within all of those jurisdictions. The particular outcome of this particular conference that was attended by the leader of the delegation, Dr Carina Garland MP, and me was to finalise the establishment of the Pacific Island Parliamentary Group, or PIPG. The point of the exercise was for a parliamentary organisation in the Pacific region that would support the development and the work of various parliaments in each of those

jurisdictions and enable those Pacific legislatures to exchange institutional practices, strengthen democratic governance and develop coordinated responses to issues of region-wide concern. I have to say, it was quite an interesting delegation to be a part of, to participate in the negotiations for the finalisation of the formation of PIPG and to launch it into its next stage of operations.

There are a number of interparliamentary groups that the Australian parliament participates in—I think of the IPU, for example—and they are important institutions with respect to the continuation of governance and parliamentary processes and ensuring the strength of democracy in all of our nations. When you see the recent ANU report that indicates that something in the order of 55 per cent of Australians under 25 don't believe that democracy is the best form of governance, it's a genuine cause for concern and demonstrates the importance of these sorts of programs and projects to ensure that (a) democracy is well-understood, (b) its principles and processes are supported and (c) it is strengthened. While we might have some concerns about democracy itself, when you look around the world at the alternatives, democracy comes out well ahead.

Can I thank, in tabling this report: the work of the High Commission in Fiji in supporting the visit; Mr Peter Roberts OAM, our High Commissioner; Rebecca Brown, the First Secretary of Governance who provided support in country and for the program that was put together for us which showed us some of the work that Australia is doing in supporting the economy and some local industries and businesses in Fiji as a part of our visit; and also to Mr Dinko Colak, who was the delegation's secretary from the International Parliamentary Relations Office and who did a fantastic job in supporting us in the role that we undertook as a part of that delegation and in ensuring a successful outcome from the 5th Pacific Islands Parliamentary Group Conference.

Question agreed to.

DOCUMENTS

National Anti-Racism Framework

Construction, Forestry and Maritime Employees Union

Order for the Production of Documents

Senator CHISHOLM (Queensland—Assistant Minister for Regional Development, Assistant Minister for Agriculture, Fisheries and Forestry, Assistant Minister for Resources and Deputy Manager of Government Business in the Senate) (19:39): I table documents relating to orders for the production of documents concerning the National Anti-Racism Framework and the CFMEU.

REGULATIONS AND DETERMINATIONS

Competition and Consumer (Industry Codes—Cash Acceptance) Regulations 2025

Disallowance

Senator ROBERTS (Queensland) (19:40): I move:

That the Competition and Consumer (Industry Codes—Cash Acceptance) Regulations 2025, made under the *Competition and Consumer Act 2010*, be disallowed [F2025L01580].

These regulations were a broken promise from the government. In the other place, the House of Representatives, Mr Bob Katter MP, Ms Dai Le MP and Mr Andrew Gee MP, submitted a bill called the Keeping Cash Transactions in Australia Bill 2024. This bill highlighted the importance of cash to the regions and to the cities and sought to ensure the continuation of banking services in rural and regional areas to support the use of cash. The Albanese government did not support that bill, but there was a communication between Mr Gee and the government which resulted in the production of a set of regulations which claimed to guarantee the continued use of cash, yet these regulations failed to achieve the promised outcome. They undermined cash and helped destroy it.

As I said hurriedly this afternoon and can now say with more clarity, the promise of protecting the use of cash has been broken. It was a deceitful lie. The Competition and Consumer (Industry Codes—Cash Acceptance) Regulations—

The DEPUTY PRESIDENT: Senator Grogan?

Senator Grogan: I believe Senator Roberts is deeply misleading and is throwing around some pretty heavy language. I would seek to ask you to get him to withdraw.

The DEPUTY PRESIDENT: My opinion is that this is a debating point. You have an opportunity to participate in the debate. I will seek some advice. I will stand by my first thought. Senator Roberts, you have the call. I will caution you to consider your language.

Senator ROBERTS: I will prove my point as I continue. The Competition and Consumer (Industry Codes—Cash Acceptance) Regulations 2025 are promoted as mandating cash, yet, in a display of rank dishonesty, these regulations allow almost every business in the country to not accept cash. That's why I say it's deceit.

Firstly, small businesses with a turnover of under \$10 million are exempt, which is 97 per cent of businesses in Australia. Then every other business is excluded from the regulations except fuel stations and supermarkets. Then this mandate is shrunk even further through limiting the cash that fuel stations and supermarkets can take to only \$500 at a time. It's reduced further again with a provision that only requires that cash be accepted between 7 am and 9 pm. I'll say it again: cash can only be accepted between 7 am and 9 pm. So there's no cash anywhere between 9 pm and 7 am—none anywhere.

But wait, there's more. Further exemptions can be given to a business where accepting cash is not feasible. In Senate estimates, the ACCC gave the example of a country town with no bank to give or receive cash. In that town, the cash mandate would not apply to their supermarket or petrol station—if they have one. These regulations, which are promoted as protecting cash, have the effect of limiting cash acceptance to perhaps one per cent of businesses, and only during certain times of the day. Outside of those hours: no cash. What a scandal!

There is an agenda here, which I will now go into. We've seen many inquiries into bank closures in rural and regional Australia. The big four banks have thumbed their noses at these inquiries and continued to close branches even as the Senate inquired into bank closures. That is a fact. I was on that inquiry. A cash mandate would ruin their plans to shut down all of their presence in the bush, dumping the provision of limited banking services on Australia Post via Bank@Post. This provides a real problem for licensed post offices in the bush because they are not set up to handle large amounts of cash. They simply can't get it into town or out of town. The money they make from the transaction, coming from the banks, is insufficient to cover their costs in many cases. The banks will save a fortune through the closure of their branches, dumping the cost on Australia Post and ultimately on the taxpayers. Always with Labor, the taxpayers pick up the bill—we, the people, pay.

Labor voters will have to ask themselves why the Labor Party is so quick to provide the big four banks with additional profit, as if \$30 billion a year between them already isn't enough. Could it be the millions the Australian Labor Party put in their pockets in gifts, known as donations, every election cycle from the banks? I read the list out earlier today. It's right there as public record. Even the *Guardian* reported on it. I can remember for the 2022 election that ANZ had the smallest donation, at almost \$100,000, Westpac and the Commonwealth Bank gave nearly \$200,000 and NAB gave \$138,000. In the last election, the banks gave \$1.3 million to Labor and the Liberals and Nationals. One Nation has taken nothing—zero—from the banks. Our policy is to put everyday Australians first, not big business or big banks, as the Labor Party does.

The Liberal Party tried this on a few years back and were defeated when One Nation combined with the Greens and the Labor Party branches—your own branches—to vote down a bill that was nowhere near as bad as these regulations are. This occurred because the Labor Party's ethnic branches, in particular, got wind of their support and forced the Labor Party to oppose the bill. The decision to sneak—yes, sneak—an effective cash ban through in regulation was an attempt to hide what the government is doing from their ethnic branches. You want to hide it from your own people. Bad luck—One Nation saw you, and you've been caught.

This morning I met with representatives from National Seniors Australia, whose members are distraught at the prospect of losing their ability to pay in cash. They were in my office here in Canberra. Many of their members do not operate electronic banking, cannot pay for computers and internet or live in areas where the service is so poor that cash is still the most common method of payment. That is a fact. The government's failure to make the NBN work in rural and regional areas and their decision to shut down the 3G network is an argument for another day. I could pile into that here, but I won't tonight.

The Canberra bubble, who reside here in their ivory towers and author regulations like this, have no idea how an economy works in the bush, nor in the cities. They refuse to accept that many Australians are not engaged in digital transactions. Many protect their constitutional right to use cash. The Canberra bubble's fingerprints are all over this inscrutable, dishonest document.

National Seniors Australia pointed out a glaring hole in these regulations: pharmacies. If you are an Australian who does not have an active credit or debit card and you need medication, as many seniors do, what will the outcome be? Do you come back when you can pay with a card? People could die because of these regulations. I accept that chemists may choose to keep accepting cash for now, but what happens when the local ATMs go—as is happening all over Australia, in the bush, in the suburbs and in the metropolitan areas—and people can no longer get their hands on cash to pay for pharmaceuticals? What happens when a rural business closes their local branch, then the one in the next town and then the one in the next and petrol is \$3 a litre—thanks, Labor, for that,

by the way. If a supermarket is not in this town, you have to drive hundreds of kilometres to the next town to get food and come back.

It's a matter of life and death.

This regulation allows businesses that are suffering profit-decline to look at the cost of maintaining cash and say, 'Look, I want to support cash, but I can't afford to.' Instead of having to front their customers and explain why they no longer accept cash, they can simply blame the government and the policies of the banking industry.

And the banks—what's in it for them? Control—control over cash and control over fees, because, whenever you use an electronic method, there's a fee involved.

This is the outcome these regulations are framed to create. This is a war on cash. It's a war on Australian lifestyles and freedoms.

Banks want everyone to pay with a card, and to pay the banks for the privilege with a transaction fee. And Labor is helping the banks to greatly increase income from fees. They're helping the banks, who already make \$30 billion in profit, to increase their profits. Once consumers have no choice except to pay that fee, the fees will go up—and up, and up, and up, because you won't have a choice.

These regulations will provide one of the world's worst environments for cash payments, if not the worst. I'd remind people that Liberal and Labor supported the bank bail-ins in 2017 and 2018. These banks can never lose, because you've enabled that to happen. You privatise the profits for the banks and you socialise the losses. This banking industry has got so little risk.

It is being done without the debate this sort of a move should have. At least the Liberals had the guts to put their cash ban in a bill, put it on the *Notice Paper* in plain sight and have a fair debate—even though you supported them in the lower house. The Albanese government, instead of being open, has tried to sneak it through, lie about it and be deceitful. Yet you still have the hide to talk about transparency. What a joke, and what a cruel joke.

Sweden, Finland, Norway, Denmark and the Netherlands have realised their cash bans were a mistake, and they have wound them back. These countries have introduced regulations to actually encourage the use of cash and the provision of cash through their banking system.

Labor's regulations are already behind international best practice. They are a mistake. They are a deceit. They will cause untold suffering. And I ask the Senate to disallow them.

Senator WHITEAKER (Western Australia) (19:52): I almost can't find the words to respond to that absolute—I probably shouldn't say it; I've been trying to find a word that's not unparliamentary—

The DEPUTY PRESIDENT: Continue trying to find it!

Senator WHITEAKER: just absolute rubbish that we've heard from Senator Roberts. Is it wilful ignorance, blissful ignorance or wilful misinformation? Are they living on a completely different planet, or perhaps, I wonder, have they just spent a little bit too much time on Gina Rinehart's private jet? But, you know, the reason One Nation goes on about this stuff is that they want to distract Australians from what's really going on.

So here's the thing. On 1 January 2026, Labor introduced a cash acceptance mandate, which means that fuel stations and grocery stores have to accept cash for in-person transactions of up to \$500 between the hours of 7am and 9 pm. Until we introduced this mandate, there was no obligation on businesses to accept cash in Australia—no obligation. But now there is—thanks to Labor; thanks to our government—because we know that cash still plays an important role in our economy. Done. Problem solved. You're welcome.

So what exactly is it that Senator Roberts and his colleagues are outraged about? Genuinely, I would love to know. But this is what they do: they twist words; they target Australians who are doing it tough; they manufacture outrage out of thin air; they want to make people angry. And it's like they think: 'Oh, we've won a couple of lower house seats in South Australia,' and suddenly they're ready to run the country! I mean, mate, give me a break! What they continue to demonstrate in this place is that they are not up to the job of making the serious decisions that Australians need. The coalition breaks up and makes up all the time. I can't imagine the chaos of adding a third party to that dysfunctional marriage. It won't end well.

One Nation clearly love cash. They've made that pretty clear. Don't get me wrong—they love money; they love gifts. If you read the news, you would have seen that Senator Hanson has spent a bit of time on the private jet of Australia's richest person, Gina Rinehart, but she's forgotten about it. Don't get me wrong; I love a girl's trip. But I'm not sure I'd be jumping on Gina's jet anytime soon, and, if I did, I reckon I'd probably remember it. When asked whether she'd received free flights from Australia's richest person, Senator Hanson said she couldn't remember. I mean, can you imagine?

Let's have a look back at the travel diary. Where in the world has Senator Hanson been on Gina Rinehart's private jet? Florida—lovely and sunny. I hear it's a lovely place to retire, Senator Hanson. I'm sure plenty of people might love your act over there, but they do have alligators, not crocodiles, just so you know. What did Senator Hanson get up to in sunny Florida? Well, she spoke at the Conservative Political Action Conference, partied with Donald Trump at Mar-a-Lago and stayed in Rinehart's Palm—

Senator Roberts: On a point of order, Deputy President, what's the relevance of this?

The DEPUTY PRESIDENT: These are generally wide-ranging debates, Senator Roberts. I will bring Senator Whiteaker back to the item we are actually debating. We do need to be broadly relevant to the item we are debating. Senator Whiteaker, I will remind you of what we are debating, but you have the call.

Senator WHITEAKER: Thank you, Deputy President. I'm happy to explain why this is relevant. The party at Gina Rinehart's Palm Beach mansion sounds like a blast. It's not exactly my cup of tea, but it sounds like what ordinary Aussie battlers are doing on the weekend—jumping on Gina's private jet and heading to the US. One Nation is the party that claims that it's fighting for the 'forgotten Australians', but I think they actually mean 'forgetful Australians'—you know, those ordinary battlers who forget that they travelled on a private jet. I speak to those Western Australians all the time in my home state! Who hasn't forgotten to declare a free trip to Florida on a private jet? It happens all the time—a totally easy mistake to make.

Senator Roberts said in his contribution that he believes all Australians should live a life of wealth and prosperity. He wants to make sure that every Australian can use cash when they need to. But that's not true. In fact—and I'll use one of the words that Senator Roberts used earlier in his contribution—it's a lie. It is not true. But that's One Nation in a nutshell: talk up the battler, fly with the billionaires.

If Senator Roberts wants to talk about cash so much, why doesn't he want Australians to have any? Why have One Nation stood in the way of every single cost-of-living measure that our government has delivered? Why have One Nation stood in the way of every effort our government has taken to increase wages for ordinary working Australians? That's the real work that Australians want their government to do, not spread lies and misinformation in an attempt to distract from what One Nation senators are actually spending their time doing: pretending that they stand up for the battlers while flying with billionaires.

While they waste time in this chamber on conspiracy and clickbait, they're trying to get rid of the only real protection that Australians have to use cash for the things that they need. Let's be honest, that is what this disallowance would do. It would take away the only protection that Australians have to use cash. What would ordinary Australian battlers have to say about that? Senator Roberts talks about some weird digital money that doesn't exist, but he's stopping people from being able to use the cash they actually have in their wallets. Make it make sense! Right now, tonight, in this chamber, Senator Roberts and One Nation are moving to take away the only guarantee that Australians have to use cash for the essentials. It's not protecting cash. It's not standing up for ordinary Australians.

This is part of a pattern of behaviour by One Nation. They are not actually committed to taking action on cost of living. They are not actually committed to standing up for ordinary Australians. They pretend that's what they care about, and then they come into this place and they try to take away the protections that Australians rely on. They try to stand in the way of our actions on cost of living. But we will continue to call them out, because Australians deserve better than what One Nation are offering.

One Nation love to talk about protecting your freedom, but actually they are trying to take away your ability to use the money that you have in your wallet. Well, I tell you what, Senator Roberts, that ain't freedom. It's a complete contradiction. If you're serious about protecting cash then you should support the only mandate—the mandate that this government introduced on 1 January this year—to protect that. But if you continue with this disallowance, you are taking away the ability of Australians to use cash. You should be upfront and honest about that. When you say that you stand up for everyday Australians, they expect you to do just that.

But when the chips are down, when there are headlines to chase and clicks to get, One Nation go behind Australians backs. They'll say one thing in the street and do the opposite in the chamber. But we should be honest about who they are really standing up for. This is a party that pretends they care about ordinary Australians, but they are cosy up to billionaires and their powerful interests when it suits them. That is their record—not delivery, not outcomes, just outrage.

Tonight they are trying to take away the simple cash guarantee that Australians rely on. All Australians should be able to walk into a shop, pull out a pineapple and pay for the basics. That's what Labor believe, and that is what we have delivered. That is what Senator Roberts and One Nation are trying to take away from Australians in this chamber tonight. And I really hope the opposition, the Liberals and the Nationals, don't use this as an opportunity to continue to cosy up with One Nation like we saw in recent weeks in South Australia, where they cosied up and

did a nice little preference deal—it didn't work out so well for the Liberals in South Australia, did it? I hope they have learnt their lesson. But I suspect that I might be sorely disappointed and that we might see One Nation and the Liberals and the Nationals cosyng up again to take away the things that Australians rely on.

I want to talk a little bit about why we introduced this mandate and why it's so important. Labor introduced this mandate on 1 January 2026. It means that most fuel stations and grocery stores have to accept cash for in-person transactions of up to \$500 between 7 am and 9 pm. Before this mandate there was no obligation on businesses to accept cash in Australia, and now there is—unless, of course, this disallowance motion passes the Senate, in which case Australians will no longer have that protection. That's what Senator Roberts and One Nation are asking us to do tonight, to take away the ability of Australians to use cash.

One Nation talked a little bit about locals being able to pay their bills, and I think that's really important because we know that most utility providers don't actually have retail shopfronts. There are more than 4,000 post offices around the country—more than 2½ thousand of those in rural and remote areas, areas that Senator Roberts likes to pretend he cares about—and so Australians are able to make cash payments at those outlets. This approach, our approach, has been supported by stakeholders. COTA Australia, representing older Australians, says:

Mandating businesses to accept cash for essential goods is sensible reform that will protect older Australians and others who rely on cash from being locked out of everyday life ...

Sounds pretty good to me, but, as we've come to expect from One Nation, their arguments are light on detail and far from reality. I said earlier, but I'll say it again because it's a really good line: are they living on another planet or are they just spending too much time in Gina Rinehart's private jet?

What I would like to see from Senator Roberts and One Nation is for them to be upfront with Australians about what they are actually doing here tonight and what they're asking senators in this chamber to do, which is to say to Australians, 'Look, Labor introduced this mandate to make sure that you are able to pay cash for the things that you need, but what we are trying to do, what One Nation is trying to do'—and what I hope that the Liberals and Nationals don't do—'is vote to take that capacity away.' If this chamber votes in favour of this disallowance motion tonight, that is what will happen, and Senator Roberts and One Nation should be honest about that. They should be honest to the around one in 10 Australians that the RBA found use cash for the majority of their in-person purchases. They should be upfront with us about what it is they are trying to do.

What's the coalition's record on regional banking? Between 2017 and 2022, the number of regional bank branches across Australia fell by 29 per cent—that's 700 regional bank branches that closed on their watch. What has Labor done about that? Since we came to office, we've negotiated a moratorium on branch closures for 2½ years to ensure that there are no regional branch bank closures by the major banks before 31 July 2027. We've secured investments in Bank@Post, which has over 3,350 locations across the country, and we've delivered the cash acceptance mandate, guaranteeing, for the first time, that all Australians can use cash for their fuel, groceries and essential services. That's the mandate that Senator Roberts wants to take away from Australians tonight.

Our support for regional banking for Australians who want to use cash is having a real impact in communities across Australia. Under the Liberals, when they were in government, we saw nearly a third of regional bank branches close. It's only Labor that has done the work to make sure that those banks continue to operate.

We know there's more work to do, and we are absolutely committed to doing it. We know that local banking services are important to Australians, and we are committed to keeping those banks open. My message to Senator Roberts and One Nation tonight is, if you're serious about protecting cash, then you should withdraw this disallowance motion. My call to other senators in this chamber is not to vote in support of this motion, because what it will do is take away the only protection that Australians have right now to pay cash for the essential services that they need, and that would be an absolute outrage.

Senator BROCKMAN (Western Australia—Deputy President and Chair of Committees) (20:08): I rise to speak on this disallowance motion. The coalition will be supporting this motion, and I will explain why. We just saw from Senator Whiteaker how unseriously the government takes this issue, and it is a serious issue. It is a serious issue of economic freedom. It is a serious issue that other countries are taking very important notice of.

I want to go through what some other countries have actually done in this space. Let's not try and paint these countries as radical, right-wing nut-job countries. How about Norway, which has a strict law requiring merchants to accept cash, particularly for in-person services? Denmark—another very right-wing country, I hear—maintains that most shops and businesses accept cash payments. Spain mandates that businesses must accept cash transactions for up to 1,000 euros. France has strict regulations in place requiring the acceptance of cash for all retail transactions. Hungary and Slovakia—have in place these kinds of mandates because they realise that cash is integral to sovereignty and is integral to individuals' economic freedom. What we have from the Labor Party is a deal done behind closed doors with no transparency, no consultation. They've completely failed to respond to the regional

banking inquiry, which delivered its recommendation 660 days ago, an inquiry I sat for. The fact is these are very important issues and issues that must be taken more seriously than has been displayed by those opposite.

Senator MULHOLLAND (Queensland) (20:10): Let's be frank. This disallowance motion isn't just a bad motion; it's a confused motion, and it's actually a revealing motion. In one single act, being this disallowance motion, brought forward by Senator Roberts, we see laid bare something that the Australian public is increasingly becoming more aware of—that the Liberal Party of Australia and One Nation are no longer fellow travellers. They are no longer occasional collaborators, sometime friends. They are politically, strategically and ideologically intertwined. At this point, the Liberal Party are not even a party anymore; they are just a very, very bad One Nation tribute band, and, like with most tribute bands, we are not enjoying the music.

Jokes aside, let us start with the facts. Senator Roberts has moved to disallow the Competition and Consumer (Industry Codes—Cash Acceptance) Regulations 2025, a regulation that is quite simply already delivering exactly what Australians were promised. The Albanese government said that we would guarantee the right to use cash for essential purposes, and we did it. From 1 January this year, Australians are able to walk into a fuel station or a grocery store and use cash, their own hard-earned money, to pay for essential goods. For the first time ever, there is a legal obligation for businesses to accept cash. This government did that. Before, there was none. That is the reality. But why does that matter? Despite all of the noise, the conspiracy laced talking points from Senator Roberts, Labor believes cash still matters. And we go one step further. We want to put more money, more cash, in the back pocket of ordinary Australians, and we've done that with tax cut after tax cut, voted against by that side of politics. We want to put more cash in the back pocket of Australians.

But we didn't stop there. One of the first things we did when we came to government was protect energy rates, something that has always been under threat by the Liberal Party. They took a run at Sunday penalty rates, and we knew that they would do it again if given the chance. They are always after taking money out of the back pocket of the Australian workers. We didn't stop there. We made same job, same pay law. Now, we have workers who are being ripped off by up to \$30,000 in my home state of Queensland, working hard underground in mines in Central Queensland. That side of politics, One Nation, is very happy to see them being ripped off by \$30,000, so we are not going to be lectured about cash by people who want to take cash out of the back pockets of ordinary workers.

We know how important the reliance on cash is to Australian workers. Around one in 10 Australians rely on cash for most of their in-person purchases. That is not trivial. That is not fringe. That's real people, older Australians, people in regional Queensland, people who rely on the certainty, the accessibility and the control that cash gives them. Around 1.5 million Australians use cash for 80 per cent of their transactions. Cash is not nostalgia; it is a lifeline. The Albanese Government's has recognised that. But we have also recognised something else. You cannot simply impose blanket rules without understanding the impacts that that could have on small businesses. We struck a balance—a cash mandate that applies to essential services, such as groceries and fuels, and a cap of \$500; operating hours that reflect real-world trading conditions; and an exemption for small business with under \$10 million in turnover. We also built into it a review for three years. That is what responsible government looks like—measured, consulted and targeted.

When Senator Roberts comes into the chamber, waving his finger around, you have to ask: what exactly does he think he is achieving here? This motion isn't just misguided; it is redundant. The legislation he wants already exists thanks to this Labor government. His actions today are frankly an admission that he does not understand the very law that he is trying to dismantle. Worse than that, if it succeeded, it would strip away the very protections he claims to support. It would remove the obligation for businesses to accept cash. It would make life harder for the very Australians, the battlers, that One Nation claims to stand up for. Every opportunity they get to stand up for battlers in this place they do not take. They vote against the interests of hardworking Australians time and time again. They voted against same-job same-pay. They voted against penalty rates. They voted against tax cuts. They do not want cash in your back pocket; they want it in Gina Rinehart's.

This motion is a classic own goal from the One Nation playbook. The same people who tell working people in this country, the battlers, one thing, and, when they come to Canberra and they sit on that leather, they do the exact opposite, thinking that nobody's going to notice. This is another example of bad policy bluff without any detail or sense of reality. Every time when scrutiny arrives and when real questions are asked of One Nation, their house of cards falls over. We saw that just days ago from Senator Hanson down in Adelaide. She was asked a simple question in South Australia in the election about who would cost One Nation's policies, and she exploded. I think it's perfectly logical—

Senator Bell: A point of order on relevance—I'm not sure what this has to do with the motion we're debating.

The ACTING DEPUTY PRESIDENT (Senator Grogan): I did feel the thread through there, if I work off the basis of the series of contributions we've had on this matter. It does appear, from the original speaker onwards, that

it is somewhat about the vibe, but I will make the point to Senator Mulholland to make sure that she is remaining relevant to the topic, and I'll listen very carefully, Senator Bell. Senator Scarr?

Senator Scarr: Just on the point of order, I must say I was so engaged by Senator Mulholland's speech that I actually left my office to come in so I could listen in person—it was so relevant.

The ACTING DEPUTY PRESIDENT: Thank you for that contribution, Senator Scarr. I feel debating the point of order is maybe appropriate for this time of night, but, no, that is not what we are here for. I will take us back to the debate at hand.

Senator MULHOLLAND: When asked a simple question about One Nation's election policies, the response from Senator Hanson was: 'Don't ask me stupid questions. It's got nothing to do with me.' That tells you everything—no detail, no accountability and no responsibility; just performance. That's exactly what we're seeing tonight from One Nation. This is just performative clickbait for their social media following. Ordinarily, you may say, 'Look, that's One Nation. That's what they do,' but this motion—something in it I think is worth the Australian people taking notice of, particularly the people who are backing this motion.

The Liberal Party is backing this One Nation motion—the party that claims to be for small business. The party that lectures everyone in this chamber about economic responsibility is preparing to vote for a motion that would force businesses to hold large volumes of cash on site, potentially exposing them to theft, increasing their costs and increasing their risk. This motion, and the fact it's being backed by the Liberal Party, is economically incoherent and politically cowardly. It is at odds with everything they say they stand for.

The timing of this could be more telling. Just a few days after the member for Hume, Angus Taylor, declared he would take up the fight to One Nation as the new Liberal leader, he would defend the coalition's credibility, he would draw a line—

Senator Scarr interjecting—

Senator MULHOLLAND: I have a feeling he doesn't like it now!

The ACTING DEPUTY PRESIDENT: Senator Scarr?

Senator Scarr: On relevance: I think the senator is now starting to wander from the topic.

The ACTING DEPUTY PRESIDENT: Thank you, Senator Scarr. Senator Mulholland, I feel we may judge this by whether Senator Scarr removes himself from the chamber and returns to his office because it is no longer relevant. In all seriousness, Senator Mulholland, if you could please stick to the topic at hand, that would be more appropriate.

Senator MULHOLLAND: I would sort of argue that how the coalition's going to vote—

The ACTING DEPUTY PRESIDENT: I would suggest you don't.

Senator MULHOLLAND: is going to be an interesting part of relevance to this, but I digress. As I was saying, the member for Hume declared he would take up the fight to One Nation. We're not seeing that in tonight's debate. We're not seeing them take up the fight to One Nation in this motion at all. They're leaving it to the Labor Party, time and time again, to take up the fight to One Nation. They said they were going to draw a line, but what did we get? We got a conga line instead.

It's getting a bit awkward—the dumping of net zero, the mass migration dog-whistles, the 'cash is king' stuff. When One Nation says something wild in the morning, by lunchtime the Liberals are coming into this place saying: 'Actually, we've always thought that. That's always been our policy.' I'm sure we're going to hear that when they back in this motion tonight. We know that backing in One Nation for the Liberal Party is a fraught endeavour. The primary vote for One Nation exceeded that of the Liberal Party in South Australia. Hitching your wagon to their star is just going to result in the complete annihilation of the Liberal Party.

What is in danger here in this particular motion is something much deeper. This is not just about cash and it's not just about regulation; it's about the type of politics that we allow to take root in this country. On one side, you have leadership from Anthony Albanese, making it clear that Australia is a modern, multicultural nation. It's a nation that moves forward, not backward. It's a nation that rejects the politics of division and fear. From the other side, silence, accommodation, complicity.

I will acknowledge that, up until recently, there has been one voice on the other side who's been willing to speak plainly on One Nation, and that was Senator Matt Canavan, who has called out the divisive rhetoric that we have seen from One Nation, until today, when he signalled a preference deal with One Nation. So who is going to stand up to One Nation? It's not those guys. Apparently, on the opposition benches, it takes courage to do the right thing because leadership means more than saying things that are not always popular; it means standing for something.

Senator Kovacic: A point of order, Acting Deputy President. While I think you've given Senator Mulholland a lot of leverage, I think we're crossing over into reflecting on individual members on the other side, and I don't think that's appropriate.

The ACTING DEPUTY PRESIDENT: Senator Mulholland, shall we wrap up with some very focused points about your position on this specific debating point?

Senator MULHOLLAND: I would love to. It would be my honour. Just to finish off that point, in the spirit of decent politics, we're talking about One Nation bringing a disallowance motion into this chamber purporting to stand up for cash. That legislation exists; that regulation is there. To move a disallowance motion will remove that right to access cash, to use cash—in petrol stations, in grocery stores. That's exactly what they want to do. We know that, when they come into this place and talk about cash being king, they only care about putting more cash in the back pocket of Gina Rinehart. At every opportunity that One Nation have had in this chamber to back in the battlers and the working people of Australia, who they come to this place and tell us they represent, they have voted against their interests—voted against penalty rates, voted against same job, same pay.

You voted against same job, same pay. You want to talk about the coalminers in Central Queensland, the people you are quite willing to accept are being underpaid by \$30,000 a year. You are quite happy for workers in Central Queensland working underground to be getting paid less just because their company found a loophole.

The ACTING DEPUTY PRESIDENT: Senator Mulholland, will you resume your seat please. Senator Roberts, did you have a point of order?

Senator Roberts: Yes, I do. We're the only party that stood up for the workers of Central Queensland and Hunter Valley. The only one.

The ACTING DEPUTY PRESIDENT: Senator Roberts, this is not an opportunity for you to stand up and debate another senator across the chamber. A point of order is a point of order. If you have one, can you please make it.

Senator Roberts: Yes, it's a matter of relevance, but it's also a matter of truthfulness. We're the only ones—

The ACTING DEPUTY PRESIDENT: No. Senator Roberts, resume your seat. This is not for you to debate across the chamber, because you're not enjoying what another senator might be saying. That is not for anyone in this chamber to do. Your point of order on relevance—I have to say I've been listening very intently, given the contributions of other senators, and I think Senator Mulholland, in this wide-ranging debate, is on track at this point in time. Senator Roberts, again, I'm going to say to you that this is not about a debate. Do you have another point of order?

Senator Roberts: Senator Mulholland is misleading the Senate because—

The ACTING DEPUTY PRESIDENT: Senator Roberts, resume your seat. That is an opinion. Senator Mulholland, you have the call.

Senator MULHOLLAND: Senator Roberts may want to dispute the facts, but the voting record in this place shows that he voted against same job, same pay. It is there in black and white. That is your record. You voted against cash in the back pockets of miners in Central Queensland. That is your legacy.

Senator DARMANIN (Victoria—Deputy Government Whip in the Senate) (20:27): As I think has been made pretty clear by my colleagues tonight, the government will be opposing this disallowance motion. Frankly, it's not a very complicated debate, but I thought, perhaps by way of example, I would make an illustration of the point.

Imagine, as maybe has happened in my household from time to time, it's a school day. You've had a very busy week at work, and you may have slept in because your phone may have gone flat, and the alarm didn't go off. You wake up with not long before the kids have to get to school, and you rush to the fridge to make breakfast for them and to get their lunches ready, and you find there is no milk in the fridge, and there is no bread in the pantry. So you throw your thongs on, you get into the car and you drive down to the servo to get bread to make the kids lunch to take to school. But the servo doesn't take cash, so the kids have to go to school without a sandwich. That is what this motion seeks to do—to have kids go to school hungry, with no bread, no sandwiches, no time to go to another shop before getting them to school. This is what this motion seeks to do, which is just outrageous.

We're talking about whether Australians can use cash to pay for the essentials that they need, like bread to make a sandwich to go to school and milk for before you go to school. What is being proposed does not protect that right; it gets rid of it. While Australia is undoubtedly becoming an increasingly digital economy, if your phone runs out of battery and you can't use tap and pay, and if the petrol station doesn't have the ability to take your cash, then the kids go hungry. That's the reality that the Albanese government understands. It doesn't just matter to families and busy mums and dads and carers with kids, who've got to get their kids to school on time with food in their tummies;

it matters to the people in regional and rural communities, it matters to older Australians, and it matters to people experiencing financial vulnerability.

Debate interrupted.

ADJOURNMENT

The ACTING DEPUTY PRESIDENT (Senator Grogan): We have reached the hard marker of 8.30, and I propose the question:

That the Senate do now adjourn.

Renewable Energy

Senator WHITEAKER (Western Australia) (20:30): The town of Collie in the south-west of WA has a long and proud history as a coalmining town. In fact, generations of my own family have worked on those mines—my grandfather, my great-grandfather and my great-great-grandfather—and my dad did his sparkie apprenticeship at the Collie Power Station. Collie is a town that has kept the lights on in Western Australia for over a century. What I know about the people of Collie is that they are hardworking and they are resilient. It is that resilience that will secure the town's future. There is no denying that coal-fired power must be phased out and that it must be replaced with renewable energy, but that transition must keep jobs in the regions that have kept our country running for so long. Labor wants to ensure that, for generations to come, towns like Collie remain a place where well-paid and secure jobs can thrive.

The Cook Labor government in Western Australia has made a commitment to close the state's remaining coal-fired power stations by 2030. It was not too long ago that former prime minister Scott Morrison brought a lump of coal into the House of Representatives. It was a stunt that mocked the science and ignored what is at stake. While coal is being phased out, jobs in regional communities do not have to be, and gimmicks will not deliver the future that towns like Collie need. The future will be built by the workers and the communities who are already doing the hard work of transition.

This week, the mighty AMWU are here in Canberra to talk to us about the opportunities that exist for a clean energy future in towns like Collie. I want to acknowledge Steve McCartney, the state secretary of the Australian Manufacturing Workers' Union WA, and two brilliant delegates from Collie: Daniel and Jason. They brought some lumps of Collie coal with them, a symbol of the town's history, but they also brought with them magnesium, aluminium and green steel—a clear demonstration of what the future can look like. When we talk about a renewable energy future, when we talk about the future of work, we have to ask: who is it that we're doing this for? It's for workers like Daniel and Jason and their kids and grandkids. It's for the children and the grandchildren of the residents of the great town of Collie, working families in regional communities not just in Collie but across our nation.

We have an opportunity to get this right, to support a genuinely just transition, to create new industries and new jobs into the future and to ensure that communities like Collie in my home state, towns like the one that my family have called home for many generations, are not left behind. Collie has every reason to be proud of its past and to be excited and confident in its future. What I know is that it is only a Labor government that is serious about taking action on climate, that is serious about the renewable energy transition and that is serious about securing safe, well-paid jobs for regional communities like Collie.

Western Australia: Collie Trade with European Union

Senator BROCKMAN (Western Australia—Deputy President and Chair of Committees) (20:34): Just before I start speaking on what I'm planning to speak on tonight, I would just point out that, in Collie, at the last federal election, there were swings of up to 20 per cent to my good friend the MP Rick Wilson, the member for O'Connor, in various Collie booths. And, at the state election, there was a uniform swing of 20 per cent to the Liberal Party. So that's something to bear in mind when you talk about the future of Collie.

But I stand here tonight to speak about the EU free trade agreement, and what a misnamed thing—a failure of negotiation—we have seen in the EU free trade agreement. You only have to glance for 30 seconds at the voices from the farming industry to see what poor negotiators Senator Farrell—Minister Farrell—and this government have been in dealing with the EU. They wanted a headline, not a free trade agreement.

So what have we seen? The Red Meat Market Access Taskforce chair described this as an 'outrageous discrepancy', in terms of the quota for the meat sector, profoundly let down by this outcome. 'To land a deal so far below what other suppliers have secured is genuinely bewildering,' he said. The Australian Meat Industry Council CEO said:

An FTA cannot be in the national interest if it does not correct the disproportionately low quota volumes currently applied to Australian beef, sheepmeat and goatmeat entering the EU.

The National Farmers Federation—what did they have to say? They said:

What the Australian government has accepted today appears to offer no material change for key agricultural commodities as what the government rightly rejected in October 2023.

And that's what I want to go through here tonight. In particular, I want to talk about the Australian beef and sheep- and goatmeat quotas.

Minister Farrell walked away from a deal and said it was completely unacceptable when, in 2023, what was on the table was 30,000 tonnes of beef and 25,000 tonnes of sheep- and goatmeat. In 2026—just three short years after 30,000 tonnes had been unacceptable—35,000 tonnes apparently was the greatest deal ever! Now, let's see what that increase of 5,000 tonnes actually means in the European market. For beef, it means 0.0006 of the European market. I'll say that again: 0.0006. It's extraordinary that the government is trying to claim this as a win. In terms of sheep- and goatmeat, 25,000 tonnes was completely unacceptable three years ago; 31,000 tonnes is a victory today! That's an extra 6,000 tonnes—0.006 per cent of the European market.

This has been a complete failure of negotiations and a complete betrayal of our agricultural exporters. It shows this government for what it is: a government that does not understand agriculture, that does not care about agriculture, that cannot negotiate on behalf of agriculture, and that, in fact, is willing to leave agriculture in the dirt. It is a government that has completely failed agricultural producers, across so many sectors, whilst not even getting adequate protection for our producers here who wish to export. There's no protection for producers who wish to use the term 'feta'. There's questionable protection for the use of 'prosecco' as it applies to the grape variety, not the product. Disgraceful!

One Nation

Victoria: Workplace Relations

Public Transport

Senator HODGINS-MAY (Victoria) (20:39): I never quite know whether to talk about these guys or not, but tucked away beneath the stunts and sketchy rhetoric, there is genuinely new force in Australian politics here to fight for you. One Nation will clean up government spending while claiming taxpayer funded trips around Australia to attend fundraisers. One Nation will fight for everyday Aussies while taking donations and free plane rides from Australia's richest billionaire and hanging out at Trump's Mar-a-Lago resort. One Nation are just like the working-class battlers, inviting the media to their office to watch as they eat premium wagyu beef steaks owned by their favourite billionaire Gina Reinhart.

I see the polls. I can see One Nation rising. It's not dissimilar to the Reform Party in the United Kingdom. Just like in the UK, where the populist right got trounced by newly sworn in Greens MP and plumber Hannah Spencer, the Australian Greens will take on One Nation's bad faith politics here in this country. You do not help everyday Australians by sucking up to billionaires. You help everyday Aussies by refusing their donations and taxing them. You don't help people by voting against abortion access, penalty rates, subsidised childcare and public school funding.

I get it. Labor has, in so many ways, abandoned the working class for their corporate mates. The coalition has never cared about you. But One Nation is not your friend. They are terrible politicians, but they're excellent grifters, and they are taking Australians for the ride of their lives. They even voted against a tax on gas exports. How is that standing up for everyday Aussies bearing the brunt of an illegal war—an illegal war, I might add, that One Nation backs to the hilt—and its impact on our energy prices here at home? When you're searching for a politician that will fight for you, don't worry about what they say. Put that to one side. Look at who is funding them. If it's the big billionaires and the big corporations, the chances are that they'll tax you instead of them.

Next, I'd like to shoutout the incredible Victorian teachers and support staff who are today on strike for the first time in 13 years over fair pay. At least 35,000 teachers took to the streets of Naarm today to fight for better pay, for better conditions and for some overdue respect from the state Labor government. As the proud daughter of a Victorian teacher, Vivienne Hodgins who taught for over 30 years, I know how hard our educators work and how hard they unfortunately need to fight for fair pay and conditions. They dip into their pockets to pay for excursions, they have a bottom drawer in their desks with snacks for those kids who don't have food and they are worrying every day about the chronic underfunding of our public school system whilst simultaneously having to worry about their own pay and conditions and about being able to afford to live in the area where they teach and work. Many of these teachers are at breaking point. They feel undervalued, overworked and unsupported by the state Labor government because they are all of those things.

Teachers do some of the most important work in our societies, educating, supporting and inspiring our children and our next generation of leaders. It sounds cliché, but it is so true. I still get my mum's former students coming to me and telling me about the impact she had on their lives. They work long hours and pour their hearts into their jobs. They are making the brave, necessary decision to step away from these jobs and to strike today. As the daughter of a Victorian school teacher, as the mother of a Victorian school student and as your Victorian senator, I support you. The Australian Greens supports you. The Victorian Labor government must come back to the table and pay our wonderful teachers what they deserve.

Finally, the impact of Trump and Netanyahu's illegal war—continually backed by the war parties in this place, the Labor government, the opposition and One Nation—is causing immense pain to Australians every single day. People are anxious. People are financially stressed, and they're looking for leadership. There are real and meaningful things we can do in this place right now like making public transport free. It's a no-brainer. It's picking up momentum, with the Rail, Tram and Bus Union adding their voices. We must do more. It would take pressure off fuel supply so farmers and truck drivers can fill up and so that our regional servos aren't running dry.

Dowell, Ms Jennifer Rae (Jenny), OAM

Senator McALLISTER (New South Wales—Minister for the National Disability Insurance Scheme) (20:44): I rise tonight to pay tribute to my friend Jenny Dowell, who we lost this afternoon after a long battle with cancer. She was a great Australian, a great citizen of the Northern Rivers and a great Labor person. She offered decades of service to her community of Lismore and the Northern Rivers, and, in every role that she held, she consistently put the power of her principles into practice, and, in the process, she achieved the best thing that any of us could ever hope to achieve—she made Australia a better place.

She made an indelible mark on Lismore, the wider Northern Rivers community and our labour movement as a teacher, as a councillor, as a mayor and as an activist for her community, for women's rights and for the environment. Her legacy as mayor is a triumph of both quality and quantity. It includes fluoridation of the town water, better community infrastructure, the Lismore Regional Gallery, strengthening the relationship between Lismore and Southern Cross University and support for the LGBTIQ community through Tropical Fruits.

As the Chair of the Northern Rivers Regional Organisation of Councils, she wasn't just a strong and respected voice for Lismore but for the whole Northern Rivers community. Whether as a mayoral mentor to more than 18 mayors across New South Wales, supporting women in politics or as a volunteer for the Lismore Theatre Company, the Red Cross, the Northern Rivers Rail Trail or the Northern Rivers Flood Action Group, she gave so much time and so much energy.

For me personally, Jenny was always an ethical anchor. She was a person whose opinion I sought out and whose public speech was always so ethical and so clear. Jenny never talked down to her community. At a time when there are so many rewards for people who peddle simple solutions and stoke anger and division, Jenny always chose the complex, serious approach. She never talked down to her community. She respected their intelligence, and, in turn, they respected her.

Jenny didn't just support her own community; she sought to lift it up. From the moment she put up her hand as someone ready to make a difference, Jenny was an exemplar of someone who did politics with purpose. Through the sheer power of her example, she showed people that they can do extraordinary things to change their community for the better.

As she faced the greatest of all challenges, she awed the entire Labor family and her whole community with her grace and her dignity and her courage, and so we hold her family—Ron and Georgina and Tim—in our hearts at what is a very, very difficult time for them, and we hold the wider Northern Rivers community in our hearts too, because they have lost a leader and, for many, a very dear friend. Vale, Jenny Dowell.

Mental Health

Senator WHITTEN (Western Australia) (20:48): I rise today to speak on one of Australia's greatest and most preventable tragedies. Every year, we lose more than 2½ thousand men to suicide. That equates to one Australian man taking his own life every three hours. These are fathers, sons, brothers, grandfathers, friends, mentors and workmates—ordinary men whose lives were ended by a level of despair and hopelessness that became too much to bear. All suicides are profound tragedies for the families and communities that are left behind, yet the sheer scale of this crisis among men demands far greater attention than it currently receives.

According to the latest Bureau of Statistics data, 83 per cent of people who died by suicide were under the age of 65—lives cut tragically short—and 77 per cent of all suicide deaths were male. The largest proportion occurs amongst men aged 40 to 44, and suicide remains the leading cause of death for men aged 15 to 44, as highlighted by Professor Rice, the global director of the Movember Men's Health Institute. These numbers should be causing a

national outrage. They should dominate debate in this parliament, but we hear precious little. I would like to acknowledge the great work and advocacy of organisations like Zero Suicide, who every year place shoes on the front lawn of this parliament to represent the boys and men that are lost to suicide each year. I have repeatedly called for the establishment of a dedicated office for men to address the challenges facing Australian men and boys. We even wrote a letter to the Prime Minister. To date these calls have been rejected. The government claims it has done enough through the appointment of the Special Envoy for Men's Health. While I acknowledge the honourable member's efforts in promoting men's physical health, this approach falls well short of confronting the deeper systemic and situational issues driving men to take their own lives.

When we examine the factors behind male suicide, we must look honestly at the situations these men were facing when they made the tragic decision. The New South Wales government's 2024 report *Men's mental health: a focus on suicide prevention* provides sobering insights. It found that 17.4 per cent of men who died by suicide had a history of self-harm, 15.6 per cent were experiencing family disruption or divorce and 13.6 per cent were having serious problems in their relationship with their spouse or partner. These are not abstract figures. They represent real men, often fathers overwhelmed by isolation, loss of identity, financial pressure and the pain of being separated from their children. As a nation, we have failed to seriously address these situational triggers. There is no comprehensive national inquiry, no royal commission and no detailed government strategy examining why men are dying by suicide at three times the rate of women. We run awareness campaigns, yet we continue to ignore the structural pressures that push so many men to the brink.

Every member in this place is receiving the same messages I am receiving. My office is flooded with accounts from men who feel they have been treated harshly, often brutally, by the family law system. They describe being effectively removed from their children's lives following separation. While relationship breakdowns are complex and the best interests of the child must always come first, many family lawyers will tell you that the current system stacks the deck against fathers and is easily gamed. The Australian Institute of Family Studies 2019 report on post-separation parenting arrangements confirms what many already know: equal shared care custody occurs in as little as nine per cent of cases. Children spend the majority of nights with their fathers in only three to eight per cent of cases, while they spend the majority of nights with their mothers in almost 50 per cent of cases.

When a father is facing the prospect of seeing his children only every second weekend or less, it is little wonder that many descend into deep despair. This is why we must look at the real solutions that have worked elsewhere. In 2018 the American state of Kentucky introduced a presumption of equal fifty-fifty shared parenting in divorce and custody cases. The results have been significant. Between 2016 and 2023, Kentucky's divorce rate declined by 25 per cent, a much steeper fall than the national United States average decline of 18 per cent. Families stayed together more often, and fathers were given hope and a meaningful role in their children's lives, rather than being pushed to the margins.

Let us honour the memory of the more than 2,500 men we lose each year by refusing to turn a blind eye any longer.

Multiculturalism

Senator BARBARA POCOCK (South Australia) (20:53): I rise to speak of an event last Saturday night in Adelaide at the Klemzig community centre, where the Uighur community of South Australia came together. It was wonderful to see this community celebrating Nowruz—the new year of the Uighur community—for the first time in a large event and to see all of the community come together to celebrate the new year. It was a real pleasure to stand in solidarity with the Uighur community on the day of our state election. South Australia has one of the largest Uighur communities outside of Turkiye, with at least 1,500 people calling Adelaide home.

This event was a perfect illustration of how our society benefits from immigration, from refugees who come here to seek peace and safety and who enlarge, improve and enrich our communities. Healthy societies value multiculturalism and celebrate diversity and difference. It's so important to celebrate the direct contribution of culture and connection with diverse ancestral traditions. We saw so many of them last Saturday, including singing, dancing, cooking and a lot of conversation.

We Greens have always stood in solidarity with the Uighur community. When the Premier of China visited Australia in 2024, the Greens urged the Prime Minister to raise concerns of human rights abuses occurring against the Uighur community within China. I spoke of this to the community on Saturday. We've also introduced a bill to end the importation of goods produced by forced labour, including goods from provinces like Xinjiang. It is not appropriate that goods come into this country that have been produced by people who are forced to work in conditions which trample on the human rights of Uighurs.

The Greens continue to stand in solidarity with the Uighur people, alongside the people of Tibet, the people of Palestine and all oppressed people around the world. It was especially important to do so on the day of our state

election, when the anti-immigration policies of One Nation were receiving much attention. We discussed over lunch how our lives had changed and how their lives in particular had changed in recent times.

The Uighur community is, in the main, Muslim, and their responses to my question about what had changed for them were very powerful. We've seen Islamophobia and racism increase in our community. The costs of that were very clear to these individuals as they talked about what had changed for them and for their children in the last two years. They feel less safe. As one woman said, just as she was walking across the road to come to the Klemzig event, an occupant of a car had wound down the window and shouted Islamophobic comments to her and her two young children. She had been screamed at with a racial slur, just as she was making her way to the Uighur new year celebration. One mother said to me that she no longer felt safe taking her children to her local park. The rise of One Nation imposes real costs on people's lives, on their safety, on the safety of their children, on the nature of childhood and on the safety of this beautiful Uighur community.

We know in the Greens that we must be committed to creating a humane and inclusive system of immigration that prioritises family reunion, looks after refugees and strengthens our communities. We know that family reunion visas need to be fairer, they need to be faster and they need to be more affordable. We know that the housing crisis that this country suffers from is not caused by immigration. We had a stop to immigration in the years of COVID, and house prices increased nonetheless dramatically. Everyone deserves fairness, compassion and the opportunity to thrive, regardless of where they come from.

So thank you to the South Australian Uighur community for their hospitality and for the celebration of their culture on Saturday, a day of celebration of democracy. We look to improve democracy for people around the world, to an end to forced labour and to continuing celebration of the richness of a multicultural society that benefits from the contribution of the Uighur community, their children and their families.

Social Cohesion

Senator TYRRELL (Tasmania—Independent TAS Whip) (20:58): This week, on the anniversary on the Christchurch terrorist attack, a simple message of solidarity with Muslim Australians was met with a wave of exactly what we were advocating against: Islamophobia. It was hate speech—the kind of baseless hate that by now feels very familiar. We've seen it before. We've heard it here in this very chamber. One Nation in particular has made a pattern of singling out certain races or religions, including Muslims, and deciding every so often who to target next. It's not new, and it's not on.

But this time something else is going on too. A lot of this content isn't even coming from real people; it's being generated and amplified by AI bots, many from overseas, and much of it is pushing One Nation misinformation and propaganda, making them seem bigger and louder than they actually are. That's not a glitch; that's a strategy. If One Nation didn't want that fake AI generated material spread in their name, they would call it out clearly and immediately. They haven't, and that silence matters. Silence in this context isn't neutral; it signals acceptance.

We are watching politics and technology collide in the worst possible way. Social media has the power to take something small and make it feel mainstream. It can make the appearance of consensus when none exists. It can turn a lack of understanding into fear and pass it off as public opinion. That matters because the issues being distorted are serious ones. Migration is one of the most important policy areas we deal with. It shapes our economy, our communities and our future. It is integral to maintaining Australia's essential services and, more so, it's about the human beings attached to the numbers: families fleeing violence, children starting school in a new country and workers contributing to the communities they now call home. They are not abstract numbers; they are real people making real decisions, often under difficult circumstances. Yet that reality is being drowned out by bots—by hateful messaging by politicians who benefit from keeping the debate angry and divided, not honest and grounded.

We shouldn't normalise this. On the anniversary of Christchurch, we're reminded where unchecked Islamophobia and hate can lead. It starts with words: dehumanising language like calling Islam a disease, conspiracy and hate dressed up as concern. It doesn't always stay there. It can move from screens into the real world, often with devastating consequences. Hate doesn't stay contained. It spreads, it hardens attitudes, it isolates communities and, in the worst cases, it turns into violence.

So we have a responsibility to be clear about what's happening now. This is organised. It is being artificially amplified, and it is aimed at turning Australians against each other for political gain. At the very least, people deserve to know who or what they're listening to. If a message is coming from a bot, it should be labelled as a bot. That's not complicated, it's not controversial and it's basic transparency. Right now, people are reading content thinking it reflects genuine public sentiment, when, in many cases, it's part of an automated campaign designed to provoke and divide. That undermines trust for the public. It lowers the standard of our politics, which isn't fair on the people who elect us.

But regulation alone won't fix this. We also need to reset the tone of how we speak, especially in this place. Every policy debate, particularly on migration, should start from a simple and obvious truth: they are human beings—not numbers, not problems to be managed but people. They are people who deserve dignity, people who deserve respect and people who deserve better than being used as a convenient target. If we lose sight of that, we lose the point of the debate entirely.

We can disagree on policy. We should; that's part of a functioning democracy. But there is a line between disagreement and dehumanisation, and too often that line is crossed—in the case of One Nation, very deliberately. We can't stay silent while hate is spread, we can't ignore the role of AI in amplifying that fear and we can't accept politics where division is rewarded and respect is treated as weakness. So call it out, expose it and deal with it. Call out the use of bots to manipulate public debate, call out the amplification of hate and call out those in this chamber who benefit from it and don't even take responsibility. If we don't, the loudest voices won't be the most honest ones; they'll just be the most hateful. That's not a standard we should accept. We can do better, and we owe it to Australians to do better.

National Servicemen's Association of Australia (Queensland) Inc. Doomadgee Future Planning Project

Senator SCARR (Queensland) (21:03): Before I begin with my prepared remarks, I would like to compliment Senator Tyrrell on that fine contribution. I think all fair minded people in Australia would welcome that contribution.

I congratulate the National Servicemen's Association of Australia (Queensland) Inc.; its president, Tony Stevenson OAM; all of the members of the executive; and their wonderful patron Angela Owen, former Brisbane City councillor, for the unveiling of a memorial on 14 March 2026 to 20-year-old Queenslanders who were called up by birthday ballot under the 1965 to 1972 National Service Scheme and passed away in Australia while undertaking this service obligation.

The important thing about this memorial is that these national servicemen are not commemorated anywhere else. They were called up to do their duty under the birthday ballot, and they passed away whilst in service in Australia, but before this plaque was unveiled their names were not commemorated anywhere in Australia. That gaping hole in the commemoration of those who have met their service obligations in our armed forces has now been filled with the unveiling of this plaque by the Governor of Queensland, Her Excellency Dr Jeannette Young, on 14 March 2026 at the Wacol national servicemen's precinct in my home state of Queensland. I do recommend to all Queenslanders that they visit the Wacol national servicemen's precinct, which has some wonderful, engaging displays and has some very moving memorials.

I want to place on the record of this place the names of those 20-year-old Queenslanders who are commemorated on that plaque. I'm going to put these names up on my website so that former national servicemen and their families from across Australia can look up these names, because I've had inquiries from a number of former national servicemen across Australia who wanted to know the names on this list. I'm going to read those names now and put them on the record of this Senate, our home of Australia's democracy, for whom so many have given their lives: Peter Allan Amos, Paul Thomas Bailey, Gregory Ronald Baker, Ralph Norman Banks, Andrew Henry Barnes, Noel Thomas Beauchamp, Alfred Roelfin Beuker, Keith Bruce Burton, Henry John Ciesielski, Neville William Clifford, Brian Patrick Egan, Michael Joseph Gillespie, Robert John Giltrow, Brian William Gordon, William Francis Heinson, Peter Jacobus Hobbelen, Patrick Thomas Holden, Richard Drummond Jia, Christian Peter Jensen, Francis Patrick Joyce, Michael Krivoroutcho, Peter Barry Livingston, John Patrick McAlorum, Jabez Ernest Chester Merris, Bernard Thomas Persal, Donald Norman Ross, Laurence Thomas Schlecht, Richard Charles Barker Shaw, Bruce Thomas Strange, Harold Hugh Wagner, Gary Richard Whittle, Neville E Whyatt and Peter John Wruck.

I should note that three of those who passed away in Australia during their national service had actually completed tours in Vietnam. They had survived to return to Australia and, tragically, passed away through either drowning, sickness or motor-vehicle accident whilst in Australia. I should say that those national servicemen who passed who had served in Vietnam were Keith Burton, Michael Gillespie and William Heinson. I also note that the niece of Peter Wruck attended the unveiling of the plaque and laid a wreath. In discussions with her, she told me how much the unveiling of that plaque would have meant to her grandmother and to her mother—that is, Peter John Wruck's mother and sister. Congratulations to the National Servicemen's Association of Queensland, and thank you for making sure that those national servicemen from Queensland who were caught up in the birthday ballot during that period of time are now commemorated for all time.

There was an exciting piece of news this evening, and that is that the Doomadgee Aboriginal Shire Council's Doomadgee Future Planning Project won the Australian Urban Design Awards prize for strategic design and policy. This is an extraordinary achievement for Doomadgee, which is a township of approximately 1,800 people. It was formerly a mission and is a wonderful Indigenous community in my home state of Queensland. They previously

won the Engagement Institute award in November last year for the community engagement around this project. That prize applied across Australia and New Zealand. Now Doomadgee Aboriginal Shire Council, with Circ Design and Meridian Urban, has won the Australian Urban Design Award. They were up against major projects across the whole of Australia—this township of 1,800 people in my home state of Queensland.

Doomadgee is a very remote Indigenous community of around 1,800 people. It's a former mission settlement. For decades it experienced fragmented planning and underinvestment. The Future Planning Project responded directly to that legacy, delivering an Indigenous led, place based framework aligning infrastructure, housing, economic development and cultural priorities into a single community driven vision. Projects are now moving into delivery, and they won the big prize tonight. Congratulations.

It was a real delight, prior to the awards ceremony, catching up with Troy Fraser, the Chief Executive Officer at Doomadgee Aboriginal Shire Council; Kelly Barclay, Community Services Manager at Doomadgee Aboriginal Shire Council; Toni Fraser, Youth and Economic Development Manager; Catherine Simpson, Director at Circ Design; and Upendo Kowero, Principal Consultant at Plan Locally, who previously worked at Meridian Urban. They were recognised with that award.

Speaking to them, I was so inspired by the acute community engagement they'd had. They made sure to hear the views of the elders, women and girls, workers. They even put on consultation events at 7 o'clock in the morning so workers could pop in, get breakfast and give their feedback. They made sure they timed the consultation so young children who were away at boarding school could actually participate in the design as well when they came back. This was a plan of the people of Doomadgee, by the people of Doomadgee, for the people of Doomadgee, and it won the award at this significant Australia-wide award ceremony tonight—an amazing achievement.

I say to the young people of Doomadgee: be inspired. Be truly inspired by this achievement. Be inspired that you've won this award against contestants around the whole of Australia. Doomadgee, a township of 1,800 people, has won this award. The young people of Doomadgee should be inspired by the fact that your community of Doomadgee is providing a strong example for all Australians.

KPMG Australia

Senator O'NEILL (New South Wales) (21:12): I start my remarks this evening with a quote:

In a large hierarchical organisation there is reticence of people to put their hand up ... People need to be confident that, if they put their hand up, someone is going to investigate it; that if it's substantiated someone is going to take action and they're going to be protected if they put their hand up.

These words are from Mr Andrew Yates, the Chief Executive Officer of KPMG Australia, giving evidence to the Senate's Finance and Public Administration References Committee inquiry into the big four consulting firms on 27 September 2023. What I want to bring to the attention of the Senate tonight is evidence from a whistleblower, a former senior executive working at KPMG Australia, that reveals a very different reality to that which Mr Yates was spruiking here in the Senate. I've taken great care to verify via documentation the authenticity of the matters I'm putting on record here in the Senate of the Australian parliament tonight.

In the words of the whistleblower:

On 30 May 2024, I provided information to an eligible recipient within KPMG Australia for the purpose of invoking the statutory whistleblower provisions under the Corporations Act. The information disclosed concerned matters that I had reasonable grounds to suspect constituted misconduct or an improper state of affairs or circumstances in relation to a regulated entity.

The concerns I intended to raise related to audit independence, misuse of confidential information, tender integrity failures, misleading of Parliament, examination misconduct and governance failures at the senior leadership level.

Prior to, and following the written disclosure, aspects of these matters had been raised verbally with senior leadership and Partners within KPMG Australia.

After invoking the whistleblower framework:

- No independent investigation of the substance of the concerns was commenced.
- Adverse action was taken against me.
- The disclosure was recharacterised as a workplace grievance.

The whistleblower goes on to detail their efforts to escalate their disclosure—which includes KPMG executives, KPMG International, including its global chairman and global general counsel, and eventually ASIC—before making this disclosure to me, a parliamentarian, in the public interest.

The whistleblower goes on to detail the allegations of serious misconduct within KPMG Australia's audit and tender processes, and how the whistleblower's efforts to raise concerns about those issues was suppressed by governance failures that they believe extend into KPMG's international network. In the whistleblower's words again:

The matters concern audit independence failures, misuse of confidential client information, corruption of ASX audit tender processes, knowingly misleading a Senate inquiry, generative AI exam cheating following prior remediation claims, a pre-disclosure pattern of retaliation corroborated by a senior KPMG partner, retaliation against a protected whistleblower following formal disclosure, use of a deed of release as a suppression instrument, controlled and conflicted investigative processes, and international governance refusal to intervene.

These matters concern audits and tenders involving ASX-listed and systematically important institutions. If audit independence is compromised or ethical walls are breached, the reliability of decision-making by audit committees is undermined. The credibility of the audit function relied upon by regulators, investors and the public is also undermined.

I will now detail some of the allegations the whistleblower revealed in the documents that I sighted:

'Misappropriation or theft of Lendlease board papers'

Confidential Lendlease board papers were taken and circulated internally within KPMG and used to support pursuit of major audit tenders, including Westpac and Dexu.

These documents were taken from Lendlease by the lead partners on the account, Eileen Hoggett and Paul Rogers, and were physically secured in Ms Hoggett's locker.

Michael Ullmer, then Chair of Lendlease, and presiding over the Westpac audit selection process, was not informed that the tender process had been compromised by misuse of Lendlease confidential materials.

'Telstra IT Environment—improper access and use in tender context'

KPMG personnel offered access to restricted documents from Telstra's IT environment via a Telstra-issued laptop. These documents related to Telstra's AI governance policies and internal practices during a live external audit tender. KPMG was not authorised to access or deploy those materials in support of a live ASX audit tender.

'Macquarie Tender'

Serious concerns regarding independence and integrity arose during the pursuit of the Macquarie audit contract.

Michelle Hinchliffe, former head of Audit of KPMG UK, and previously a senior partner at KPMG Australia where she led the audit of ANZ bank, was centrally involved in the Macquarie audit tender process.

Serious concerns regarding independence and integrity arose during the pursuit of the Macquarie audit contract.

'Westpac Tender'

The Westpac audit tender was structurally compromised by the concentration of former KPMG partners in key Westpac decision-making roles.

Throughout the tender, KPMG received feedback and position intelligence not available to competitors. This included that the tender was KPMG's to lose, commentary undermining EY's proposed lead partner, guidance to reduce KPMG's fee by approximately 25 percent, and advice on managing perception optics.

'Independence Breach and Procurement Corruption in the Dexu Audit Tender'

While acting as Internal Auditor to Dexu, KPMG positions itself to bid for the External Audit, creating a clear independence risk requiring strict ethical separation under APES 110 and Dexu's own auditor selection policies.

On 6 November 2023, a meeting was held at KPMG's Barangaroo office ... during that meeting, and despite acknowledged independence sensitivities, an arrangement was proposed where (one of the people present) would leave his laptop open with Dexu internal audit documents visible while he went for lunch, allowing external audit personnel to view them.

Senators, there are clear allegations here of profoundly unprofessional and unethical behaviour. One presumes they are exactly the sorts of concerns that Mr Yates would technically have wanted to be aired under his speak-up culture. But what appears to be the reality for this whistleblower is that the speak-up culture that Mr Andrew Yates and KPMG told our committee inquiry about in September 2023 did not actually exist. Each of the allegations I've put before the Senate tonight are supported, as I said, by documentation.

It is of great concern to me that someone who did have this evidence and professional integrity did try, through the processes available to them, to bring these concerns to the attention of KPMG and for there to be action internally. Let me be crystal clear: the whistleblower raised their concerns. The whistleblower escalated it to relevant executives. The whistleblower contacted KPMG's independent directors and even raised concerns with KPMG's internal chair and Global Council. In parallel, in a situation all too familiar to whistleblowers in these secretive partnership providers of audit and assurance, in Australia and across the globe, this person found themselves on the outer at work, removed from regular duties. And they eventually found themselves headed out the door as part of a highly convoluted HR process that seemed to commence around the same time as they started raising their concerns about the behaviour they had witnessed. What's the result of this? It's no surprise that the whistleblower no longer works at KPMG.

I know that on 7 November last year the *Financial Review* reported:

KPMG Australia is on track to become the dominant auditor of the country's largest listed companies...

Senators and members heard through our inquiries into the consultant audit sector that these massive partnerships had put profit before professionalism and used their privileged access to both business and government to grow their own wealth.

Why does it all matter? Well, I'll leave the last words tonight to the actual whistleblower:

If tender processes are compromised, competing firms are disadvantaged and audit committee decisions are distorted.

If ethical walls are breached, confidential audit information is misused and independent safeguards become performative rather than substantive.

If evidence given to Senate inquiries is inaccurate or incomplete, parliamentary oversight is undermined.

If statutory whistleblower protections can be neutralised through deed pressure, controlled reviews and privileged shielding, and evidence deletion, the regime fails in practice.

Is this really the best the public can expect from the new so-called leader of the pack? KPMG well knows about these allegations. I say to the partners, almost 700 at KPMG, very many who are honest, ethical, intelligent, professional people, what will you now do to address the matters that I have raised here tonight? What will you now do to reverse the deceptions perpetrated on Lendlease, Westpac, Dexus and Telstra? When will Mr Yates apologise once again to the Senate?

I remind you that Mr Yates said people need to be confident that, if they put their hand up, someone's going to investigate it. I can give my assurance I will continue to speak up here, in the Senate, in the interest of decent Australians who actually need the audit and assurance sector to operate with dignity and professional propriety.

Australian Army

South Australia: Community Events

Senator McLACHLAN (South Australia) (21:23): On each Army birthday, the recipients of the Jonathan Church Good Soldiering Award are announced. The award is named in honour of Trooper Jonathan Church, who, in 1995, risked his life to carry a child to safety. Trooper Church's actions personified the values of the Australian Army soldier. He demonstrated ethical leadership, strength of character and service beyond expectation. Soldiers and junior officers who receive this prestigious award are recognised as exemplars of Army values, which are leadership, compassion and ethical soldiering.

On the 125th birthday of the Australian Army, it was awarded to Corporal Sarah Vella, who I've met and who is in every way an exemplar of Army values and a role model to her fellow soldiers. She is posted to the 4th/19th Prince of Wales's Light Horse Regiment and serves as a troop staff member responsible for supervising, guiding and supporting up to 40 Army Reserve recruits, including managing and supporting their welfare concerns. A young recruit who was suffering an injury which escalated into a life-threatening crisis was saved by Corporal Sarah Vella, who was the steady, decisive presence that that soldier needed. I thank her for her service. I congratulate her on her award.

Recently, I had the privilege of attending the reopening of the Adelaide Holocaust Museum and Andrew Steiner Education Centre. The education centre has been developed, as part of the museum, to be an exhibition space featuring galleries that will provide displays on Jewish culture and life, as well as the Holocaust and antisemitism. I acknowledge that the Australian government has contributed \$2.5 million to the project.

It was great to see my old friend Andrew Steiner present and giving, as he normally does, a moving speech, reminding us that we must fight antisemitism every day and never forget the horrors that occurred in the 1930s. He himself is a survivor of that horrible time and that great evil that afflicted Europe. Ms Henderson-Sapir, the chief executive officer, also delivered a speech, and she quoted from, as she said, the ethics of our ancestors. It was a beautiful phrase: 'It is not up to you to finish the task, nor are you free to avoid it.' I took that to heart. As she outlined in her speech, every interaction and every connection we have in life must add to bringing good to our community rather than evil.

I'll leave you with the words of Rabbi Frankie Salzman, who said these words when blessing the new development: 'May this museum continue to be a beacon of that remembrance as well as hope. May the stories preserved within these walls awaken compassion in all who enter. May they deepen our understanding across difference. May they strengthen our shared commitment to human dignity and to standing against hatred in all its forms.' I thank the Jewish community for their invitation. I was honoured to attend, and I look forward to visiting the museum and all my friends there as soon and as much as I can, subject to Senate duties and my travel.

It was a great privilege for me to be invited to the Mahmood Mosque, one of the largest mosques in South Australia, by Imam Kamran Tahir and community elder Munawar Rana. They showed me great hospitality and honoured me with the opportunity to speak to the community. This is a community that actively engages in South Australia to advance the interests of our state. They aspire to be a beacon of peace, unity and service to humanity.

On Australia Day, their celebrations centred around not only praying for the progress and prosperity of all of us in Australia but acknowledging their deep love of this country and community. It was very moving to me, and it reminded me again of the importance of multiculturalism. This nation is founded on multicultural communities working together to produce a better and more beautiful community, and it's the love that these communities share with each other and their fellow South Australians, underpinning our diversity, that gives us strength. Again, it should remind all of us in this place that we must at all times support those that support us and that we should appreciate the rich diversity of our great nation.

COVID-19: Response

Senator ROBERTS (Queensland) (21:29): The final report of the Royal Commission of Inquiry into COVID-19 Lessons Learned was handed down last week. The royal commission that New Zealand's prime minister during COVID, Jacinda Ardern, started was a cover-up until the new government made it slightly more fair dinkum. The report was framed politically, praising all involved as running one of the world's best COVID responses. To say they didn't harm people as badly as most other countries is not a compliment, and even that's unsupportable, based on testimony to the commission. One Nation is not letting go of this issue, because there is another pandemic on the way, just as soon as the gain-of-function research is completed and the inevitable lab leaks occur. Australia is running gain-of-function research at the CSIRO facility in Geelong, including on new strains of Ebola—insane.

The report did include substantial criticism of New Zealand's mistakes in their response, although the report did not give it prominence. The report focused only on process errors—not medical but process errors—especially advice not reaching decision-makers and the repeated failure of politicians to follow the advice they did get. It turns out they were not following the science after all. The commission examined so-called vaccines, lockdowns, testing and economic responses from February 2021 to October 2022 to assess decisions taken on the basis of information available at the time. Many decisions that we know today were wrong were not investigated, because that information was not available at the time, nor did the commission hold politicians accountable for making decisions which clearly flew in the face of decency and common sense.

And the royal commission failed to address the COVID injection's long-term medical outcomes. Massive increases in cancer rates, myocarditis, brain function, permanently elevated mortality levels, harm to children's emotional education and development—none were subject to rigorous inquiry. Nothing in this report would stop a future government from repeating key steps of their failed response, because the true extent of the harm was not subject to detailed longitudinal medical study during the inquiry.

Here are the main findings and the main failings in the government response that the commission did find: Firstly—youth vaccine mandates for 12- to 17-year-olds. On 9 December 2021, the COVID-19 vaccine technical advisory group gave clear advice to the government that the risks of COVID-19 transmission amongst under-18s were 'insufficient to justify mandating a two-dose schedule' and that they may 'add unnecessary risk of myocarditis'. This specific advice never made it to the right people. As a result, the injection mandates for education workers and children over 12 remained in place, wrongly. The commission called this a significant failing yet did not require those who received the guidance to explain why they chose to ignore it, nor why the advisory body that made the guidance chose to keep their mouths shut. The former director-general of health, Ashley Bloomfield, was knighted and is now at the World Health Organization running the International Health Regulations. How come? In the public service, silence is a golden ticket.

Secondly—the Auckland lockdown extension in late 2021. Auckland was kept under alert level 4 for 32 days longer than the director-general of health advised. These 32 days were over Christmas, causing massive social harm during a Christian holiday. The commission notes that this contributed to unnecessary social and economic disruption for businesses and families. That's a huge understatement. Jacinda Ardern clearly shares Prime Minister Albanese's desire to break the bonds of family, community and Christianity in order to usher in their communist utopia of scarcity, censorship and control.

Thirdly—communication of risks. The failure to clearly communicate risks around COVID injection harms, especially myocarditis in young people, eroded trust in the government and in medical professions. This is why the Albanese government is rigging the mis- and disinformation inquiry now underway—to prove the need for mis- and disinformation censorship laws, to ensure the government is the only source of information during the next emergency.

Fourthly—vaccine mandates. The commission found that there was 'insufficient monitoring' of impacts around job losses and exemptions, although the commission did not scrutinise adverse effects from the deadly COVID shots. Their process was to accept the health department's explanation of the adverse events documented on the New Zealand version of the Database of Adverse Event Notifications. The commission found that decisions to continue or remove mandates were 'not well-informed by data'. No bloody kidding! Just not informed!

And Australia has committed this grave mistake. Perhaps we did it even worse in this country.

Tonight, I'm sharing with the Senate new evidence, published last week, using Australia's Therapeutic Goods Administration's own documentation, which suggests that the TGA may have committed malfeasance in office. Last week, Paul Rekaris presented this evidence, published on SSRN, the world's largest social science research network, based on his four years of freedom of information requests and investigations, using the TGA's own data. I'll say it again: 'using the TGA's own data'. Titled *Documentation gap analysis: independent audit of TGA COVID-19 vaccine safety monitoring plan*, the paper used thousands of pages of data, covering 68.4 million injection doses, and audit standards from the Australian National Audit Office and the international standard for auditing, ISO 19011.

Here's some background. The Commonwealth signed formal bilateral agreements with Australian states and territories that established governance frameworks requiring systematic reporting of vaccine safety and surveillance data, including adverse event monitoring via the TGA. These agreements implemented the Australian COVID-19 Vaccination Policy, which National Cabinet endorsed in November 2020, and gave operational effect through the TGA's February 2021 'COVID-19 vaccine safety monitoring plan'. Remember that title. The states relied on that plan. The public relied on that plan. Yet the TGA did not properly implement that plan. They weren't even close.

This is at the heart of the cover-up of COVID injection harm. The monitoring, called pharmacovigilance, had to be done according to the plan. Monitoring was not done—and people died.

The ministers are culpable. Under the *Cabinet Handbook*, 15th edition, paragraph 25, ministers must carry out policies that cabinet has determined, and, as recorded in cabinet minutes, portfolio agencies must act on cabinet decisions. This binds the TGA, as a portfolio agency under the Department of Health and Aged Care, to implement the enhanced monitoring commitments.

This is a brief outline now of the evidence of their failure. Firstly, in September 2024, when the Office of the Australian Information Commissioner directed the TGA, the TGA identified no implementation records for the vaccine safety monitoring plan—a position the Office of the Australian Information Commissioner confirmed in Decision 2025 AICmr 54. Secondly, vaccine safety monitoring was managed through routine 'day-to-day processes', contradicting the enhanced monitoring requirement attached to provisional vaccine approval. Thirdly, of 19 audited plan outputs, only three have complete implementation documentation, 10 are partially documented and six have no documentation at all—only one-sixth compliance. Fourthly, the TGA investigated 148 safety signals, called adverse events, and took 57 regulatory actions. They have published no documentation linking specific signals to specific actions or explaining why they took or did not take action—none. Fifthly, ISO 19011 conformity assessment revealed systematic implementation failure by the TGA. Objective 2 was signal detection—the thing they were supposed to be monitoring closely. Across eight outputs, they achieved zero per cent full implementation, and, across two outputs in governance, achieved zero per cent.

The evidence continues to pile up. Last week, Dr Helmut Sterz, former Pfizer Europe chief toxicologist, testified before Germany's Bundestag coronavirus inquiry commission, saying that the Pfizer BioNTech COVID-19 vaccine carcinogenicity and mutagenicity tests were not done. Reproductive toxicity tests were defective. This violated standard protocols and enabled untested mass rollout. Yet billions of dollars in sales rolled in. Essential toxicity studies were sacrificed to speed, with no acceptable reasons, with the result that the approval led to prohibited human trials. Sterz cited post-marketing data showing over 2,133 German deaths in the first two months, estimating up to 60,000 German deaths after adjusting for underreporting, while noting that increased age-adjusted mortality from 2021 onwards contradicted claims of a positive benefit-risk ratio.

It was wrong to inject people with these things. Pfizer's management's confession is damning. How much more evidence do you need? Call a royal commission now.

Finally, I appreciate that some citizens want COVID as an issue put behind us. We can't do that, because big pharma and their TGA will do it all again. We must hound down those responsible and hold them accountable.

Heinrich, Ms Beth

Menadue, Mr John Laurence, AO

Heritage Listing

Medicinal Cannabis

Barghouti, Mr Marwan

Senator SHOEBRIDGE (New South Wales) (21:40): Beth Heinrich's story is one of courage, persistence, and a decades-long fight for justice that has brought her, at last, to a moment of recognition, with a long-overdue apology from the Anglican Church being given her on Sunday. Beth was just 14 years old when Donald Shearman, a married

Anglican minister, began abusing her. She was a child. He was a man placed in a position of profound trust within his community, the church and her life, and what he did to her was a crime. But the betrayal of the church continued long after this. On Sunday, the Brisbane archdiocese finally apologised to Beth. I was honoured to be invited to join her for this apology. Beth, I'm sorry I couldn't make it, but I'm so glad you did. She told me that there were 'two main reasons I went to Brisbane: to inspire others to keep fighting for justice, and to accept an apology from the archbishop for the contemptible way I was treated by the diocese, which began in December 1995 with then-Archbishop Hollingworth'.

On Christmas Eve of 1994, Beth's world had fallen apart when her son Paul had been diagnosed with leukaemia and was not likely to survive. He died not long after. That's the context in which Beth reached out to the Anglican Church—a mother in crisis, grieving, desperate, and completely alone. She told me, 'I don't want to complain but to receive the help I needed.'

Beth made the journey to see Archbishop Hollingworth in Brisbane. She drove from Adelaide to Wagga, took a coach to Sydney and then flew to Brisbane. The church wouldn't pay for her support person, so she went alone. When she arrived for her appointment, Hollingworth told her, 'I can't meet with you; I have a pressing engagement.' They knew her son had died. They knew what she'd been through, and they turned her away at the door.

It didn't end there. Hollingworth wrote to her in February 1996 saying he had considered her story and didn't find it compelling. 'He didn't listen to my story,' Beth says. 'He didn't even meet with me. Hollingworth is a liar.' The man who would go on to become Australia's governor-general looked at a grieving mother who had been abused as 14-year-old girl by one of his ministers, and he chose to protect the institution. Beth has never stopped fighting. She says, 'When I finally recovered from the psychological shock of the disdainful way I was treated in 1995 and 1996, I became so angry. I thought: "They're not going to treat me like this. I'm going to keep at them."' And, when someone like Beth says that to you, you'd better believe her.

The apology from Archbishop Greaves in Brisbane this month matters. But, as Beth says, accountability has to go further. Peter Hollingworth needs to be taken off his continuing governor-general's pension. Beth Heinrich has earned the right to say that. Allowing him to continue to receive this lavish public benefit, given how he failed a survivor like Beth, is unconscionable. Beth, your courage is extraordinary.

I want to speak today about the imminent retirement of John Menadue AO. John is, of course, well known as a former secretary of the Department of the Prime Minister and Cabinet under the Whitlam and Fraser governments. He was later appointed by Malcolm Fraser as Australian Ambassador to Japan and continued in a number of very senior public sector and business positions. I don't have time to read his full CV here.

His contributions beyond the public sector are also significant. He was a founding chair of New Matilda and a founder and fellow of the Centre for Policy Development. In recent years, John's website, Pearls and Irritations, has become an incredible and integral part of our democratic landscape. The analysis provided by Pearls and Irritations on contemporary issues is sophisticated and deeply necessary. Thank goodness he's made that place a place for debates and discussions that really should be happening here in this parliament. Thank goodness, too, that he launched provocations that too often will be shied away from by an increasingly risk-averse media.

Finally, from a personal perspective, I've been lucky to speak with John directly and benefit from his wide experience and his razor-sharp analysis—and it's still razor-sharp. He has big shoes to fill. Thank you, John, for your extraordinary contribution to this country.

Glenlee in Lugarno, in my beautiful home city of Sydney, is a precious and irreplaceable site—one I've worked alongside the local community to protect for many years. It holds profound Aboriginal cultural significance, yet it stands on the brink of destruction from an imminent development application which it seems both major parties, at state and federal level, don't care about. It's also just an extremely beautiful and clearly treasured place nestled on the side of the river. Georges River Council has tried to protect the site, and good on them. They've been denied access, though, to conduct heritage assessments, and the New South Wales minister won't intervene without a DA on the table. And our federal heritage laws simply are not filling that gap. Juukan Gorge and so much other destruction of Aboriginal heritage should have been a wake-up call, but it hasn't been, and our laws are still not fit for protecting even important sites like this. So I'm calling on the federal government to urgently progress new cultural heritage laws and to take Glenlee's nomination for the National Heritage List seriously before it is too late.

Medicinal cannabis genuinely helps veterans manage a range of serious health conditions—I know; they've told me. It's clearly critical for many of our veterans, yet DVA has still somehow found a way to administer the scheme like a complete circus. With one day's notice, the DVA cut off access through telehealth and online forms with no warning and, apparently, no plan, and they also flat-out banned gummies. For veterans in rural areas or without easy access to DVA approved providers, which is many of them, this isn't an inconvenience; it's being left without medicine critical for their health that was covered just the day before, with no notice given. DVA says this is about

harm reduction, but its policy is actually stricter than the TGA's standards. Why does the government keep mucking about with medicinal cannabis without thinking, apparently, of the human beings they're harming by doing so? It's time to fix that scheme for veterans, urgently—and let's be real: let's fix it for everyone else.

Marwan Barghouti has been held in an Israeli prison for over two decades. He's widely regarded as one of the most significant Palestinian political leaders alive and he's currently on hunger strike. He has been subject to brutality of a scale that is hard to imagine, much of it unwitnessed and in secret in Israeli prisons, for the crime of being a proud Palestinian. The international community has a long history of recognising that imprisoning political figures does not resolve conflicts; it entrenches them. Barghouti's unconditional release is not just a matter of justice for one man; it's a question of what kind of future is possible for the Palestinian people. As a member of the Australian Greens and as the party's foreign affairs spokesperson, I'm calling on this parliament to raise this case urgently and on the Australian government to use whatever diplomatic weight it has to advocate for his freedom and for independent monitoring of his health and prison conditions right now.

But this must not stop with one man. There are thousands of Palestinians, some young boys and young girls, held without charge and without trial. I have been and seen the obscenity of the so-called judicial system in Israel and in occupied Palestine. I've seen kids dragged before an Israeli major who spoke to them in a foreign language, literally in shipping containers, where they process Palestinian prisoners in trials that can last 30 seconds or less. And, if any Palestinian dares to try and plead for an actual defence, they're punished with even greater sentences. It's not a judicial system. It's not a justice system as we would understand it. Did I mention there are thousands of Palestinians who have been dragged through that injustice system, many of them not even with that pretence? They just get taken off the streets and put in forever detention—held without trial. Marwan Barghouti is just one of thousands, but he represents this obscenity against the Palestinian people. They are being held and imprisoned for who they are and what they believe. That is arbitrary detention. Australia and Australian politicians have always said that they stand against arbitrary detention. I'll tell you what: it's time we acted like it.

Senate adjourned at 21:49